

The History and Romance of Crime

FROM THE EARLIEST TIMES
TO THE PRESENT DAY



THE GROLIER SOCIETY
LONDON

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Heidelberg

German and Austrian Prisons

**PRISONS OF PRUSSIA, BAVARIA,
SAXONY AND AUSTRIA-HUNGARY
THE FORTRESSES OF
MAGDEBURG AND SPIELBERG**

by

MAJOR ARTHUR GRIFFITHS

Late Inspector of Prisons in Great Britain

Author of

“The Mysteries of Police and Crime

“Fifty Years of Public Service,” etc.



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INTRODUCTION

Interest in penal matters in Germany and in Austria-Hungary centres rather in the nature and number of persons who commit crimes than the methods pursued in bringing them to justice or the places in which penalties have been imposed. The character and extent of crimes committed from time to time, attracts us more generally than the prisons designed and established for their punishment. This is the more marked because such prisons have not achieved any remarkable prominence or notoriety. They have been for the most part the ordinary institutions used for detention, repression and correction, more noted for the offenders they have held than their own imposing appearance, architectural pretensions, or the changes they have introduced in the administration of justice. Only in more recent years, since so-called penitentiary science has come to the front and the comparative value of prison systems has been much discussed, have certain institutions risen into prominence in Germany and become known as model prisons. These have been erected in various capitals of the empire, to give effect to new principles in force in the administration of justice. Among such places we may specify a few, such as Bruchsal in Baden; the Moabit prison in Berlin; the prison at Zwickau in Saxony; the prisons of Munich and Nürnberg in Bavaria and of Heilbronn in Württemberg. To these may be added the prisons of Stein on the Danube, of Marburg on the Drave, and of Pankraz Nusle near Prague in Austria-Hungary. Many others might be mentioned which have played an important part in the development of penitentiary institutions.

The conflict of opinions as to prison treatment has raged continuously and as yet no uniform plan has been adopted for the whole German Empire. Each of the constituent states of the great aggregate body has maintained its independence in penal matters and the right to determine for itself the best method of punishing crime. At one time, after 1846, the theory of complete isolation was accepted in all German states, although the means to carry it

into effect were not universally adopted. Reports from the United States had deeply impressed the authorities with the merits of solitary confinement, among others the well known Professor Mittermaier, one of the most notable judicial authorities of his time. But reaction came with another no less eminent expert, Von Holtzendorff, whose works on prison administration are still held in great esteem. After visiting Ireland, he was won over to the seeming advantages of the progressive system, the gradual change from complete isolation to comparative freedom, and he strongly favoured the policy of cellular imprisonment. His proposals laid hold of the practical German mind, and to-day the scheme of continuous isolation finds little support; it left its mark, however, in several prisons which will be referred to in the following pages.

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GERMAN AND AUSTRIAN PRISONS

CHAPTER I

PRINCIPAL PRISONS

The Bruchsal in Baden—The Moabit in Berlin, the prison Stein—Penal methods in force—Adoption of solitary confinement not universally accepted—Bruchsal opened in 1848—Penal methods employed—The annex where prisoners are kept in association—The Protestant brotherhood and their work in the Moabit prison—Munich—The work of Obermaier—Bavarian penal code—Capital Punishment—Long Trials—Case of Riembauer—Hans Leuss' account of Celle and his imprisonment there—Flogging—The “bed of lathes”—Zwickau in Saxony—Humane treatment in force—Heilbronn—Prison reform in Austrian and Hungarian prisons—Three new prisons erected in Austria-Hungary.

The cellular prison at Bruchsal in the grand-duchy of Baden was commenced in 1841 and opened on October 10, 1848. It stands at the northeast of the town of Bruchsal, on the highway to Heidelberg, in a pleasant part of the country, enjoying a mild and healthy situation. Hills rise in the background, while in front stretches the plain of the Rhine, with its rich fields and wealthy villages. Immediately adjoining the prison are two larger and two smaller buildings containing official abodes for the superior and lower officers of the penitentiary. The main building is a stately edifice, on an elevated site, and the entire group is surrounded by a wall. This wall, of considerable thickness and height, is a regular octagon, flanked by turrets at the angles, which serve above as sentry boxes for the military posts and below as dark cells. The soldiers who guard the penitentiary walk about on the wall, which is four hundred feet long and encloses a plot of ground of more than seven acres.

The discipline imposed at Bruchsal is very severe in character and it has been found that the rule of isolation cannot be persisted in for much more than four years. Only nine per cent. of the prisoners could support so long a term; and the director has reported that after three years of cellular confinement the muscular fibres become so weakened that it is almost impossible to expect hard work from those subjected to it. Bruchsal has an annex or auxiliary establishment where association is the rule for certain prisoners: First, those who have undergone six years of cellular confinement, unless they elect to remain in the cell; second, those who are above seventy years of age; third, those whose bodily or mental health unfits them for separation. Industrial and other education go hand in hand at Bruchsal; the earnings of the inmates at many various trades are substantial and the prisoners value the teaching of the schoolmaster. The trades are various, to avoid interference with private labour. The contract system is not employed, but the prison authorities manufacture goods on their own account. All needful attention is paid in the Bruchsal prisons, whether cellular or associated, to hygiene, diet, clothing, bedding and so forth.

In Prussia, long before the establishment of Bruchsal, the method of solitary confinement found many advocates, and, beginning in 1846, several large, separate cell prisons were built. The first, the Moabit, which was organised by Dr. Wichern, the famous creator of the Hamburg Raue Haus, is a cellular prison on the “wheel” or radiating plan, with four wings and 508 cells in all. An interesting feature of the Moabit is its management by a Protestant brotherhood, that of the Raue Haus, or Hamburg reformatory, whose members are regularly trained for this useful work on lines laid down by Dr. Wichern. All the brothers do not devote themselves to prison management, however, but are sent as required to various fields of labour.

At Moabit it soon became evident that the separate system was not suitable, and that secret intercourse among the convicts was not preventable. The doors of the cells were therefore left open during working hours, and a number of convicts worked in company. In church, during exercise, and in school no isolation took place, but silence was always enforced. On the whole, the Prussian authorities were not in favour of prolonged isolation. As to the general result, it has been thought that the cellular system lessened the number of reconvictions, but that the experience had no lasting effect

upon hardened or habitual criminals. On the other hand, first offenders, or those who had been tempted by opportunity or carried away by passion, were believed to have been returned to society changed and reformed after a period of cellular confinement. Progress continued to be made, although the introduction of a new system of criminal procedure in 1849 led to such an increase in the number of sentences that much overcrowding of the prisons followed. Attention was in consequence directed rather toward providing further accommodation than to experiments in treatment. Such reforms as were urgent, including the separation of the sexes in different buildings, were accomplished, while the building of new prisons went steadily on and the fine specimens of the Stadtvogtei in Berlin, the cellular prisons at Ratibor in Silesia and Rendsburg in Schleswig-Holstein, a cellular police prison at Altona and similar institutions in other provinces, showed that improvement did not tarry by the way in Prussia.

Bavaria made the most marked progress, which was worthy of the country that produced the famous Herr Obermaier, and the great state prison of Munich is still worked upon the lines he introduced in 1843, although cellular confinement, which he did not favour, has been to some extent installed. Obermaier was one of those rare characters, another Montesinos, who left his mark on prison administration. He was a man of the same indomitable will and commanding personal influence, who could work wonders with prisoners and change their natures entirely. When he assumed charge, the prison of Munich contained some six or seven hundred prisoners in the worst state of insubordination. They defied all discipline, although the harshest and most severe had been tried. They were chained together and to each chain so heavy a weight was attached that even the strongest found a difficulty in dragging it along. Soldiers, a hundred of them, were on duty all through the prison, at the gates, around the walls, in the passages, inside the work-shops and dormitories; at night, as an additional precaution, a pack of from twenty to thirty large and savage bloodhounds roamed at large through the yards. Obermaier called the place “a perfect pandemonium, comprising within the limits of a few acres, the worst men, the most slavish vices, and the most heartless tyranny.” By degrees he relaxed the severity of the discipline, lightened the chains and sent away the soldiers and the dogs.

The prisoners became humanised and in return for the confidence placed in them, grew well-behaved. They managed themselves, and public opinion among them checked flagrant misconduct, all yielding ready obedience to those of their fellows who were appointed overseers. If a prisoner was inclined to break a rule, the warning, *es ist verboten*, was sufficient to deter him. The most satisfactory industry prevailed, and the prisoners became self-supporting, making their own clothes, building their own walls, forging their own fetters, and more especially manufacturing useful articles which found ready sale. In these employments they earned good wages, part of which was given to them on discharge. Nor was the conquest thus achieved over these turbulent spirits merely evanescent, disappearing after release. It was proved, "on irrefutable evidence," that about five-sixths of those sent out from the Munich prison returned to society improved and that the percentage of relapse was exceedingly small.

Bavaria has four cellular prisons in all; one at Nürnberg and three others intended to serve the district courts of justice and filled mostly with prisoners not yet tried. Other prisons are conducted on the collective system. Many of them are ancient convents and castles, little suited for the purpose to which they have been converted. Crime is very prevalent, owing to a generally low standard of morality, the neglect of education and the rough manners and customs of the population. The peasants in many parts of the country are in the habit of carrying long stiletto-like knives at public houses and dancing places, and murderous conflicts, after nasty quarrels, when grave injuries are inflicted, are very common.

The penal code of Bavaria, compiled chiefly by Anselm von Feuerbach, a distinguished criminal jurist, was adopted by the government in 1813, and became the basis of criminal legislation for all the German states. In Bavaria the peculiar merits and defects of this code were strongly accentuated. The laws are severe and the punishment merciless, but blood is never shed until the most minute pains have been taken to secure proof of guilt. Circumstantial evidence is never held sufficient to justify the extreme penalty, and sentence of death cannot be passed unless the culprit has confessed his crime.¹ Two witnesses are deemed sufficient when they testify to facts seen with their own eyes, and the statement of one witness is accepted only as half proof. By far the most important evidence is that

given by the prisoner himself. He is questioned by the examining judge in the presence of the notary only, who is employed to take down his replies. The judge seeks to elicit a full statement by suggesting that ample confession may soften punishment. An attempt is made to entrap the prisoner into untruthfulness by asking him if he knows the real reason of his arrest, and if he affects ignorance or gives a false answer he is gravely admonished and warned that lying will prejudice his case. All the questions put to him are aimed to mislead him and obtain unwary admissions inconsistent with innocence. If the prisoner has replied truthfully, he is closely cross-examined on his own story, which is twisted and inverted until he is confused into contradicting and committing himself.

- 1 This practice of requiring confession in capital cases doubtless had its origin in the influence of the Church and the doctrine of the confession as necessary to absolution.

All this time he is kept in the dark as to the exact nature of the accusation laid to his charge, and it is illegal for him to seek enlightenment. He is not furnished with a copy of his own evidence or of that of the witnesses for or against him. Pitfalls are laid for him by his unexpected confrontation with an accomplice. If he obstinately refuses to speak, he is sentenced to bread and water. If it is a murder charge, he is brought face to face with the bleeding corpse, or it may be that the decaying remains are exhibited to him. The most curious feature in the proceedings is their prolixity.

Criminal trials in Bavaria have lasted for years. The reports in one leading case, that of the priest-murderer Riembauer, filled forty-two folio volumes. The most minute and searching investigation was made of the secret motives and inmost feelings of the accused, as well as his open actions. Feuerbach has written an account of remarkable crimes and lengthy trials in Germany, and among others tells the story of Francis Riembauer. He was a parish priest whose first worldly venture was the purchase of a farm near the village of Lauterbach between Ratisbon and Landshut, where he lived with the former owners, a widow, Mrs. Frauenknecht, and her two daughters, Magdalena and Catherine. All were esteemed by their neighbours. Riembauer passed for a model of apostolic zeal and charity. Though the son of humble parents, he had a fine person and was an

eloquent preacher. In 1808, after passing with great distinction the examination for ecclesiastical preferment, he obtained the benefice of Priel, sold the farm and moved with the Frauenknecht family to his new parsonage.

Soon after the change, the mother and the elder daughter Magdalena died. Riembauer then endeavoured to persuade Catherine, the remaining daughter, to continue to live with him as his housekeeper in her sister's place. She refused, however, and left him to take a position as a domestic in another family. It was noted that for some time afterward she was subject to periods of great gloom and depression. Finally she confided to a friend, and then confessed to a priest, that she was the possessor of a dreadful secret: that Riembauer had murdered a woman; that she and her mother and sister had witnessed the deed; and that he had also appropriated the entire fortune of her family. The priest to whom she confessed counselled silence, but wrote Riembauer in an attempt to bring about the restoration of the fortune, with no result.

Catherine was bright and clever and she was not satisfied to let the matter rest there, but laid the whole story before the tribunal of Landshut. She was then seventeen years old, but as the Bavarian law would not allow her to be sworn until she was eighteen, it was not until the following year, 1814, that her deposition was taken. She testified that several years before a woman had called at their house to see Riembauer, who was then absent. A few months later the woman returned, and at that time the priest took her up to his room. She had not been there long when the sound of crying reached the family below. They hastened up-stairs and heard Riembauer say, "My girl; repent your sins, for you must die." And on looking through the keyhole, they were horrified to behold the man bending over the woman in the act of choking her.

When Riembauer came out, he told them that this woman had borne him a child and had asked him for money, threatening to denounce him to his ecclesiastical superiors if he refused, and that he had killed her. Catherine's mother and sister threatened to reveal his secret but were prevailed upon to keep silence out of respect for his office, and soon after both died very suddenly and under suspicious circumstances.

Riembauer was arrested as a result of Catherine's accusation, and gave his own version of the murder, acknowledging that he knew the woman whom he said he had promised a position as cook, but stating that Mrs. Frauenknecht and her daughter Magdalena had committed the crime. He knew nothing, of course, at that time of the deposition against him.

During a period of three years, examination followed examination. He was confronted with the skull of his victim, and every possible method was tried to shake his testimony, but it was not until October, 1817, that Riembauer, broken physically and mentally, confessed to having murdered Anna Eichstaedter. His confession contained the statement of a remarkable "code of honour" which he professed to follow. "My honour, my position," he said, "my powers of being useful, all that I valued in the world, was at stake. I often reflected on the principle laid down by my old tutor, Father Benedict Sattler, in his 'Ethica Christiana' ... 'that it is lawful to deprive another of life, if that be the only means of preserving one's own honour and reputation. For honour is more valuable than life; and if it is lawful to protect one's life by destroying an assailant, it must obviously be lawful to use similar means to protect one's honour.'"

On the 1st of August, 1818, he was declared guilty of murder and sentenced to indefinite imprisonment in a fortress. The regular punishment for murder was death, but in this case the learned jurist Feuerbach admitted that had the court not accepted Riembauer's confession, he could not have been convicted, because the evidence, though strong, was purely circumstantial. It was proved that the woman had visited him; that an umbrella marked with her initials was in his possession; that she had been buried under a shed on his farm, and that the floor of his room was stained with blood and showed the result of efforts to remove the stains with a plane; yet the court held that evidence was lacking as to marks on the body for sufficient proof of the actual manner of death.

The use of physical torture was abandoned in 1806, and then only with a strong protest from judges of the old school, who parted with great reluctance with so simple and expeditious a method of obtaining evidence.

Curiously enough, the accused persons in the Bavarian courts were generally moved to confess. Many reasons for this are given. Some few

confessed from remorse, others could not beat off the pertinacious interrogatories of the judge, not a few were anxious to end the long period of acute anxiety and suspense, and many were exasperated beyond measure by the strict discipline and compulsory silence enforced in Bavarian prisons. Rather than be condemned to perpetual silence, the accused would speak out even to his own undoing.

Capital punishment was legal in Bavaria and was inflicted by decapitation with a sword, or breaking on the wheel from the feet upwards. But where conviction rested on circumstantial evidence only, or assumed guilt was not borne out by actual confession, imprisonment for life in chains was substituted, and it was a terrible penalty. The sentence annihilated civil existence; it was moral if not physical death. The culprit lost all rights as a husband, father or citizen; he was deprived of property, freedom and honour; nothing remained but bare life passed in slavery and chains. There was no recovery even if error were proved. He did not get back what he had lost, and if his wife married again he could not recover his property. It was not capital punishment, but it was death in life.

In the progressive national development of Prussia, as wars were waged and fresh territory acquired, prison reform obtained attention. In Hesse-Cassel, prisons were in a very backward state and many were condemned as unfit for habitation. In Hanover alone conditions were more satisfactory. The journalist Hans Leuss served a term of three years' imprisonment in 1894 in one of the chief prisons, that of Celle-on-the-Aller, which he graphically describes in his autobiography.

“It lies on the river bank. The front looks toward the avenue which in Celle forms the approach to the station. The external aspect of the terrible house is not unpleasing; neither does the appearance of the inside give the most distant conception of the conditions under which the prisoners live, nor of their situation, so that visitors are rather favourably impressed than otherwise. On arrival we were led into the vestibule of the building and drawn up in line, while an official cross-examined us. Until noon, one formality after another had to be gone through. We were first taken to the bathroom where, after being plunged into hot water, we had to sit on the edge of the bath while the barber shaved us. I shook so with cold that he

had to let me return to the water while he finished his operations, and we dressed standing on a cold floor in our prison gaol. We next went before the governor and other officials, and then partially stripped again and had to cross a cold passage to the doctor's room, who in my case found both lungs affected. I have always ascribed to the hardships endured on that first day in Celle the severe chest complaint from which I suffered during my imprisonment, and the effects of which I still feel.

“These disagreeable preliminaries over, a cell was allotted to me. I was put under a warder who was the most hated by the prisoners, the most trusted by the authorities. He had a diminutive body, a large and powerful hand, a bitter and suspicious countenance. He made my life a burden and yet I pitied him. The deep lines of care on his face convinced me he was wretched and made me sorry for him in my heart. We were twenty-four prisoners in the middle ‘cell passage’ as the ‘station’ was officially called. All conversation was prohibited to us. I was set to cane chairs. The prison diet was poor and the lack of fat contained in it reduced me to a state of complete emaciation. I learned nothing of my surroundings. The first person who spoke a kind word to me was a humane warder who encouraged me, although this was not necessary as my courage always triumphed over every hardship; yet it did me good and I was gratified by the man's kind intention in assuring me he had seen several educated men endure long times of punishment without being broken down.

“One day the door opened and a man entered whose appearance filled me with surprise. He was a giant of spare build with a long dark beard, delicately modelled, sympathetic hands and the countenance of a real saint. He resembled neither a clergyman nor a fanatic, but was evidently of a nature as gentle as his mind was vigorous. A man whose outward semblance was unforgettable, how much more his soul, which stands as clear in my recollection as does his tall stature. This was the prison chaplain. The advantage of becoming acquainted with this representative of the noblest form of humanity would alone suffice to compensate me for the terrible sufferings I endured in the course of those few years. Parson Haase has lived nearly a century as the confidant of the sufferers in prison. His powerful but healthy mind was ever impressed with the infinite misery around him. He became a friend of the prisoners, gave them his confidence

and received theirs. I owe this man more than I can say. After him, and thanks to him, the most humanising influence in the gaol was the library, which became a priceless boon. This chaplain was a liberal-minded man who did not limit his choice to books of devotion when making the yearly additions, but he provided the prisoners with works to amuse as well as improve, selected after careful consideration of the varied tastes and requirements of their readers. With books of travel and adventure were scientific manuals and works of still higher pretensions to suit the better educated, and which helped them to escape from mental breakdown and served to counteract the deteriorating effects of cellular incarceration. The chaplain's assistant-librarian at Celle was an ex-murderer who had killed an intimate friend, a bookseller, whom he robbed. It was a senseless crime, the discovery of which was certain, and its cause was never explained.

“Religious exercises were strictly observed at Celle. The chapel was constructed on the well-known plan of providing separate boxes like lairs for each individual. All turned towards the altar which was adorned with a copy of Guido's crucifixion. The services were given well and on a regular date there was a church ‘visitation day’ when a high dignitary preached a stirring discourse, with no other effect than that of starting a controversy among his prison congregation as to whether his cross was of gold or silver. Other subjects formed the staple conversation. One was always deeply interesting, the news that corporal punishment had been ordered and that a prisoner was to be strapped to the block.”

Hans Leuss animadverts strongly upon the discipline at Celle and quotes several cases from official reports in which much cruelty was exercised. One was of a man well advanced in years, who suffered from misdirected acquisitiveness and frequently found himself in gaol, where he constantly misconducted himself and was punished by long committals to the dark cell. In the end his health gave way, but the trouble was not diagnosed and he was very harshly treated. One morning he declared he was unable to leave his bed, but he was nevertheless dragged up and into the exercising yard where he was unable to walk and fell to the ground. The governor, believing the illness was feigned, would have flogged him but was reluctant to order corporal punishment for so old a man, and had him put into the straight-jacket. Then the doctor interposed, being in grave doubt as to his

mental condition, and took him into the hospital for observation, and he died that same afternoon, of senile decay. It is horrible to think that the coercion of this poor old creature was carried so far that he was nearly flogged, and that he was actually confined in a straight-jacket so short a time before his death.

Another prisoner in Celle was adjudged to be feigning insanity and subjected to very harsh treatment; to douches and the jacket by the order of the medical officer. He was suffering really from religious mania, which took the form of exaggerated reverence for holy things; he raved of them all night, abused Dr. Martin Luther and perpetually asked to be flogged until he died for the glory of the faith. He constantly sought to enter into disputation with the chaplain upon whom he greatly imposed. No one thought he was mad, and his punishment continued unceasingly until one night he hanged himself.

A third case of medical shortsightedness is reported from Celle, where an habitual criminal, with a long record of crimes and punishments, came under a new sentence for robbery. He was ill and would eat nothing, and the doctor prescribed a blister. He did not mind, declared he could not work and went for days without food. The doctor thought it was catarrh of the stomach and decided that the man was quite fit for light labour, but the governor only admonished him as he seemed really weak from want of nourishment. Still the medical reports were against him, and he was charged again with malingering, which took him for five days to the dark cell. He did not improve, however, although it was presently admitted that he was out of health and he was taken at last into hospital, the doctor having diagnosed the disease as hemorrhage of the kidneys. He rapidly grew worse, ice and port wine were ordered, but not very regularly given to him. Within six weeks of his first arrival he suddenly died. The post mortem examination revealed an advanced cancer in the liver.

The practice of flogging was long retained in Prussian prisons, and is still employed as a disciplinary measure. The prisoner was strapped over a block by his hands and feet and the implement used was a stick, the buttock piece of an ox, a leather whip or a rod with which the prescribed number of strokes were laid on. A stalwart flagellator usually acted as executioner, and

the strokes were regulated by the clock—one a minute. This punishment was in former times administered in the most terribly cruel manner and permanent injuries to the spine often resulted. A choice selection of whips of various sizes and description may be seen in the strong room of Prussian prisons, most of them of hard cutting leather unevenly plaited. Hans Leuss asserts that at Celle prisoners detected in the manufacture of false coins were always flogged severely.

The power of inflicting the lash is vested in the hands of the governors of prisons and superior authorities. The former can order up to thirty, the latter up to sixty stripes. The assent of the higher prison officials to the governor's decree is required, but is a pure formality. It is little likely that the sanction of a majority of the subordinates would ever be refused to the governor. The administration of a prison is bureaucratic, and the governor is nearly always a military officer and thoroughly imbued with the importance of his very responsible position, which gives him power over hundreds of human beings. The subordinate officials are usually selected from the ranks of non-commissioned officers. Both the chaplain and the doctor may and do raise objections to the governor's orders. The doctor can enforce his objection on the ground of health if he believes the man to be punished is not a fit subject, but for this reason only. Any other excuse he may offer is liable to be disregarded by his colleagues; if the majority of the superior officials are not with him, the governor can still have the punishment carried out. As a matter of fact, their consultation only occupies a few minutes and is a pure formality, the governor alone deciding. Up to 1902 the infliction of corporal punishment was not at all rare.

Herr Krohne, a privy councillor and member of the prison board in the Prussian Home Office, has described the hideous administration of the punishment of flogging in his hand-book of prison law. Herr Krohne is an opponent of flogging and of the "bed of lathes," another form of punishment practised in German prisons, which he rightly considers a survival of barbarism. This last named punishment of the bed of lathes, *lattenarrest*, consists of solitary confinement in a room, of which the floor is laid with three cornered lathes or boards with pointed side uppermost—in Saxony the walls also used to be lined with these lathes—the culprit being stripped to his linen shirt, his underwear and stockings. After a time he

suffers pitifully; he can neither stand nor lie down, cannot rest night or day and his body becomes gradually covered with welts in stripes.

In the five years from 1894 to 1898, in all of the prisons of Prussia taken together, there were 281 inflictions, and during the same period the bed of lathes was ordered 176 times and in some cases for female prisoners. The first curtailment was in the reign of King Frederick William III, and in 1868 it was altogether abolished for women, although not without violent protest from some prison governors who were much opposed to the reform. It was further reduced in 1879 and might only be administered in correction of the most serious offences, as a rule after a previous offence. It has of late fallen into disrepute and was rarely employed in the Moabit, the Gross Strehlitz or Cologne prisons and the bed of lathes has almost disappeared. It was generally adjudged as the punishment for attempted escape and inflicted after the recapture of a fugitive.

Among the German States, Saxony has held a rather exceptional position. A system of classification of prisoners was introduced by a minister named Lindeman as far back as 1840, and ten years later the penitentiary of Zwickau was opened, in which reformation was pursued by individual treatment on humane and careful lines, with education and industrial employment. The dietaries were ample and must be said to have erred on the side of over-indulgence, in that Saxon prisoners had at one time a choice among ninety different dishes for dinner and twenty-eight for breakfast and supper. The discipline enforced was generally mild. Corporal punishment was allowed by the rules and also the bed of lathes, but neither of them has been applied for many years past. Industry was encouraged by the hope of reward, pleasanter labour, and remission of a part of the sentence in the form of leave of absence or conditional release. Many excellent prisons exist similar to Zwickau above mentioned, such as Waldheim, Hubertusburg and others. All of them are kept up to a high standard and improvements are constantly in progress. Separation by night is the general rule while dangerous or incorrigible convicts are completely isolated.

In the Kingdom of Württemberg the cellular plan of prison construction was adopted in 1865 and the first building, that of Heilbronn, was occupied in 1872. Other places of durance are mostly on the collective system as at

Stuttgart, Ludwigsburg and Gotteszell, but means of isolation and separation by night is practised generally. Discipline is firm but not harsh, and corporal punishment is excluded from the penalties for misconduct. Deterrence is held to be the primary object of imprisonment, but moral reformation is not overlooked.

A few words may be inserted here as to penal institutions in other German states. Thus in the grand-duchy of Hesse the principle of herding the prisoners together prevails, although efforts have been made to introduce the isolated cell system. The chief prisons are the “Marienschloss” and those in Darmstadt and Mainz. The national penal institution of Dreibergen serves both of the grand-duchies of Mecklenburg as their chief prison. Peculiar interest attaches to it in view of the almost forgotten fact that here a sort of transition stage was instituted for convicts with long sentences who were during the latter part of their term removed from the isolation cells and sent out to such work as was calculated to develop their physical powers.

In the history of prison management, Oldenburg earned an excellent reputation through the remarkable individuality of Hoyer, for years the director of the house of correction at Vechta. He advocated cell isolation until the latter years of his life, when he declared himself in favour of the Irish system. His plan of forming settlements for convict labour on waste lands was discontinued, as the results were unfavourable, and a modified form of solitary confinement was reinstated. A portion of the Thuringian states was under Prussian and Saxon jurisdiction with regard to their prison system. The rest formed a combination among themselves for the building of prisons to be used by them in common. The principal one was in Ichtershausen.

The improvement of penal institutions was undertaken by Austria in the early forties and a special commission was appointed to examine into the merits of various systems recommended, with the result that solitary confinement was recognised as the most suitable form of punishment for all prisoners awaiting trial and for those sentenced for a year or less. But before this could be put into practice in the new prisons, the political situation changed and the projected reforms were delayed. The old system was not changed, but efforts were made to provide further accommodation

to meet the great increase in the number of sentences. Much energy was devoted to the work and considerable outlay, which produced prisons large enough to contain thirteen thousand inmates. The entire prison administration was entrusted to religious orders and even prisons for male offenders were placed under the superintendence of nuns, a cardinal error resulting in much mischief. Under the minister of justice, in 1865, reforms were again instituted; he assumed the supreme control, and prison management was made to conform to the spirit of the then prevailing liberal views. The system of imprisonment hitherto in force throughout Austria remained untouched for the time being. Among other reforms, corporal punishment and chains were abolished.

In 1868 the penal institutions of Garsten and Karthaus came under government inspection, the contracts with the religious orders ceased, and in 1870 all male prisons were put under direct state control. A new male prison for three hundred inmates was opened at Laibach in Carniola and another at Wisnicz to accommodate four hundred. In April, 1872, the system of solitary confinement was partially introduced, but the progressive principle of prison treatment was kept steadily in view. After a period of cellular confinement, prisoners lived and laboured in association, care being taken to separate the worst from the less hardened offenders. Juveniles were segregated and, of course, the women, the whole number falling into three principal divisions,—the first offenders, the possibly curable and the hopeless, habitual criminals.

A prominent feature in the modern administration of these institutions has been the employment of prisoners approaching the time of their release in a state of semi-liberty, at a distance from any permanently established prison. The first experiment was made in 1886, when a party was sent to improve the bed of a river in Upper Carinthia. They went from the Laibach prison and were followed by reinforcements in the following year. Similar public works were undertaken in 1888-9 in Upper Carniola, Carinthia, Upper Styria and Galicia, for the construction of canals and roads and the opening up of rivers. In some cases the prisoners took with them a portable shed-barrack, in others they built huts in the neighbourhood of their works. The labour performed was cheap and effective, the discipline maintained excellent, and the prisoners are said to have much benefited, morally and

physically, by the trust reposed in them and by the healthfulness of their daily occupations. The building of the reformatory at Aszod was undertaken by convicts, a number of whom, to the great alarm of the villagers, arrived on the newly bought lands, where they lodged in huts without bolts or bars. Their conduct, however, was exemplary. It has been claimed, not without reason, that this method of employing prisoners has been most successful.

A large operation was undertaken in the district of Pest-Pilis-Solt, where the torrential river Galga does considerable damage at flood time. Owing to the demands of harvest and agricultural works, free labour was not to be had in the summer, when alone the river was low enough to admit of interference, and the local authorities having two large prisons within easy access sought for a concession of prison labour. It was granted, and two sets of prisoners commenced at either end of the river valley. These were specially selected men; they encamped at the places where they were busy, being supplied with canvas tents by the military authorities; they ministered to their own needs and cooked their own food, which was brought in the raw state from the neighbouring prison. Excellent results followed their employment for three consecutive years. Not only was a work of great public utility completed, but the prisoners conducted themselves in the most exemplary manner. Although they were held under no restraint in the midst of a free population, there was not a single attempt at escape during the entire three years; there was no misconduct, and discipline was easily maintained by the mere threat of relegation to the prison. The prison administration has in consequence decided that it is now unnecessary to construct special intermediate prisons; places where men, as in the old Irish farm of Lusk, might be suffered to go half free while proving their fitness for complete liberty.

Three new prisons were built in Austria-Hungary during the latter years of the nineteenth century, all of them imposing edifices. One of these is at Marburg on the Drave and holds eight hundred prisoners, partly in cells, partly in association; another is at Stanislau in Galicia for the same number, which has but few cells, as separate confinement is not suited to the agricultural classes constituting the inmates of the prison. The farm land and gardens surrounding are extensive and the work done is mainly agricultural. A third prison is at Pankraz Nusle near Prague and stands on a

height behind the celebrated Wyschehrad. The prison can accommodate one thousand inmates and has replaced the old building at St. Wenzel. A portion of the building at Marburg was carried out by convicts. Till these new prisons were built, that at Pilsen was considered the best in Austria. Another at Stein on the Danube, between Linz and Vienna, holds about one thousand prisoners sentenced to a year and upwards, and is organised on a very sound and intelligent basis. The discipline at Stein, according to the reports of competent visitors, is very creditable. It is claimed for it that the daily average on the punishment list is only nine and that there has not been a sign of a mutiny in sixteen years. Corporal punishment does not exist, but the methods by which order is maintained seem harsh and afford another proof that the abolition of the lash calls for other penalties which are physically more injurious and morally quite as debasing. A writer in the *Times* in 1886 gives a description of a prisoner whom he saw who had been sentenced to a month in a punishment cell for destroying materials entrusted to him for manufacture. He was to spend twelve days in darkness on bread and water; twelve days absolutely fasting, with only water to drink; to have no work, to sleep on a plank bed, and for four whole days was to wear a chain and shot on his ankles. Finally, for the last eighteen hours of his punishment he was to be “short-chained”—a torture which consists in “strapping up one foot at right angles to the knee of the other leg, so that the prisoner cannot stand but can only sit in a posture which after a few minutes becomes intolerably fatiguing, and then acutely painful.”

Strait-waistcoats are also used for the refractory, and a very effective but cruel gag,—an iron hoop with a brass knob like a door handle. The knob is forced into the mouth and the hoop passed over and locked behind the head.

CHAPTER II

FRIEDRICH VON DER TRENCK AT MAGDEBURG

Two barons Von der Trenck—Friedrich a cornet of the Gardes du Corps—Favoured by the Princess Amelia—Incurs the displeasure of Frederick the Great—Sent to the fortress of Glatz—Escaped to Bohemia and passed into Russia—Re-arrested at Danzig and sent to Magdeburg—Plans for escape—The grenadier Gefhardt a faithful friend—Communication established with friends outside—Funds obtained—Plot discovered—Removed to the Star Fort and loaded with irons—Terrible suffering—Attempt to cut through the doors discovered—His prison is strengthened but his courage is unbroken—Fresh plans made—A new tunnel begun—Plot discovered—The sympathy of the Empress-Queen of Austria aroused—Released on Christmas Eve, 1763—Married and settled in Aix-la-Chapelle—His death on the scaffold during the French Revolution.

There were two barons Von der Trenck, Franz and Friedrich, in the middle of the 18th century, both intimately associated with the prisons of their respective countries, for although cousins, Franz was an Austrian, and the other, Friedrich, a Prussian. Both were military officers. Franz was a wild Pandour, a reckless leader of irregular cavalry, who for his sins was shut up for life in the Spielberg, the famous prison fortress near Brünn, where he committed suicide. Friedrich, after enjoying the favour of Frederick the Great and winning the rank of cadet in the Gardes du Corps, was eventually disgraced and imprisoned in the fortress of Magdeburg, where he was detained for ten years and treated with implacable severity. Friedrich von der Trenck was richly endowed by nature; he was a gallant young soldier with good mental gifts and a handsome person which enabled him to shine in court society and achieve many successes. He was fortunate enough to gain the good graces of the king's sister, the Princess Amelia of Prussia,

who greatly resembled her celebrated brother both physically and mentally. She possessed the same sparkling wit, the same gracious vivacity and, like Friedrich, was a distinguished musician. She was a warm votary of art, science and literature and was always surrounded and courted by the most cultured German princes. All her contemporaries describe her beauty with enthusiasm. So far, she had declined the many proposals of marriage, which, as a matter of course, she had received. Her heart belonged to the cornet of the Gardes du Corps, and a secret understanding existed between them. The lovers were at first cautious, but soon became bolder, and the king's suspicions were aroused. At first he tried fatherly remonstrances, but in vain. The extraordinary liaison became the talk of the hour. A lieutenant of the Prussian Foot Guards taunted the favoured lover about his relations with the princess, they quarrelled, and a duel followed. The king was furious, and a catastrophe was imminent, but was avoided by the outbreak of war. Then this gay and reckless courtier allowed himself to be drawn into a correspondence with his cousin in Vienna, the notorious colonel of the Pandours, and the measure of the king's wrath overflowed. Trenck was cashiered and sent to the fortress of Glatz. The king wrote with his own hand to the commandant of the fortress on the 28th June, 1745, "Watch this rogue well; he wished to become a Pandour under his cousin." Undoubtedly Frederick intended to keep Trenck imprisoned for a short time only, but he was detained for a whole year, during which time he made more than one attempt to escape.

The following account is in his own words: "At last, after I had spent about five months in confinement (at Glatz) peace had been proclaimed, the king had returned to Berlin and my place in the *gardes* had been filled. A certain lieutenant Piaschky of the Fouquet regiment and the ensign Reitz, who was often on sentinel duty outside my cell, offered to make preparations to enable me to escape and take them with me. Everything was settled and agreed upon. At that time there was in the cell next to mine a certain Captain von Manget, a native of Switzerland. He had been cashiered, was condemned to ten years' imprisonment and had only four rix dollars to spend. I had shown this man much kindness out of pity, and I wished to save him as well as myself, and this was discussed and proposed to him. We were betrayed by this rascal on the first opportunity, he in consequence earning his pardon and liberty. Piaschky had wind that Reitz was already a

prisoner, and saved himself by deserting. I denied everything, was confronted with Manget, and because I could bribe the judge with a hundred ducats, Reitz escaped with castigation and a year's imprisonment. I, on the contrary, was now considered as a corrupter of the officers and was locked up in a narrow cell and strictly confined. Left to myself, I still meditated flight, as the seclusion in a small cell was too irksome to my fiery temperament. The garrison was always on my side, therefore it was impossible to deprive me of friends and assistance. I was known to have money, so that all was possible to me. The first plan was as follows. My window was above the ramparts, about ninety feet from the ground, and looked towards the town. I could not therefore get out of the citadel and must find a place of safety in the town. This was assured to me through an officer, in the house of an honest soap-boiler. I then cut with a pen knife that had been made jagged at the end, right through three iron bars of enormous thickness, but as this took up too much time, as eight bars must be sawn through before I could get out of the window, an officer provided me with a file, with which I had to work very carefully so as not to be heard by the sentries. As soon as this was accomplished, I cut my leather knapsack into strips, sewed them together with the thread from an unravelled stocking, brought my sheet likewise into requisition, and let myself down from this astounding height in safety. It was raining, the night was dark and everything went off well. I had, however, to wade through the public drain and this I had not foreseen. I only sank into it just above the knees, but was not able to work my way out of it. I did all I could, but stuck so fast that at last I lost all my strength and called to the sentry on the rampart, 'Tell the commandant that Trenck is sticking in the mire!'

"Now to augment my misfortune, it happened that General Fouquet was at that time commandant in Glatz. He was a well known misanthrope, had fought a duel with my father and been wounded by him, and the Austrian Trenck had taken his baggage from him in 1744. He was therefore a great enemy to the Trenck name, and consequently made me remain in the filth for some hours as a public spectacle to the garrison, then had me pulled out and confined in my cell, allowing no water to be taken to me for cleaning purposes. No one can imagine how I looked; my long hair had got into the mud, and my condition was really pitiable until some prisoners were permitted to wash and cleanse me."

When he finally escaped from Glatz, he went to Bohemia, to Nürnberg and to Vienna, whence he passed into Russia and entered the service of the czar for a time. Then he again travelled through northern Europe and returned to Vienna, where he was coldly received, and he started once more for Russia, but was intercepted at Danzig and again arrested in 1753, after which he suffered a more severe imprisonment for nearly ten years, characterised with such inhuman treatment that it must ever tarnish the reputation of the monarch who posed as a poet and a philosopher, the friend of Voltaire. Frederick the Great would hardly have earned his ambitious epithet had it depended upon the measure he meted out to his turbulent subject, Friedrich von der Trenck. He hated him cordially and persecuted him cruelly, behaving with a pitiless severity, and exhibiting such a contemptible spirit of revenge that he has been hopelessly disgraced by the enlightened verdict of history.

Von der Trenck has told his own story in one of the most remarkable books published in the eighteenth century, as the following excerpts will show. He was taken into custody at Danzig, despoiled of all his cash and valuables, and carried in a closed coach under escort to Lauenberg, and thence via Spandau to Magdeburg, where he was lodged in the destined prison. "It was a casemate," according to his own account of the cell, "the forepart of which was six feet wide and ten feet long, and divided by a separation wall in which were double doors with a third at the entrance of the casemate. The outer wall was seven feet thick, with one window giving upon the top of the magazine, sufficient for light, but I could see neither the heaven nor the earth. It was barred inside and outside, and there was a narrow grating in the middle, through which nothing could be seen. Six feet beyond my wall stood a row of palisades which prevented the sentry or any one from coming near enough to pass anything in. I had a bed with a mattress, the bedstead clamped down to the floor so that I might not drag it to the window and climb upon it to look out. A small stove and night table were fixed in like manner near the door.

"I was not ironed, and my daily ration was one pound and a half of ammunition bread and a jar of water. I had an excellent appetite, but the bread was mouldy and I could barely touch it. Through the avarice of the town major, the supplies were almost uneatable and for many months

following I suffered torture from raging hunger.... I begged for an increase, but prayers and entreaties were of no avail. 'It is the king's order,' I was told; 'we dare not give you more.' The commandant, General Borck, cruelly reminded me that I had long enough eaten patties out of the king's silver service, I must learn now to be satisfied with ammunition bread."

Von der Trenck turned his thoughts at once to the possibilities of escape. He soon found that he was left very much to himself; his food was brought every day and passed in to him through a slit in the door; but his cell was actually opened only once a week for the visit and inspection of the major of the fortress. He might work, therefore, for seven days without fear of interruption, and he proceeded forthwith to execute a plan he had formed of breaking through the wall of his cell into an adjoining casemate, which he learned from a friendly sentry was unoccupied and unlocked. This sentry and another spoke to him through the window, despite strict orders to the contrary. They gave him a good idea of the interior arrangements of the fortress, and told him that the Elbe was within easy reach. He might cross it by swimming or by a boat, and so gain the Saxon frontier.

Thus encouraged, he devoted himself with unremitting energy to his gigantic task of making a practicable hole in the wall. He found bricks in the first outward layers, and then came upon large quarry stones. His first difficulty was to dispose of the debris and material produced by the excavation; after reserving a part to replace and so conceal the aperture formed, the rest he gradually distributed when ground down into dust. The quarry stones gave infinite trouble, but he tackled them with the irons extracted from his bedstead, and he got other tools from his sentries,—an old ramrod and a soldier's clasp knife. The labour of piercing this wall of seven feet in thickness was incredible. It was an ancient building, the mortar was very hard, and it was necessary to grind the stones into dust. It lasted over six months, and at length the outer layer of bricks on the side of the adjoining casemate was reached.

Fortune now favoured Von der Trenck in the discovery of a veteran grenadier among his guards, named Gefhardt, who proved to be of inestimable service then and afterwards, and a devoted ally. Through the sentries' good offices, Trenck was enabled to communicate with his friends

outside, and through Gefhardt he made the acquaintance across the palisades of a Jewish girl of Dessau, Esther Heymannin, whose father was serving a sentence of ten years' imprisonment in Magdeburg. With splinters cut from his bed board, the prisoner manufactured a long staff which reached from his window beyond the palisades, and by means of it obtained writing materials, a knife and a file. This was effected by Esther with the assistance of two friendly sentries. Trenck wrote to his sister, who resided at Hammer, a village fourteen miles from Berlin, begging her to hand over a sum in cash to the girl when she called; he wrote another letter to the Austrian ambassador in Berlin, enclosing a bill on his agent in Vienna, for Trenck, although in the Prussian service, was of Austrian extraction and owned estates in that country. The girl succeeded in her mission to Hammer and took the money to Berlin, where the Austrian minister's secretary, Weingarten, assured her that a larger sum was on its way from Vienna, and that if she would return to Berlin after carrying her first good news to Magdeburg, it would be handed over to her. But on approaching the prison, the wife of one of the sentries met her with the sad news that both men had been arrested and lay in irons awaiting sentence, and Esther, rightly judging that all was discovered, hurriedly fled to Dessau. It may be added that the thousand florins to come from Vienna were retained by the Austrian secretary, and although Trenck years later, after his release, made constant applications to both Count Puebla and Weingarten, he never recovered the money. Weingarten had acted the traitor throughout and it was on his information, extracted from the Jewish girl, that the plot to escape became known. The consequences were far reaching, and entailed cruel reprisals upon Von der Trenck's friends. The two sentries, as has been said, were arrested, tried and condemned, one to be hanged and the other to be flogged up and down the streets of Magdeburg on three successive days. Trenck's sister was cruelly persecuted; she was fined heavily and plundered of her fortune, a portion of which was ingloriously applied to the construction of an entirely new prison in the Star Fort of the Magdeburg fortress, for the special confinement of her brother.

Von der Trenck, as his measures for evasion had become ripe, was on the point of breaking prison when a more terrible blow fell upon him. The new prison in the Star Fort had been finished most expeditiously, and orders were suddenly issued for his removal after nightfall. The major and a party

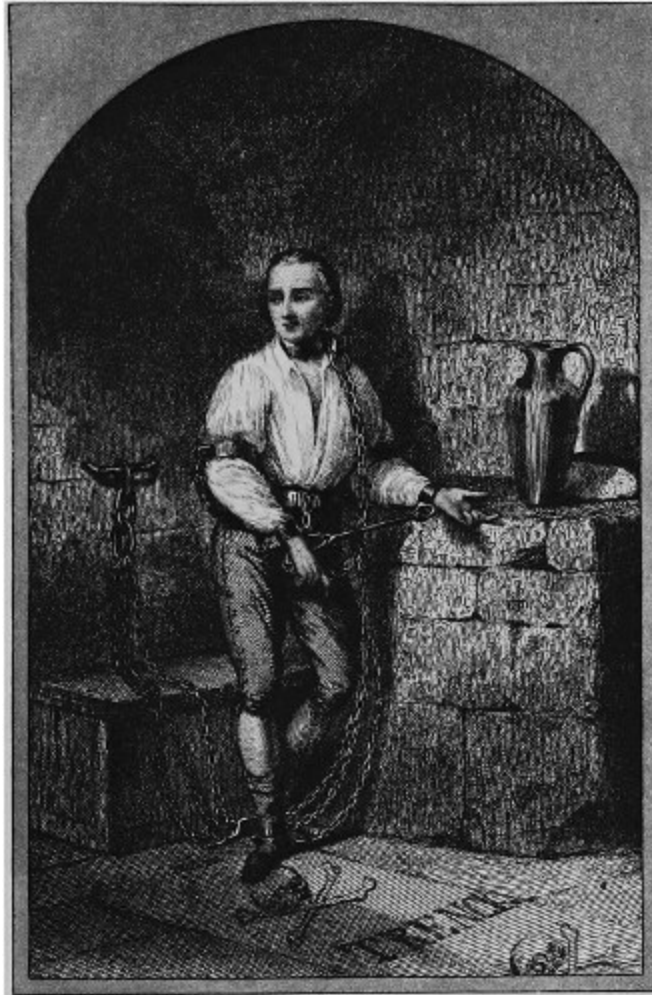
of officers, carrying lanterns, entered his cell. He was roused and directed to put on his clothes, and manacles were slipped on his hands and feet, but not before he had managed to conceal the knife on his person; he was blindfolded, lifted under the arms and conveyed to a coach, which drove through the citadel and down toward the Star Fort, where it had been rumoured he was to be beheaded. He was thrown into his new place of durance, and forthwith subjected to the pain and ignominy of being loaded with fetters; his feet were attached to a ring in the wall about three feet high by a ponderous chain, allowing movement of about two feet to the right and left; an iron belt as broad as the palm of a hand was riveted around his naked body, a thick iron bar was fixed to the belt, and his hands were fastened to the bar two feet apart. "Here," says Trenck, "was I left to my own melancholy reflections, without comfort or aid, and sitting in gloomy darkness upon the wet floor. My fetters seemed to me insupportable, until I became accustomed to them; and I thanked God that my knife had not been discovered, with which I was about to end my sufferings forthwith. This is a true consolation for the unfortunate man, who is elevated above the prejudices of the vulgar, and with this a man may bid defiance to fate and monarchs.... In these thoughts I passed the night; the day appeared, but not its brightness to me; however, I could, by its glimmerings, observe my prison. The breadth was eight feet, the length ten; four bricks were raised from the ground and built in the corner, upon which I could sit and lean my head against the wall. Opposite to the ring to which I was chained was a window, in the form of a semicircle, one foot high and two feet in diameter. This aperture was built upwards as far as the centre of the wall which was six feet thick, and at this point there was a narrow grating, secured both without and within with strong close iron bars from which, outward, the aperture sloped downward and its extremity was again secured with strong iron bars. My prison was built in the great ditch, close to the rampart, which was about eight feet broad on the inside; but the window reached almost to the second wall, so that I could receive no direct light from above and had only its reflection through a narrow hole. However, in the course of time my organs became so accustomed to this dimness that I could perceive a mouse run, but in winter, when the sun seldom or never shone in the ditch, it was eternal night with me. On the inside, before the grating, was a glass window, the middle pane of which might be opened to let in the air. In the wall my name, 'Trenck,' might be read, built with red bricks; and at my feet

was a gravestone, with a death's head and my name inscribed upon it, beneath which I was to have been interred. My gaol had double doors made of oak; in front of them was a sort of antechamber, with a window, and this was likewise fastened with two doors. As the king had given positive orders that all connection and opportunities of speaking with sentries should be debarred me, that I might not have it in my power to seduce them, my den was built so as not to be penetrated; and the ditch in which the prison stood was crossed on each side by palisades twelve feet high, the key being kept by the officer of the guards. I had no other exercise than leaping up and down on the spot where I was chained, or shaking the upper part of my body till I grew warm. In time I could move about four feet from side to side, but my shin bones suffered by this increase of territory.

Baron Friedrich von der Trenck

After the painting by Marckl

A love affair with the Princess Amelia was the cause of the long imprisonment of Von der Trenck by Frederick the Great, first in Glatz, from which he escaped, and afterward in the Star Fort of the Fortress of Magdeburg. He endured almost untold hardships, and his numerous attempts to escape showed marvellous persistence and almost superhuman endurance. His life was romantic and stormy. He went to Paris during the French Revolution and was finally guillotined by Robespierre.



“In this prison I sat for six months, constantly in water, which was perpetually dropping down upon me from the roof of the arch. I can assure my reader that my body was never dry during the first three months and yet I continued in health. As often as I was visited, which was every day at twelve o’clock after guard mounting, the doors were obliged to be left open some minutes, or the stifled vapour and dampness would have extinguished the candles of the lantern. In this condition I remained, abandoned by friends, without help or comfort; where reflection was my only employment and where, during the first days, until my constancy became confirmed and my heart more obdurate, nothing but the most frightful images of grief and woe were perpetually presenting themselves to my diseased imagination. The situation could not have been more calculated for despair, nor can I describe the cause which restrained my arm from suicide, for I was far above all narrow prejudices and never felt the least fear for occurrences

beyond the grave. My design was to challenge fortune and obtain my victory in spite of every impediment. The ambition to accomplish this victory was perhaps the strongest inducement to my resolve, which at length rose to such a degree of heroism and perseverance, that Socrates, in his old days, could not boast of more. He was old, ceased to feel, and drank the poison with indifference. I, on the contrary, was in the fire of my youth, and the aim to which I aspired seemed to be on all sides far distant. The present situation of my body and the tortures of my soul were of such a nature as gave me but little reason to expect that my frame could support them for any length of time.

“With these thoughts I struggled till midday, when my cage was for the first time opened. Sorrow and compassion were painted on the countenances of my guards; not one spoke a word, not so much as a good-morrow, and terrible was their arrival, for not being used to the monstrous bolts and locks, they rattled nearly half an hour at the doors before the last could be opened. A wooden bedstead with a mattress and a woollen cover were brought in, likewise an ammunition loaf of six pounds; upon which the town-major said: ‘That you may no longer complain of hunger, you shall have as much bread as you can eat.’ A water jar, containing about two quarts, was placed beside me, the doors were again shut and I was left to myself. How shall I describe the luxurious delight I felt in the moment I had an opportunity, for the first time, of satiating the raging hunger which had been eleven months gnawing at me! No joy seemed to be more perfect than this, and no mill could grind the hard corn with more expedition than my teeth devoured my ammunition loaf; no fiery lover, after a long and tedious languishing, could fall with more eagerness into the arms of his yielding bride, nor any tiger be more ravenous on his prey, than I on my humble repast. I ate, I rested, ate again, shed tears; took one piece after another, and before night all was devoured. My first transports did not last long and I soon learned that enjoyment without moderation creates disgust. My stomach was enfeebled by long abstinence, and digestion was impeded; my whole body swelled, my water jar was empty; cramps, colics and at last thirst, with incredible pains, tortured me continually until the next day. I already cursed those whom a short time before I had blessed for giving me enough to eat. Without a bed that night, I should certainly have despaired. I was not accustomed to my cruel chains, nor had I learned the art of lying

extended in them, which afterward time and habitude taught me; however, I could sit on my dry mattress. That night was one of the most severe I ever endured. The following day, when my prison was opened, I was found in the most wretched condition. The officers were amazed at my appetite and offered me a loaf. I refused it, believing that I should have no occasion for more. However, they brought me one, gave me water, shrugged their shoulders and wished me happiness, for to every appearance I could not suffer long; and the door was shut again without my being asked if I wanted any further assistance.... During the first three days of my melancholy incarceration my condition appeared to me quite insupportable and deliverance impossible. I found a thousand reasons which convinced me that it was now time to put an end to my sufferings.”

Yet we read that this man’s indomitable pluck survived and once more his thoughts turned to escape. He was encouraged at finding that the doors of his cell were only of wood, and he conceived the idea that he might cut out the locks with the knife he had so fortunately brought with him from the fortress. “I immediately made an attempt to rid myself of my irons, and luckily forced the fetter from my right hand though the blood trickled from my nails. I could not for a long time remove the other; but with some pieces of the brick from my seat I hammered so fortunately against the rivet, which was but negligently fastened, that I finally effected this also, and thus freed both my arms. To the belt round my body there was only one hasp fastened to the chain or arm bar. I set my foot against the wall and found I could bend it; there now remained only the principal chain between the wall and my feet. Nature had given me great strength; I twisted it across, sprang with force back from the wall, and two links instantly gave way. Free from chains and fancying myself already happy, I hastened to the door, groped in the dark for the points of the nails by which the lock was fastened, and found that I had not a great deal of wood to cut out. I immediately cut a small hole through the oak door with my knife and discovered that the boards were only one inch thick, and that there was a possibility of opening all the four doors in the space of one day. Full of hope, I returned to put on my irons; but what difficulties had I here to surmount!

“The broken link I found, after a long search, and threw into my sink. Fortunately for me, nobody had examined my cell because they suspected

nothing. With a piece of my hair ribbon I bound the chain together, but when I tried to put the irons on my hands, they were so swollen that every attempt was in vain. I worked the whole night to no purpose. Twelve o'clock, the visiting hour, approached. Necessity and danger urged me on; fresh attempts were made with incredible torture, and when my keepers entered everything was in proper order."

After this Trenck concentrated all his efforts upon cutting out the locks of his doors. The first yielded within an hour, but the second was a far more difficult task, as it was also closed by a bar and the lock was opened on the outside. The work was carried on in darkness and his self-inflicted wounds bled profusely. But when the second door had been cut through, he came out into half daylight, which enabled him to cut out the third lock as readily as the first. The fourth, however, was placed like the second and involved equal labour. He was attacking it bravely when his knife broke in his hand and the blade fell to the ground.

Despair then seized him, and picking up his knife blade he opened the veins of his left arm and foot, meaning to bleed to death. When almost insensible, a voice crying, "Baron Trenck!" roused him, and on asking who called, he learned that it was his staunch friend and ally, the grenadier Gefhardt, who had come to the rampart to comfort him. He told Gefhardt that he was lying in his blood and at the point of death, but the stout old soldier consoled him with the assurance that it would be much easier to escape here, as there were no sentries over him and only two in the whole fort. Trenck listened with revived hope and determined on a new plan of action. The seat in his prison was built of brickwork, still green, and he quickly tore it down to provide himself with missiles, which he laid out ready for use against his gaolers at their next visit. They came at midday and were horrified to find the three inner doors opened, the last of them barred by a terrific figure, wounded and bleeding, and in a posture of desperate defiance. In one hand he held a brick and with the other he brandished his knife blade, crying fiercely, "Let no one enter; I will kill all who attempt it. You may shoot me down, but I will not live here in chains. Stand back. I am armed."

The commandant had inadvertently stepped forward but retired at these threats, and ordered his grenadiers to storm the cell. The narrow opening

allowed only one to enter at a time and a combined attack was impossible. All halted irresolute under the menace of the missiles, and in the pause the major and chaplain tried to reason with Von der Trenck. The former implored him to yield and surrender the knife blade, as the major was responsible for his possession of it and would no doubt lose his place. These entreaties prevailed, and Trenck gave in, being promised milder treatment. His condition cried aloud for pity; he lay there suffering and exhausted. A surgeon was called in to apply restoratives and dress his wounds, and for four days he was relieved of his irons and was well fed with meat soup. Meanwhile the cell doors were repaired and bound with iron bands. The fetters were reimposed, but that which chained the prisoner to the wall and which he had broken was strengthened. No amelioration of his state was possible, for the king was implacable and still ferociously angry. Von der Trenck remained in extreme discomfort. As his arms were constantly fastened to the iron cross bar and his feet to the wall, he could put on neither his shirt nor his breeches; the former, a soldier's shirt, was tied together at the seams and renewed every fortnight; the breeches were opened and buttoned up at the sides; on his body he wore a blue frock of coarse common blue cloth, and on his feet were rough ammunition stockings and slippers.

“It is certain,” says Trenck, “that nothing but pride and self-love, or rather a consciousness of my innocence, together with a special confidence in my resolutions, kept me afterward alive. The hard exercise of my body and my mind, always busy in projects to obtain my freedom, preserved at the same time my health. But who would believe that a daily exercise could be taken in my chains? I shook the upper part of my body and leaped up and down till the sweat poured from my brows, and by this means I grew fatigued and slept soundly.

“By degrees I accustomed myself to my chains. I learned to comb my hair and at length even to tie it with one hand. My beard, which had not yet been shaved, gave me a frightful appearance. This I plucked out; the pain was considerable, more especially about the lips; however, I became accustomed to this also and performed the operation during the following years, once every six weeks or two months, for the hairs being pulled out by the roots required that length of time to grow again long enough to lay hold of them

with my nails. Vermin never tormented me; the great dampness of the walls was not favourable to them; neither did my limbs swell, because I took the exercise already mentioned; the constant darkness alone was the greatest hardship. However, I had read, learned and already seen and experienced much in the world; therefore I always found matter to banish melancholy from my thoughts, and in spite of every obstacle, could connect my ideas as well as if I had read them, or written them on paper. Habit made me so perfect in this mental exercise that I composed whole speeches, fables, poems and satires, and repeated them aloud to myself. At the same time they were impressed so forcibly on my memory that after I obtained my freedom I could have written a couple of volumes of such works.

“I employed myself in projecting new plans. That I might be more nearly observed, a sentry was posted at my door who was always chosen from what were called the trusty men, or the married men and natives. These, as will be related in the course of my memoirs, were easier and safer to bring over to my relief than strangers; for the Pomeranian is honest and blunt, and consequently easy to move and be persuaded into anything you please. About three weeks after the last attempt, my honest Gefhardt was posted sentry over me. As soon as he came upon his post we had a free opportunity of conversing with each other, for when I stood with one foot on my bedstead my head reached as high as the air-hole of the window. He described the situation of my gaol to me, and the first project we formed was to break under the foundation, which he had seen built and assured me was only two feet deep. I wanted money above all things, and this I contrived to get in the following manner: After Gefhardt was first relieved, he returned with a wire round which a sheet of paper was rolled, and also a piece of small wax candle which luckily he could pass through the grating; I got likewise some sulphur, a piece of burning tinder and a pen; I now had a light, pricked my finger, and my blood served for ink. I wrote to my worthy friend, Captain Ruckhardt, at Vienna, described to him my situation in a few words, gave him a draft for three thousand florins upon my revenues and settled the affair in the following manner: He was to keep one thousand florins for the expenses of his journey and to arrive without fail on the 15th of August in Gummern, a small Saxon town, only two miles from Magdeburg; there he was to appear at twelve o’clock with a letter in his hand, which with the two thousand florins he should give to a man whom

he would see there carrying a roll of tobacco. Gefhardt had these instructions, received my letter through the window in the same manner as he had given me the paper, sent his wife with it to Gummern and there put it safely into the post office.

“At length the 15th of August arrived,—but some days passed before Gefhardt was posted as sentry over me. How did my heart leap with happiness when he suddenly called out to me:—‘All is well—we have succeeded.’ In the evening it was agreed in what manner the money was to be conveyed to me; as my hands were fettered, I could not reach to the grate of the window, and as the air-hole was too small, we resolved that he should do the work of cleaning my cell and should convey the money to me by putting it into my water jar when he filled it. This was fortunately effected, but judge of my astonishment when I found the whole sum of two thousand florins, of which I had promised and desired him to take the half. Only five pistoles were wanting, and he absolutely refused any more. Generous Pomeranian, how rare is thy example!

“I now had money to put my designs into execution. The first plan was to undermine the foundation of my prison, and to do this it was necessary that I should be free from chains. Gefhardt conveyed to me a pair of fine files. The cap or staple of the foot-ring was made so wide that I could draw it forward a quarter of an inch; therefore I filed the inside of the iron which passed through it. The more I cut out, the further I could draw the staple, till at last the whole inside iron through which the chain passed was entirely cut through, the cap remaining on the outside entire. Thus my feet were free from the wall and it was impossible, with the most careful examination, to find the cut, as only the outside could be searched. By squeezing my hands every day, I made them more pliant and at last got them through the irons. I then filed round the hinge, made myself a screw-driver with a twelve-inch nail drawn from the floor, and turned the screws as I pleased, so that no marks could be seen when I was visited. The belt round my body did not at all hinder me. I filed a piece out of a link of the chain which fastened the bar to my arms, and the link next to it I filed so small as to be able to get it through the opening. I then rubbed some wet ammunition bread upon the iron to give it the proper colour, stopped the open link with dough, and let it dry over night by the heat of my warm body, then put spittle upon it, to give

it the burnish of iron; by this invention, I was sure that without striking upon each with a hammer it would be impossible to find out that which was broken.

“It was now in my power to get loose when I chose. The window never was examined; I took out the hooks with which it was fastened in the wall, but I put them properly in again every morning and made all as it should be with some lime. I procured wire from my friend and endeavoured to make a new grating. This I likewise completed; therefore I took the old one from the window and fixed mine in its place; this opened a free communication with the outside, and by this means I obtained light and fire materials. That my light might not be seen, I hung my bed cover before the window, and thus I could work as it was convenient.”

Trenck now proceeded to penetrate the floor, which was of oaken planks in three layers, altogether nine inches thick. He used the bar which had fastened his arms and was now removable, and which he had ground on the gravestone till it formed an excellent chisel to serve in digging into the boards. These he patiently cut through and pulled up, reaching the fine sand below the foundation on which the Star Fort was built. The wood splinters were hidden, the sand run over in long narrow linen bags provided by Gefhardt, which could be dragged through the window. By the same friendly help he obtained a number of useful implements; a knife, a bayonet, a brace of pocket pistols, and even powder and shot, all of which he concealed under the floor.

He ascertained now that the foundation was four feet thick and that a very deep hole must be dug to get a passage underneath the outer wall, a long, wearisome operation demanding time, labour and caution, and especially difficult of execution, with his figure twisted into an awkward shape so that his hands might extract the sand. There was no stove in the cell and it was bitterly cold, but he was warmed by his joyous anticipations of escape. Gefhardt kept him well supplied with provisions, sausages and hung beef, brought in paper for writing and supplies for light, so that the time did not hang heavily.

A sudden catastrophe nearly ruined everything. In replacing the window sash, it slipped out of his hands and fell, breaking three panes of glass.

Detection was now imminent, as fresh panes must be inserted before the sash was refixed. Trenck was in despair, and as a last resource appealed to the sentry of the night, a stranger, whom he offered thirty pistoles to seek new panes. The man was happily agreeable, and by good fortune the gate of the palisades in the ditch had been left unlocked, so he prevailed on a comrade to relieve him for a short time and ran down into the town, taking with him the dimensions of the glass, secured the panes, and returned with them in time to allow Trenck to complete his task as glazier. But for this lucky ending, Gefhardt's complicity would have been discovered and he would certainly have been hanged.

Misfortunes never come singly. Trenck wanted more money and wrote to his friend in Vienna, enclosing a draft which he was to cash and asking him to bring the effects to the Saxon village of Gummern, a few miles from Magdeburg, and there await Trenck's messenger. This letter was to be despatched by Gefhardt's wife from Gummern across the frontier. The foolish woman told the Saxon postmaster that the letter was of the utmost importance, affecting a law suit of Gefhardt's in Vienna, and she was so anxious for its safe transmission that she handed it over with a large fee, ten rix dollars. The postmaster's suspicions were aroused; he opened the letter, read it, and thinking to curry favour, brought it to Magdeburg, where it fell into the hands of the governor, Prince Ferdinand of Brunswick. All the fat was then in the fire.

The first intimation Trenck received was from the prince who came in person to his cell, followed by a large staff of officials. The governor called upon the prisoner to confess who had carried his letter to Gummern. Trenck denied that he had sent any letter, and his cell was searched forthwith. Smiths, carpenters and masons entered, but after an hour's work failed to discover more than the false grating in the window. The prince upbraided, argued, threatened; but Trenck obstinately refused to speak. The governor had scarcely been gone an hour when some one came in saying that one of his accomplices had already hanged himself, and, fearing that it was his good friend, he was on the point of betraying Gefhardt, when he heard by accident that the suicide was some one else. He took fresh courage from the fact that his diggings had not been exposed, and that he had five hundred florins in gold safely concealed, with a good supply of candles and all his

implements. After this collapse, there was a change in Trenck's condition. The regiment in the garrison went off to the Seven Years' War which had just broken out, and was relieved by a party of militia, and a new commandant took charge, General Borck, who was informed by the king that he must answer for Trenck with his head. Borck was timorous and mistrustful, a stupid bully, who acted to his prisoner "as an executioner to a criminal." He increased Trenck's irons, and had a broad neck ring added with a chain that hung down and joined the anklet; he removed the prisoner's bedding, did not even give him straw, and constantly abused him with "a thousand insulting expressions." "However," says Trenck, "I did not remain a single word in his debt and vexed him almost to madness."

The object of the governor was to cut Trenck off from all communication with mankind. To assure complete isolation, the four keys of his four doors were kept by four different persons; the commandant held one, the town-major another, the third was kept by the officer of the day and the fourth by the lieutenant of the guard. The prisoner had no opportunity for speaking to any of them singly, until the rule slackened. The commandant rarely appeared; Magdeburg became so filled with prisoners of war that the town-major gave up his key to the officer of the day; and the other officers, when they dined with General Walrabe, who was also confined in the Star Fort, passed their keys to the lieutenant of the guard. So in this way Trenck sometimes had a word with each of them alone, and in due course secured the friendship of two of them.

At this period his situation was truly deplorable. "The enormous iron round my neck," he says, "pained me and impeded motion, and I dared not attempt to disengage myself from the pendent chains till I had for some months carefully observed the method of examination and learned which parts they supposed were perfectly secure. The cruelty of depriving me of my bed was still greater; I was obliged to sit upon the bare ground and lean with my head against the damp wall. The chains that descended from the neck collar I was obliged to support, first with one hand and then with the other, for, if thrown behind, they would have strangled me, and if hanging forward occasioned excessive headaches. The bar between my hands held me down, while, leaning on one elbow, I supported my chains with the other, and this so benumbed the muscles and prevented circulation that I

could perceive my arms sensibly waste away. The little sleep I could have in such a situation may easily be supposed, and at length body and mind sank under this accumulation of miserable suffering, and I fell ill of a burning fever. The tyrant Borck was inexorable; he wished to expedite my death and rid himself of his troubles and his terrors. Here did I experience the condition of a sick prisoner, without bed, refreshment, or aid from a human being. Reason, fortitude, heroism, all the noble qualities of the mind, decay when the bodily faculties are diseased, and the remembrance of my sufferings at this dreadful moment still agitates, still inflames my blood so as almost to prevent an attempt to describe what they were. Yet hope did not totally forsake me. Deliverance seemed possible, especially should peace ensue; and I sustained, perhaps, such suffering as mortal man never bore, being, as I was, provided with pistols or any such immediate mode of despatch. I continued ill about two months, and was so reduced at last that I had scarcely strength to lift the water jug to my mouth. What must be the sufferings of that man who sits two months on the bare ground in a dungeon so damp, so dark, so horrible, without bed or straw, his limbs loaded as mine were, with no refreshment but dry ammunition bread; without so much as a drop of broth, without physic, without a consoling friend, and who under all these afflictions must trust for his recovery to the efforts of nature alone!”

The officers on guard all commiserated him, and one of them, Lieutenant Sonntag, often came and sat with him when he could get all the keys. This officer was poor and in debt and did not refuse the money liberally offered by Trenck. A fresh plan of escape was soon conceived. As before, the essential preliminary was to obtain more cash to be employed in further bribery. The lieutenant, Sonntag, provided false handcuffs so wide that Trenck could easily draw his hands out, and he was soon able to disencumber himself at pleasure of all his other chains except the neck-iron. It was no longer possible to get out by the hole first constructed, as the sentinels had been doubled, and Trenck began driving a new subterranean passage thirty-seven feet long to the gallery in the principal rampart, through which, if gained, a free exit was assured.

Another superhuman task was begun, which lasted for nearly a year. A deep hole was sunk, and on reaching the sand below the foundation, a transverse

passage was driven through it, entailing such severe fatigue that at the end of one day's work Trenck was obliged to rest for the three following days. It was necessary to work naked, as the dirtiness on his shirt would have been observed; at the depth of four feet the sand became wet and a stratum of gravel was reached. "The labour toward the conclusion," Trenck tells us, "became so intolerable as to incite despondency. I frequently sat contemplating the heaps of sand during a momentary respite from work, and thinking it impossible I could have strength or time to replace all things as they were. I thought sometimes of abandoning my enterprise and leaving everything in its present disorder. Recollecting, however, the prodigious efforts and all the progress I had made, hope would again revive and exhausted strength return; again would I begin my labours to preserve my secret and my expectations. When my work was within six or seven feet of being accomplished, a new misfortune happened that at once frustrated all further attempts. I worked, as I have said, under the foundations of the rampart near where the sentinels stood. I could disencumber myself of my fetters, except my neck-collar and its pendent chain. This, although it had been fastened, got loose as I worked, and the clanking was heard by one of the sentinels about fifteen feet from my dungeon. The officer was called; they laid their ears to the ground, and heard me as I went backward and forward to bring my earth bags. This was reported the next day, and the major, who was my best friend, with the town-major, a smith and a mason entered my prison. I was terrified. The lieutenant, by a sign, gave me to understand I was discovered. An examination was begun, but the officers would not see, and the smith and mason found everything, as they thought, safe. Had they examined my bed they would have seen the ticking and sheets were gone."

A few days later the same sentinel, who had been called a blockhead for raising a false alarm, again heard Trenck burrowing, and called his comrades. The major came also to hear the noise, and it was now realised that Trenck was working under the foundation toward the gallery. The officials entered the gallery at the other end with lanterns, and Trenck as he crawled along saw the light and their heads. He knew the worst, and hurrying back to his cell, had still the presence of mind to conceal his pistols, candles, paper and money in various holes and hiding places, where they were never found. This was barely accomplished before his guards

arrived, headed by the brutal and stupid major, Bruckhausen by name. The hole in the floor was at once filled up and the planking reinstated; his foot-chains, instead of being merely fastened as before, were screwed down and riveted. The worst trial for the moment was the loss of his bed, which he had cut up to make into bags for the removal of the sand.

At this time General Borck was ill with an ailment that soon ended in mental derangement. Another general, Krusemarck, replaced him and proceeded to visit Trenck. They had been old friends and brother officers, but the general showed him no compassion; on the contrary, he abused him roundly, promising him even more severe treatment. It was then that the inhuman order was issued to the night guards to waken Trenck every quarter of an hour,—a devilish form of cruelty unsurpassed in prison punishments. Kindly nature, however, came to the rescue, and Trenck learned to answer automatically in his sleep; yet this cruel device was continued for four years and until within a few months of his final release.

The precautions taken effectually debarred the prisoner from any fresh attempt at evasion. A new governor had replaced the madman Borck, Lieutenant-Colonel Reichmann, a humane and mild-mannered officer. About this time, several members Of the royal family, including Princess Amelia, came to reside at Magdeburg and showed a kindly interest in Trenck's grievous lot; his cell doors were presently opened each day to admit daylight and fresh air. He found employment, too, for his restless energies and was permitted to carve verses and figures upon the pewter cup provided as part of his cell furniture. The first rude attempt was much admired, the cup was impounded, and a new one served out; several, indeed, were provided in succession, so that Trenck became quite expert in this artistic employment and laboured at it continuously until the day of his release. By means of these cups he opened up communication with the outside world. Hitherto all correspondence had been forbidden; no one under pain of death might converse with him or supply him with pen, ink or paper. Strange to say, he was allowed to engrave what he pleased upon the pewter, and the cups were in great demand and passed into many hands. One reached the empress-queen of Austria and stimulated her to plead for Trenck's pardon through her minister accredited to the court of Frederick. The engraving that touched her feelings was that of a bird in a cage held by

a Turk, with the inscription, "The bird sings even in the storm: open his cage and break his fetters, ye friends of virtue, and his songs shall be the delight of your abodes." The demand for these cups was so keen that Trenck worked at them by candle light for eighteen hours a day, and the reflected lustre from the pewter seriously injured his eyesight. It is a pathetic picture,—that of the active-minded, undefeated captive, labouring incessantly although weighed down by chains and the terrible encumbrance of a huge collar which pressed on the arteries at the back of his neck and occasioned intolerable headache.

Although repeatedly foiled in his assiduous attempts to break prison, the indomitable Trenck never abated his unshaken desire to compass freedom. At length opportunity offered for a larger and more dangerous project: the seizure of the Star Fort and the capture of Magdeburg. At that time the war was in full progress and the garrison of the fortress consisted of only nine hundred discontented men of the militia. Trenck had already won over two majors and two lieutenants to his interest. The guard of the Star Fort was limited to one hundred and fifteen men. The town gate immediately opposite was held by no more than twelve men under a sergeant; just within it was a barrack filled with seven thousand Croat prisoners of war, several of whose officers were willing to join in an uprising. It was arranged that a whole company of Prussians should turn out at a moment's notice with muskets loaded and bayonets fixed, to head the attack as soon as Trenck had overpowered the two sentinels who stood over him, secured them and locked them into his cell. It was an ambitious plan and was well worth the attempt. Magdeburg was the great national storehouse, holding all the sinews of war, treasure and munitions, and Trenck in possession, backed with sixteen thousand Croats, might have dictated his own terms. The plot failed through the treachery of an agent despatched to Vienna with a letter, seeking cooperation; it was given into the wrong hands and was sent back to Magdeburg, where the governor, then the landgrave of Hesse-Cassel, read it and took prompt precautions to secure the fortress. An investigation was ordered, and Trenck was formally arraigned as a traitor to his country, but he sturdily denied the authorship of the incriminating letter, and the charge was not brought home to him. The landgrave was more merciful than former governors and showed great kindness to Trenck, relieved him of his intolerable iron collar, sent his own private physician to attend him in

his illness and revoked the cruel order that prescribed his incessant awakening during the night.

A fresh attempt to undermine the wall was soon undertaken by the captive, but he was presently discovered at work and the hole in the floor walled up. The humane landgrave did not punish him further, and in the period of calm that followed, Trenck's hopes were revived with the prospect of approaching peace, for he was now at liberty to read the newspapers. But when the landgrave succeeded to his throne and left Magdeburg, Trenck in despair turned his thoughts once more to a means of escape, and decided on the same method of driving a tunnel underground. A dreadful accident befell him in this particular attempt. While mining under the foundation, he struck his foot against a loose stone which dropped into the passage and completely closed the opening. Death by suffocation stared him in the face and paralyzed his powers. For eight full hours he could not stir a finger to release himself, but at last he managed to turn his body into a ball and excavate a hole under the stone till it sank and left him sufficient space to crawl over it and get out.

All was in a fair way to final evasion when Trenck had another narrow escape from discovery. It occurred through a pet mouse he had tamed and trained to come at his call, to play round him and eat from his hand. One night Trenck had encouraged it to dance and caper on a plate, and the noise made attracted the attention of the sentries, who gave the alarm. An anxious visitation was made at daybreak; smiths and masons closely scrutinised walls and floors and minutely searched the prisoner. Trenck was asked to explain the disturbance, and whistled to his mouse which came out and jumped upon his shoulder. The alarm forthwith subsided, and yet he found what the searchers had missed,—that his mouse had nibbled away the chewed bread with which he had filled the interstices between the planks of the floor which he had cut to penetrate below.

Trenck's efforts did not flag till the very last hour of his imprisonment, nor did his gaolers relax their determination to hold him. One of their last devices was to reconstruct and strengthen his prison cell by paving the floor with huge flagstones. His courage was beginning to fail, but the darkest hour was before the dawn. Quite unexpectedly on Christmas Eve, 1763, the

governor appeared at his cell door, accompanied by the blacksmith. "Rejoice," he cried, "the king has been graciously pleased to relieve you of your irons;" and again,—“The king wills that you shall have a better apartment;" and last of all,—“The king wills that you shall go free."

It has been said that the empress-queen of Austria had been moved to compassion for Trenck by the engraving on the pewter cup that came into her hands. His beloved Princess Amelia had also been active in trying to obtain his release. She employed a clever business man in Vienna, who at her bidding and for a sum of two thousand ducats won over a confidential servant of Maria Theresa, and caused him to intercede for the wretched prisoner at Magdeburg, who after all was still an Austrian officer. The kind-hearted Hapsburg sovereign wrote a personal letter to Frederick, her great antagonist, and the king of Prussia at last pardoned the miserable man who had dwelt for ten years in a living tomb. Like all political prisoners, he was obliged to bind himself by oath to the following conditions, which were not exactly performed by him:—that he would take no revenge on anyone; that he would not cross the Saxon or the Prussian frontiers to re-enter those states; that he would neither speak nor write of what had happened to him; that he would not, so long as the king lived, serve in any army either in a civil or military capacity.

After his liberation, he first lived in Vienna, where he came into personal contact with Maria Theresa and the emperors Francis and Joseph II. Later he settled at Aix-la-Chapelle, where he married the daughter of Burgomaster de Broe, and conducted a flourishing wine business. He undertook long journeys, and published his poems and autobiography, which had an immense success and were translated into almost every European language; he was also the editor of a newspaper and another periodical entitled *The Friend of Men*, and he amassed a handsome fortune.

After the death of Frederick, Trenck was allowed to return to Berlin and his confiscated goods were restored to him. His first visit was to his liberator and earliest love, the Princess Amelia; the interview was most affecting and heartrending. They were both greatly changed in appearance and more like the ghosts of their former brilliant selves. She inquired for his numerous children, for whom she assured him she would do all in her power, and he

parted from her full of gratitude and greatly moved. It is a creditable trait in Trenck's character that in spite of all his sufferings he did not hate the Prussian king, Frederick the Great.

One would think this aged adventurer would now seek rest, but far from it. He was attracted to Paris by the outbreak of the French Revolution, and he felt the necessity for playing an active part. He finally fell into the hands of Robespierre, and was tried and guillotined at the age of sixty-nine. On the scaffold his great stature, for he was much above the average height, towered over his fellow-sufferers. He looked quietly at the crowd and said, "Why do you stare? This is but a comedy à la Robespierre!"

The day before his tragic death he gave to a fellow-prisoner, Count B——, the last memento he possessed of the lady who had been the first innocent cause of his sufferings, a tortoise-shell box with the portrait of the Princess Amelia. The 9th Thermidor saved the count, and the box was long preserved in his family.

CHAPTER III

NOTORIOUS POISONERS

Famous female poisoners—This crime not so prevalent in Germany as in southern countries—Frau Ursinus—Her early history—Mysterious deaths of her husband and aunt—Attempted murder of her man-servant—Arrested and sentenced to imprisonment for life in the fortress of Glatz—Anna Schönleben or Zwanziger—Deaths followed her advent into different families—Arrested at Bayreuth, confessed her guilt and was condemned to death.

In the early decades of the nineteenth century, when the Napoleonic wars caused constant conflict and change, crime flourished with rank growth in most European countries and nowhere more than in the German states,—both those that remained more or less independent and those brought into subjection to the French Empire. Whole provinces were ravaged by organised bands of brigands, such as that which obeyed the notorious Schinderhannes; travelling was unsafe by all ordinary roads and communications; thieves and depredators abounded; murderers stalked rampant through the land; the most atrocious homicides, open and secret, were constantly planned and perpetrated; swindling and imposture on a large scale were frequently practised, and crimes of every kind were committed by all kinds of people in all classes of society.

Poisoning was not unknown as a means of removal, although it never prevailed to the same extent as among people of warmer blood. It never grew into an epidemic affecting whole groups and associations, but it occurred in individual cases, exhibiting the same features as elsewhere. This form of feloniously doing to death has ever commended itself to the female sex. Women are so circumstanced as wives, nurses and in domestic service

that they possess peculiar facilities for the administration of poison, and so the most prominent poisoners in criminal history have been women.

A curious instance is to be found in the German records, and the story may be told in this place as belonging to this period. The murderess was a certain Frau Ursinus, widow of a privy counsellor who was also president of a government board. Ursinus was a highly esteemed member of the upper classes of Berlin. Deep interest attached to this case of Frau Ursinus from the prominent position occupied by her late husband, her considerable fortune, her prepossessing person and spotless reputation, as well as her cultured mind which made her conspicuous in the society of the Prussian capital. The news, therefore, of her sudden and unexpected arrest on a criminal charge, caused great consternation and surprise.

Early in May, Frau Ursinus was at a party, playing whist, when a footman, evidently greatly perturbed, came in and said that several police officials were in the anteroom and wished to speak to her. She rose without manifesting any emotion, put down her cards, excused herself to her fellow-players for this slight interruption, doubtless caused by a mistake which would soon be accounted for, and adding that she hoped soon to return, left the room. She did not, however, come back to resume her game, and after a few moments of strained expectation it became known that she had been arrested and taken to prison on a criminal charge.

Her servant, Benjamin Klein, had complained of not feeling well one day toward the end of the previous February. His mistress had accordingly given him a cup of broth and a few days later some currants. These remedies were of no avail, and he became worse. When, on February 28th, Frau Ursinus offered him some rice, he refused it, whereupon she threw it away, a singular proceeding on her part, as he thought, and his suspicions were aroused that the food she had previously administered to him had contained something deleterious. He made a strict search in consequence through his mistress's apartments, and presently discovered a powder labelled arsenic in one of the cupboards. This happened on March 21st. On the following day, Frau Ursinus offered him some plums, which he accepted but prudently did not taste. Then he confided the result of his search and his fears to his mistress's maid, Schley, who took the plums to

her brother, an apprentice in a chemist's shop, where they were analysed. The plums were found to contain arsenic and the master of the establishment immediately laid the information before the authorities; an inquiry was set on foot, the principal witnesses were examined, and in the end Frau Ursinus was taken into custody. These facts came out after the arrest and a good deal more was assumed. It was rumoured that she had not only poisoned her deceased husband three years previously, but also her aunt, a spinster called Witte as well, and a Dutch officer of the name of Rogay. These deaths had occurred in sequence after that of the privy counsellor.

Frau Ursinus persistently denied all the earlier charges of administering poison, but admitted the attempts upon her servant, Klein. A thorough investigation followed, and a number of damning facts in her past and present life were brought to light.

Sophie Charlotte Elizabeth, the widow Ursinus, was born on May 5, 1760, and was the daughter of the secretary of the Austrian legation, Weingarten, afterward called Von Weiss. Contemporary historians call him Baron von Weingarten. He was supposed to have turned traitor to the Austrian government, and this led to his settling in Prussia and to his change of name. According to common belief, he had really refused a tempting offer made to him by the Prussian government to hand over some important papers, very much wanted. But he was in love, and the mother of his betrothed, an enthusiastic partisan of Frederick the Great, managed to abstract the papers from a cupboard. He had to bear the brunt of this misdeed and voluntarily accepted exile. Charlotte lived with her parents until her twelfth year, and was then committed to the care of a married sister in Spandau to be educated. Her parents were Catholics but she declared herself a Lutheran. Later, the father and mother being unwilling to countenance a love affair into which their daughter had been drawn, took up their residence in Stendal. Here Charlotte became acquainted with her future husband, at that time counsellor of the Supreme Court, who after a year's acquaintance, sought her hand. She did not precisely love this grave, sickly, elderly man, but she confessed to a sincere liking and was willing to marry him on account of his many excellent qualities, his position and his prospects. She was then in her nineteenth year. The pair, after moving to

and from a great deal, finally settled in Berlin, where Privy Counsellor Ursinus died on September 11, 1800.

The match had not been happy; husband and wife lived separately; they were childless and Frau Ursinus was inclined to flirtation, having taken a strong fancy to a Dutch officer named Rogay. The aged husband did not seem to disapprove of the attachment, which his wife always maintained was perfectly platonic, and it was generally believed that the phlegmatic Dutchman was incapable of the "grand passion." After leaving Berlin, probably to escape her influence, Rogay returned and died there three years before the privy counsellor. When the propensity of Frau Ursinus to secret poisoning was discovered, the making away with this Dutch officer was laid to her charge, but she was acquitted of the crime, and it was indeed sworn by two competent physicians that Rogay had died of consumption.

Privy Counsellor Ursinus died very suddenly and mysteriously, his death being in no wise attributed at the time to his chronic ailments. But when, three years later, the widow came under suspicion, serious doubts were entertained as to whether she had not poisoned her husband. Her own account as to the manner of his death only strengthened the presumption of her guilt. According to her statement, she had given a small party on September 10th, her husband's birthday. He was in fairly good spirits, but had remarked more than once that he feared he was not long for this life. On retiring to rest, his wife saw nothing wrong with him, but in the middle of the night his moans and groans awakened her. An emetic stood handy by the bedside, kept thus in readiness by the doctor's order (which the doctor subsequently denied), and Frau Ursinus wished him to take it, but gave him an elixir instead. As he did not improve, she tried the emetic and rang up the servants, but none came; then she sought the porter, desiring him to call them, but still no one appeared. So she remained alone with her suffering husband through the entire night. The following morning he was in a very weak and feeble condition and he died on the afternoon of the same day.

Grave suspicion of foul play was now aroused and Frau Ursinus was arrested. It was urged against her that she had shown no real desire to summon the servants; that she made no attempt to call in the doctor; that the family physician had never prescribed the emetic; why, then, was it there?

A worse charge against the wife was her volunteering the statement that she kept arsenic to kill rats, a conventional excuse often made in such cases. And in this case it was put forward quite unnecessarily, for there were no rats in the house.

Yet there was no definite charge against Frau Ursinus. No motive for murder could be ascertained. They were by no means bad friends, this wedded pair. Frau Ursinus might in her secret heart desire to be freed from the bond that tied her to an infirm old man, and marry another husband, but she had always appeared grateful to the privy counsellor and treated him kindly. On the other hand, it was proved that she had purchased a quantity of arsenic for the purpose of destroying the fictitious rats. Sufficient doubt existed to justify the exhumation of the body and proceed to a postmortem examination. No definitely incriminating evidence was, however, forthcoming. The autopsy was conducted by two eminent doctors, who could find no positive traces of arsenic, but there was a presumption from the general condition of the vital organs and convulsive contraction of the limbs that it had been used. Three physicians who had attended Herr Ursinus in his last illness testified that his death resulted from a natural cause, that of apoplexy of the nerves, and repudiated all idea of arsenic. At this stage there was a foregone conclusion that Frau Ursinus would be quite exonerated from the felonious charge.

Suddenly the situation entered upon a new phase. Frau Ursinus was accused of another and entirely new murder, that of her aunt, a maiden lady named Witte, who had died at Charlottenburg on the 23d January, 1801, after a short illness. No suspicious circumstances were noted at the time of her death, but after the arrest of Frau Ursinus, the possibility of her complicity in this deed took definite shape. A careful inquiry ensued and the inculpation, amounting to little less than certainty, was soon established. Again the process of exhumation was set afoot and there was not the smallest doubt that the deceased had died from arsenical poisoning. It was equally certain that Frau Ursinus had administered it.

On her own confession she admitted her arrival at her aunt's house on January the 16th. Fräulein Witte was sick and complaining, and her niece, who professed great affection for her, decided to spend some little time with

her. On the day following the arrival of her niece, Fräulein Witte's disorder increased, and she had other disquieting symptoms. Frau Ursinus now summoned a doctor, stating that she herself felt so low and depressed that she contemplated suicide and had made up her mind to take poison. In the meantime, her aunt became more and more seriously ill. On the 23d of January Frau Ursinus persuaded her to let another physician be called in, who pronounced the illness to be unimportant, but when he left it increased. Frau Ursinus watched by her aunt all night, during the course of which the poor woman died. She was quite alone with her expiring victim and must have been a witness of her terrible convulsions. It came out at the trial that on the occasion of a previous visit to Charlottenburg, Frau Ursinus had written to a chemist in Berlin for a good dose of poison to destroy the rats in her aunt's house. Here again the rats were non-existent.

This pretence was as false as was her insistence on the fact that she had been in a great state of depression since her husband's death. This mental condition and her consequent desire to commit suicide came up prominently at her trial. She had always affected great sensibility, wishing to pose as a fragile, delicate person, as she considered robust health to be vulgar. Yet she was naturally strong and well. No proof could ever be found that she meant to take her own life. When really she had most ground for depression, being burdened with a terrible accusation, and the scaffold loomed threateningly before her, the undaunted spirit of the woman rose to the occasion and her real and powerful nature asserted itself. She did not exhibit the smallest sign of low spirits, but fought on with desperate courage and self-reliance, disputing every point, lying freely and recklessly in her unshaken resolve to save life and honour. Her adroitness in defence was greatly aided by her extraordinary knowledge of the Prussian criminal code. Very rarely her fortitude deserted her, and she was betrayed into a strange admission, that if she had really handed poison to her aunt she must have been out of her mind. The object of this particular murder was plainly indicated in the fact that she expected a considerable inheritance from Fräulein Witte. Conviction in this case followed almost as a matter of course.

Her guilt in attempting the life of the man-servant Klein was never in doubt, but the motive remained obscure to the very end. One explanation was

offered by Frau Ursinus herself. She denied all wish to kill him but admitted that she was making an experiment in the operation of lethal drugs with the idea of ascertaining their effect on herself. A more plausible reason was that she had at one time made him her confidant and wished to use him as a go-between in negotiating a second marriage. They had quarrelled, and Klein was about to leave her service, which she dreaded, lest he might tell tales and make her appear ridiculous before the world. She owed him a deep grudge also for having presumed upon the favour she had shown him. To get rid of so presumptuous and dangerous a person was enough to move this truculent poisoner to seek to compass his death. Klein eventually recovered his health and survived for twenty-three years, living comfortably on a pension forcibly extracted from Frau Ursinus.

The verdict pronounced upon her was one of “not guilty” as regards her husband and the Dutch officer Rogay. But she was fully convicted of having murdered her aunt, Christina Regina Witte, and of several felonious attempts to poison her servant, Benjamin Klein. Her sentence was imprisonment for life in a fortress and she endured it in Glatz, on the frontier of Silesia and Bohemia. From the first she was treated with excessive leniency and in a way to prove that prison discipline was then a mere farce in Prussia. She was permitted to furnish and arrange the quarters allotted to her according to her own taste, and she spent much time at a comfortable writing table under a well lighted window. She engaged a lady companion to be with her constantly, and passing travellers curious to make the acquaintance of a murderess were allowed to call on her and to listen to her unending protestations of innocence. She did not always evoke sympathy, and the government was much abused for its favouritism. A cutting comparison was drawn between this aristocratic criminal parading the ramparts of Glatz in silks and satins, and humble offenders who had been condemned for succumbing weakly to ungovernable rage and who were driven to toilsome labour in deep ditches, heavily chained and grossly ill-used. Here she acted the lady of quality, and being possessed of a considerable income, was able to give parties which were largely attended. At one of these receptions, it is said that a lady guest on noticing some grains of sugar sparkling in a salad involuntarily started back. Frau Ursinus remarking this, said, smiling sarcastically, “Don’t be afraid, it is not arsenic!”

Her companion who was with her until her death on April 4, 1836, and never left her, bore witness to her religious resignation in bearing her physical suffering caused chiefly by a chest complaint. She remained more or less unconscious for some months, but on the night before her end her mental faculties returned and she passed away peacefully. She was the first person to be buried in the Protestant cemetery which King Frederick William III had given to the evangelical congregation at Glatz.

A year before her death she had ordered a costly oak coffin. Clad in a white petticoat, a cap trimmed with pale blue ribbon on her head, her hands encased in white gloves, on one finger a ring which had belonged to her late husband and with his portrait on her breast, she lay as if asleep, an expression of peace upon her unchanged face. Several carriages, filled with her friends and acquaintances, followed the body to the grave, which was decorated with moss and flowers, and when the clergyman had finished his discourse, six poor boys and the same number of girls, to whom she had shown great kindness, sang a hymn in her honour. Instead of the sexton, the hands of friends and poor recipients of the dead woman's charity filled in the grave and shaped the mound above it. It was a bitterly cold morning, and yet the cemetery could hardly contain the people who thronged it.

Thus Frau "Geheimrätin" Ursinus died in the odour of sanctity. Her many relatives, who greatly needed money, only received one-half of her fortune; the other half she parcelled out into various bequests and several pious institutions benefited; and we may thus fairly conclude that she desired to rehabilitate her accursed name by ostentatious deeds of charity. She left her gaoler, who had treated her considerately, five hundred thalers and his daughter a piano. Doctor Friedham, who had procured the royal favour through which she was liberated from the fortress, received a substantial legacy.

Another female poisoner in a lower sphere of life, whose lethal propensities were more strongly developed and more widespread, belongs to this period and the neighbouring kingdom of Bavaria. The woman, Anna Schönleben or Zwanziger—her married name—known in criminal history as the German Brinvilliers, was as noxious as a pestilence, and death followed everywhere in her footsteps. Never did any human being hunger more to

kill, and revel more wantonly in the reckless and unscrupulous employment of the means that secret poisoning put at her disposal. Her extravagant fondness for it was “based upon the proud consciousness of possessing a power which enabled her to break through every restraint, to attain every object, to gratify every inclination and to determine the very existence of others. Poison was the magic wand with which she ruled those whom she outwardly obeyed, and which opened the way to her fondest hopes. Poison enabled her to deal out death, sickness and torture to all who offended her or stood in her way; it punished every slight; it prevented the return of unwelcome guests; it disturbed those social pleasures which it galled her not to share; it afforded her amusement by the contortions of the victims, and an opportunity of ingratiating herself by affected sympathy with their sufferings; it was the means of throwing suspicion upon innocent persons and of getting fellow servants into trouble. Mixing and giving poison became her constant occupation; she practised it in jest and in earnest, and at last with real passion for poison itself, without reference to the object for which it was given. She grew to love it from long habit, and from gratitude for its faithful services; she looked upon it as her truest friend and made it her constant companion. Upon her apprehension, arsenic was found in her pocket, and when it was laid before her at Culmbach to be identified, she seemed to tremble with pleasure and gazed upon the white powder with eyes beaming with rapture.”

We will take up her story when she was a widow of about fifty years old, resident at Pegnitz and bearing the name of Anna Schönleben. In 1808 she was received as housekeeper into the family of Justice Glaser, who had for some time previous been living apart from his wife. Shortly after the beginning of her service, however, a partial reconciliation took place, in a great measure effected through the exertions of Schönleben, and the wife returned to her husband’s house. But their reunion was of short duration, for in the course of four weeks after her return, she was seized with a sudden and violent illness, of which, in a day or two, she expired.

After this event, Schönleben quitted the service of Glaser and was received in the same capacity into the household of Justice Grohmann, who was then unmarried. Although only thirty-eight years of age, he was in delicate health and had suffered severely from gout, so that Schönleben soon gained his

favour by the kindly attentions she bestowed upon his health. Her cares, however, were unavailing; her master fell sick in the spring of 1809, his disease being accompanied with violent internal pains of the stomach, dryness of the skin, vomiting, etc., and he died on the 8th of May after an illness of eleven days. Schönleben, who had nursed him with unremitting anxiety and solicitude during his illness and administered all his medicines with her own hand, appeared inconsolable for his loss and that of her situation. The high character, however, which she had acquired for her unflagging devotion and tenderness as a sick nurse, immediately procured her another post in the family of Herr Gebhard, whose wife was at that time on the point of being confined. This event took place on the 13th of May, shortly after the arrival of the new housekeeper, who made herself particularly useful. Mother and child were thought to be progressing extremely well when, on the third day after the birth, the lady was seized with spasms, high temperature, violent thirst, vomiting, etc. In the extremity of her agony, she frequently exclaimed that they had given her poison. Seven days after her confinement she expired.

Gebhard, the widower, bereaved and helpless in managing household affairs, thought it would be prudent to retain the housekeeper in his service who had been so zealous and assiduous during his wife's illness. Some of his friends sought to dissuade him from keeping a servant who seemed by some fatality to bring death into every family with which she became connected. The objection arose from mere superstitious dread, for as yet no accusation had been hinted at, and Gebhard, a very matter of fact person, laughed at their apprehensions. Schönleben, who was very obliging, with a great air of honesty, humility and kindness, remained in his house and was invested with almost unlimited authority.

During her residence in the Gebhard household, there were many circumstances which, although they excited little attention at the time, were subsequently remembered against her. They will be mentioned hereafter; for the present, let us follow the course of events and the gradual growth of suspicion. Gebhard had at last, by the importunity of his friends, been persuaded to part with his housekeeper and did so with many regrets. Schönleben received her dismissal without any remark beyond an expression of surprise at the suddenness of his decision. Her departure for

Bayreuth was fixed for the next day, and she busied herself with arranging the rooms, and filled the salt box in the kitchen, remarking that it was the custom for one who went away to do this for her successor. On the next morning, as a token of her good-will, she made coffee for the maids, supplying them with sugar from a paper of her own. The coach which her master had been good-natured enough to procure for her was already at the door. She took his child, now twenty weeks old, in her arms, gave it a biscuit soaked in milk, caressed it and took her leave. Scarcely had she been gone half an hour when both the child and servants were seized with violent retching, which lasted some hours and left them extremely weak and ill. Suspicion being now at last fairly awakened, Gebhard had the salt box examined, which Schönleben had so officiously filled. The salt was found strongly impregnated with arsenic; in the salt barrel also, from which it had been taken, thirty grains of arsenic were found mixed with about three pounds of salt.

It was now clear to every one that the series of sudden deaths which had occurred in the families in which Schönleben had resided, had been due to arsenical poison, and it seemed extraordinary that this circumstance had been so long overlooked. It came to light now that while she was with Gebhard two friends who had dined with her master in August, 1809, were seized after dinner with the same symptoms of vomiting, convulsions, spasms and so forth, which had attacked the servants on the day of Schönleben's departure, and again, had shown themselves in the condition of the unfortunate mistress when she died. Also Schönleben had on one occasion given a glass of white wine to a servant who had called with a message, which had produced similar effects; the attack was indeed so violent as to oblige him to remain in bed for several days. On another occasion she had taken a lad of nineteen, Johann Kraus, into the cellar, where she had offered him a glass of brandy which he tasted, but perceiving a white sediment in it, declined to swallow. And again, one of her fellow servants, Barbara Waldmann, with whom Schönleben had had frequent quarrels, after drinking a cup of coffee was seized with exactly the same symptoms as the others. Last of all, it was remembered that at a party which Judge Grohmann gave, he sent her to the cellar for some jugs of beer, and after partaking of it, he and all his guests—five in number—were almost immediately seized with the usual spasms.

The long interval which had elapsed since the death of most of these individuals rendered it improbable that an examination of the bodies would throw any light upon these dark transactions. It was resolved, however, to put the matter to the test, and the result of this tardy inspection was more decisive than might have been expected; all the bodies exhibited in a greater or less degree traces of arsenic. On the whole, the medical authorities felt themselves justified in stating that the deaths of at least two of the three individuals had been occasioned by poison.

Meantime Schönleben had been living quietly at Bayreuth, quite unconscious of the storm gathering round her. Her finished hypocrisy even led her, while on the way there, to write a letter to her late master reproaching him with his ingratitude at dismissing one who had been a protecting angel to his child; and in passing through Nürnberg, she dared to take up her residence with the mother of her victim, Gebhard's wife. On reaching Bayreuth, she again wrote to Gebhard vainly hoping he would take her back into his service, and she made a similar unsuccessful attempt on her former master Glaser. While thus engaged, the warrant for her arrest arrived and she was taken into custody on October 19th. When searched, three packets were found in her pocket, two of them containing fly powder and the third arsenic.

For a long time she would confess nothing; it was not till April 16, 1810, that her courage gave way, when she learned the result of the examination of the body of Frau Glaser. Then, weeping and wringing her hands, she confessed she had on two occasions administered poison to her. No sooner had she admitted this than she fell to the ground in convulsions "as if struck by lightning," and was removed from the court. Strange to say, although she knew that by her confession she had more than justified her condemnation to death, she laboured to the very last to gloss over and explain the worst features of her chief crimes, and in spite of ample evidence, denied all her lesser offences. It was impossible for her false and distorted nature to be quite sincere, and when she told a truth she at once associated with it a lie.

When Anna Schönleben fell into the hands of justice, she had already reached her fiftieth year; she was of small stature, thin and deformed; her sallow and meagre face was deeply furrowed by passion as well as by age,

and bore no trace of former beauty. Her eyes were expressive of envy and malice and her brow was perpetually clouded, even when her lips moved to smile. Her manner, however, was cringing, servile and affected, and age and ugliness had not diminished her craving for admiration. Even in prison and under sentence of death, her imagination was still occupied with the pleasing recollections of her youth. One day when her judge visited her in prison, she begged him not to infer what she had been from what she was; that she was “once beautiful, exceedingly beautiful.”

Her life history antecedent to the events just recorded has been constructed from trustworthy sources and her own autobiography which fills eighteen closely written folio sheets. Born in Nürnberg in 1760, she had lost her parents before she reached her fifth year. Her father had possessed some property and until her nineteenth year she remained under the charge of her guardian, who was warmly attached to her and bestowed much care upon her education. At the age of nineteen she married, rather against her inclination, the notary Zwanziger, for that was her real name. The loneliness and dulness of her matrimonial life contrasted very disagreeably with the gaieties of her guardian’s house, and in the many absences of her husband, who divided his time between business and the bottle, she passed her time in reading sentimental novels such as the “Sorrows of Werther,” “Pamela” and “Emilia Galeotti.” Her husband, with her help, soon ran through her small fortune, which was wasted in extravagant entertaining and in keeping up an establishment beyond their means. They sank into wretched impecuniosity, with a family to support and without even the consolation of common esteem. She took to vicious methods and presently her husband died, leaving his widow to follow the career of an adventuress.

During the years that intervened between the death of her husband and the date on which she first entered Glaser’s service, her life had been one long course of unbridled misconduct. Absolutely devoid of principle, she associated with others as vicious as herself; she became a wanderer on the face of the earth and for twenty years never found a permanent resting place or a sincere friend. Fiercely resenting the evil fortune that had constantly befallen her, she chafed with bitter hatred against all mankind; her heart hardened; all that was good in her nature died out and she became a prey to the worst passions, consumed always with uncontrollable yearning to better

her condition by defying all divine and human laws. When and how the idea of poison first dawned on her, her confessions did not explain, but there is every reason to believe that it was before she entered Glaser's service. Determined as she was to advance her own interests, poison seemed to furnish her at once with the talisman she was in search of; it would punish her enemies and remove those who stood in her way. From the moment she met Glaser, she resolved to secure him as her husband. That he was already married was immaterial, for poison would be a speedy form of divorce. To bring her victim within range of her power, she schemed to effect the reconciliation so successfully accomplished, and directly after Frau Glaser returned home, Zwanziger began her operations. Two successful doses were administered, of which the last was effectual. While she was mixing it, she confessed, she encouraged herself with the notion that she was preparing for herself a comfortable establishment in her old age. This prospect having been defeated by her dismissal from Glaser's service, she entered that of Grohmann. Here she sought to revenge herself upon such of her fellow servants as she happened to dislike by mixing fly powder with the beer,—enough to cause illness but not death. While at Grohmann's home she had also indulged in matrimonial hopes; but all at once these were defeated by his intended marriage with another. She tried to break this engagement off, but ineffectually, and Grohmann, provoked by her pertinacity, decided to send her away. The wedding day was fixed; nothing now remained for Zwanziger but revenge, and Grohmann fell a victim to poison.

From his service Zwanziger passed into that of Gebhard, whose wife shared the fate of Grohmann, for no other reason, according to her own account, than because that lady had treated her harshly. Even this wretched apology was proved false by the testimony of the other inmates of the house. The true motive, as in the preceding cases, was that she had formed designs upon Gebhard similar to those which had failed in the case of Glaser, and that the unfortunate lady stood in the way. Her death was accomplished by poisoning two jugs of beer from which Zwanziger from time to time supplied her with drink. Even while confessing that she had poisoned the beer, she persisted in maintaining that she had no intention of destroying her mistress; if she could have foreseen that such a consequence would follow, she would rather have died herself.

During the remaining period from the death of Gebhard's wife to that of her quitting his service, she admitted having frequently administered poisoned wine, beer, coffee and other liquors to such guests as she disliked or to her fellow servants when any of them had the bad luck to fall under her displeasure. The poisoning of the salt box she also admitted; but with the strange and inveterate hypocrisy which ran through all her confessions, she maintained that the arsenic in the salt barrel must have been put in by some other person.

The fate of such a wretch could not, of course, be doubtful. She was condemned to be beheaded, and listened to the sentence apparently without emotion. She told the judge that her death was a fortunate thing for others, for she felt that she could not have discontinued poisoning had she lived. On the scaffold, she bowed courteously to the judge and assistants, walked calmly up to the block and received the blow without shrinking.



CHAPTER IV

THREE CELEBRATED CASES

Karl Grosjean alias Grandisson—His residence in Heidelberg—Occupation unknown—Suspicion aroused—Letters seized by the postal authorities—Grosjean arrested in Berlin and imprisoned—Found dead in his cell—His wife cross-examined—Proved that he had perpetrated daring post-cart robberies—Brigandage—Formation of bands of robbers—Carefully planned attacks made on villages—Schinderhannes, the famous brigand chief—Arrested and brought to trial with his assistants, twenty of whom were guillotined—The horrible murder of Dorothea-Blankenfeld by her fellow travellers Antonini and his wife—Their sentence and its execution.

The chronic disorder which reigned in central Europe during the nearly incessant warfare of the Napoleonic period stimulated the activity of daring and ingenious thieves. A successful depredator on a larger scale who long escaped detection was a certain Karl Grosjean, alias Grandisson, whose story may be told as a remarkable instance of the immunity enjoyed by his class.

He first comes upon the scenes in the spring of 1804, when a superb travelling carriage arrived at a small country town in the vicinity of Heidelberg. Two strangers alighted from it to spend the night at the inn. They were apparently worthy representatives of the class that would possess so magnificent an equipage, one being a man of aristocratic appearance, and the other his young and beautiful wife. They were from Denmark, where the stranger was said to be a merchant and reputed enormously wealthy. He owned many shops somewhere, and carried on an immense trade in iron, flax and other articles. He had come to this little town to buy vinegar, which was manufactured there on a large scale by a

chemist of the place. Eventually the couple took up their residence in the neighbouring city of Heidelberg, where they lived in a charming house on the slope of the hill crowned by the ruined castle and overlooking the beautiful valley of the Neckar. Their residence at Heidelberg was checkered by some unpleasant occurrences, among others the theft of a large sum of money, which was in due course recovered after a long trial, but M. Grandisson was so much vexed by all that had happened that he left the city and moved first to Strasburg, then to Dijon and to Nancy. They returned to Heidelberg in 1810. They lived in a luxurious style, but Madame Grandisson devoted herself principally to the education of her children. She did not go out much, although she paid and received visits. She was intimate with no one and forbore to talk much of her husband's private affairs, except to allude at times to the many interesting journeys he made.

M. Grandisson was more sociable and accessible. He did not absent himself from public places, and not only liked to converse with other people, but was addicted to boasting of his wealth and possessions. This little weakness was not resented in so amiable and obliging a man, for he was civility itself to every one. One thing only seemed odd. Grandisson was a merchant, but never spoke of his business with other merchants; still less did he make any mention of his real domicile or his origin. When closely pressed in conversation, however, he vaguely hinted that he was concerned in vast smuggling transactions. This was not to his discredit in those days of the Continental blockade introduced by Napoleon against English trade. Again, it was passing strange that a business man, engaged ostensibly in extensive operations in all parts of Europe, carried on no business correspondence. Moreover, he did not obtain his funds by drawing bills of exchange or receiving cash remittances; yet he was perpetually travelling and must have spent much money on the road. There seemed also to be something peculiar connected with these journeys. He talked a great deal about them beforehand, mentioning his intention of going to Brussels, Paris or Copenhagen, as the case might be, but he would disappear silently to reappear as suddenly as he had gone, and seldom let fall a word as to where he had been. The local police at Heidelberg heard nothing of these journeys, nor was it necessary, as Grandisson had his passports from the government authorities and they were usually good for six months at a time.

For more than three years the Grandisson family lived quietly in Heidelberg, respected and apparently happy and contented. Contraband trade was generally supposed to supply their chief wealth and to be sufficient explanation for the secrecy observed in regard to it. Another theory was held on this subject, which it was thought well not to insist upon in those days: Grandisson seemed to time his journeys to conform to the constant movements of troops in the many campaigns afoot; he occasionally started and returned in company with French officers, and it might well be thought that he was one of the emissaries who swarmed in Germany just then.

Grandisson was actually on the move and absent from Heidelberg when letters arrived from Frankfurt-on-the-Main dated April 7th; one was addressed to the governor of the town, the other to the criminal judge, and their contents threw a new and lurid light upon the mysterious stranger. The Thurn and Taxis post-wagon had been robbed twice within two years, between Eisenach and Frankfurt, and so effectually that well secured cash boxes packed away inside the vehicle had disappeared. The first occasion was on October 13, 1812, when all packets of money destined for Frankfurt were purloined from the post-cart; and the second on February 14, 1814, when a packet containing more than 4,947 florins was stolen. Suspicion fell upon a certain passenger remembered by the conductor and others, and who, as it turned out on investigation, had always travelled and been registered under different names. It was subsequently discovered that this man, so generously endowed with aliases, had on February 18th put up at the inn, the Sign of the Anchor, in Eisenach, under the name of Grandisson and there posted a packet of fifty gulden addressed to himself at Heidelberg, which had there been safely handed to Madame Grandisson. The description of the suspicious passenger tallied exactly with that of M. Grandisson so well known in Heidelberg. Besides this, the conductor of the post-cart from which the last theft had been made, insisted that he had seen him in that town. The governor of Heidelberg was so much impressed with these reports that he would have proceeded to arrest Grandisson at once, but the man was absent at the time. The question was then mooted as to the apprehension of Madame Grandisson, who was generally respected as a modest, reputable lady who lived exclusively for her children. She seemed somewhat embarrassed when questioned by the police and asked to explain

her husband's prolonged absence, but evinced no desire to leave the town, and no further steps were taken beyond keeping her under observation. Unhappily for her, fresh revelations were soon forthcoming in which she was implicated. A letter from Madame Grandisson to her husband, directed to what was then his real address, "poste restante Würzburg," was presently intercepted in the chief post-office. In this letter she enclosed another which had arrived for M. Grandisson and had been opened by her. Her own letter contained little more than references to the other which was signed with the name "Louis Fischer," and had evidently occasioned her great uneasiness. It was dated from Bornheim near Frankfurt, March 10, 1814, and contained a quantity of obscure and suspicious matter.

It began by reminding its recipient that he was passing under an assumed name, that he was really Grosjean, not Grandisson; then referred to the "working off" of certain Dutch ducats; proceeded to complain that he had been robbed of his fourteen thousand gulden by having soldiers quartered upon him; and finished as follows: "All are consumed but a few hundred gulden. I do not make demands upon you as a beggar but on the current value of what you know.... I sign an assumed name.... Write to me poste restante.... If you do not write, be assured, as certainly as that God will yet judge my soul, I shall be compelled to make public what I know.... This you would surely avoid because of the dishonour and the loss of the consideration you enjoy.... You are perfectly well aware that I have kept silence for years ... but yet I hold the damning proofs and shall use them unless you accept my terms. Nevertheless, if you act fairly by me the proofs shall be destroyed and the guilty deed with them."

This letter threw very serious aspersions on Grandisson's character. It hinted that his real name was Grosjean and that he had at some time or other committed a crime or a dishonourable action, either in conjunction with the writer or with his knowledge, the publication of which must ruin him, and that he was consequently being blackmailed by his correspondent. There was nothing in the letter, however, to inculcate Madame Grandisson. On the contrary, the anonymous writer mentioned her with great respect, and the agitation of mind she displayed in her appeal to her husband testified to her innocence and showed that there was less reason than ever to proceed against her. Efforts were still made to tamper with her

correspondence, but in vain, for she was very wary and used the utmost caution in posting her letters. At last, however, one was intercepted and was thought compromising. "Since you left thirteen days ago, I have no news of you," it ran. "Write me the number of the house where I am to address my letters. Now attend to me. How would it be were I to pack most of my belongings and give them into the charge of Herr Klein, and only take with me exactly what I require, until I am certain where I am to live? I do not think I could have anything in common with your relations; I have too vivid a recollection of their vulgarity and rapaciousness. It would be best for you to hire a lodging for me with decent, respectable people, so that when I arrive I can be with you; even for yourself it is not advisable that you should lodge with your relatives. I will not stop with them even for one night. Farewell." This letter certainly gave the impression that Madame Grandisson was initiated partially, at least, into her husband's secrets, and as she was evidently now making preparations for escaping from Heidelberg, she was more closely watched than ever. Her behaviour was unaltered as she was not aware that her letter had been intercepted. The address on the outside cover, moreover, to "Herr Prinz im Königstrasse, Berlin," gave a clue which facilitated proceedings against Grandisson. This, however, was only on the outside, for on the real letter itself the direction was as follows: "Mlle. Caroline is requested to deliver this letter to her brother Karl." Thus it appeared that Grandisson was now in Berlin and that he had a sister there. He must now be sought for in that capital, and a demand for his arrest was despatched by the chief post office in Frankfurt to the head of the police in Berlin.

In the house of a merchant of the name of Prinz, situated in the Königstrasse in Berlin, there lived an unmarried woman called Caroline Grosjean, who was in the service of the family and undoubtedly the intended recipient of the above letter. She was in truth the sister of the suspected criminal, and the name of Grosjean corresponded with that mentioned in the Fischer letter. A detective was sent to question her as to her brother's whereabouts, and she admitted that he was in Berlin but would say nothing further until shown the letter, whereupon recognising her sister-in-law's handwriting, she offered to conduct the evidently trustworthy messenger to her brother. The detective, however, intimated that when on his travels he had to stay within doors to receive people on business, and

requested her to send her brother to his inn that same afternoon, which she did. The man so accurately described by the Frankfurt and Heidelberg authorities accordingly appeared at the "Sign of the Crown." He acted the unconcerned gentleman even when the detective said he had just come from Heidelberg charged with greetings from his wife and assurances that all was well. But when the officer of the law handed him her letter, he seized it with evident uneasiness, crumpled it up and thrust it into his pocket. The detective then proposed to conduct him to some private place where he might be inclined perhaps to give a more satisfactory account of himself. On reaching the door of the inn, Grosjean tried to escape, but two police officials at once barred his way. From that moment he became quite passive and followed the police quietly to the office and thence to the prison. When searched, two razors he had secreted were found and taken from him. Suicide was obviously his intention, and he was resolved to carry it through. When visited in his cell next morning, it was found that he had made away with himself. He lay in a cramped position, sitting rather than hanging, strangled and dead, his handkerchief having been tightly fastened round his neck and secured in the jamb of the door. The method he had employed testified to an extraordinary exercise of will power.

The chief criminal having thus disposed of himself, to proceed to the discovery and arrest of his accomplices became the next object of the authorities. But those of Heidelberg were still loth to arrest Madame Grandisson, and the judge himself paid her a visit to inquire for her husband. She had heard nothing yet of the suicide, and replied that she was growing uneasy at his protracted absence. She was next invited to visit the law courts to make a formal deposition, and when further questioned there, it was seen that her pretended ignorance of her husband's real character was assumed. This led to her committal to the criminal prison. Close examination into her own antecedents followed. She stated that she came from Breslau, where her family resided, and that after her marriage with Grosjean, she had travelled with him in distant countries, where he was engaged in extensive commercial enterprises. For a long time she little realised their true nature, but had learned it by accident and had taxed him with his criminal life. Gradually the facts came out and she made open confession of all she knew. Yes, her husband was indeed a villain, although she knew nothing of it till long after her marriage, when to her horror she

found that all the money on which they lived so luxuriously was stolen, acquired by systematic thefts from the post-wagons. Grosjean, when she first made his acquaintance, had been a butler in the service of a general officer, Von Dolfs by name. After their marriage she spent a brief period of happiness, which was shattered by Grosjean's arrest for having robbed his master of a large sum. At that time she herself was brought up for examination, and was asked if she was aware that he had already served a term of imprisonment in a house of correction on account of robberies. Then the general sent for her and advised her to seek a separation, but it seemed too cruel to desert him and she was easily persuaded to join him in prison. On their release, they decided to go to his parents in Berlin, where he undertook to carry on his father's business, in which he continued to work honestly for five or six years. Afterward they moved to Hamburg and then to Copenhagen, where they suffered many vicissitudes. Next they went to St. Petersburg, and thence to Bayreuth; last of all they settled in the neighbourhood of Heidelberg, and the events followed as already described.

At the judicial examination more incriminating evidence came out. Upon being closely interrogated, Madame Grosjean admitted having gone from St. Petersburg, first to Emden, then to the Hague and to Amsterdam. At the last named places, Grosjean seems to have begun his systematic business journeys in connection with the post-carts, but she denied all participation or knowledge of their aim and results. Only at Bayreuth, when he bought the costly carriage, her conscience seemed to have awakened. When she reproached him for purchasing it he replied that it was none of her business; that it was enough for her if he provided for her; and that if she were not pleased she might leave him and go where she chose. This partly pacified, partly terrified her. She forbore to ask him about the post-cart robberies, but suffered him to follow his own road, without remark or complaint. She had made a great mistake in her marriage, she admitted, yet she was undoubtedly much affected when the news of his death by suicide was communicated to her.

Meanwhile a series of laborious investigations and far-reaching correspondence had been set on foot to build up the criminal history of Grosjean. It was fully established that his evil tendencies were inborn and strongly developed; he had a passion for stealing that amounted to mania.

He had acted for the most part alone and unaided, exhibiting rare skill and meeting generally with extraordinary good luck. He had carried out his robberies over a large area, in various countries and at many times, greedy to lay his hands on everything he came across. To utilise his plunder in playing the great personage with much ostentation and display, was another trait in him not uncommon with others of his class. He was ambitious also to appear a refined and well educated man in the cultured social surroundings of the university town of Heidelberg. He loved to forget that he was a common thief, and to assume the superior airs of a well-bred gentleman. It was the same in France, where he gained a reputation for good breeding and perfect manners, inspiring confidence and appreciation in all with whom he was thrown.

Little was known to a certainty of his early life. He was born at Weilburg, where his father owned a cloth factory, but the family moved subsequently to Berlin. Karl accompanied his parents and was apprenticed to the hairdresser's craft. He soon left the capital, and rarely returned to it after he had assumed the part of a wealthy merchant. On the third visit, he was arrested and it was then shown that not only had he robbed General Dolfs, as already described, but that when only 16 years of age he had been sentenced to four years' penal servitude for theft. While a hairdresser in Berlin, he carried out a large robbery in the house of the English envoy; and at Hamburg, where he was afterward in service, he stole three thousand marks from his master, but he was not apprehended for either offence. From that time very little information came to hand concerning his larger and more audacious undertakings, which he perpetrated chiefly in foreign countries. The chief post-office authorities at Frankfurt-on-the-Main had on their register a long list of post-cart robberies, covering the years from 1800-1811, all of which might no doubt be laid to Grosjean's charge. It was certainly proved that a man answering to his description travelled under eight or nine different aliases at various times. One curious and unusual trait in a man accustomed to carry out thefts on a very large scale, was his stooping to steal groceries from his landlord, and also heavy goods, articles of no value, but difficult to move and likely to lead to his detection. His wife, annoyed at these useless thefts and overburdened with groceries and spices she could not use, would ask him how she should get rid of them, upon which he would tell her to sell them to the landlord. This ironical

suggestion to sell stolen goods to the victim of the thefts was in its way amusing. Grosjean also purloined tobacco, and once when travelling stole his landlord's gold repeater watch, which he wore boldly and unconcernedly until his arrest in 1814. He likewise abstracted the silver spoons at the inns where he lodged, and stole stockings for his family from shops, whether they wanted them or not. Sixty-five pairs were found when his lodging was searched, and they were claimed by a tradesman in Frankfurt who was the author of the mysterious letter signed, "Louis Fischer," which had given the Heidelberg legal authorities the first clue for Grosjean's prosecution. This man, after having dealings with Grosjean, who was a good customer and paid ready money, suddenly began to suspect him of pilfering in the shop and at last caught him in the act. His bump of acquisitiveness was no doubt abnormally developed.

Insecurity of life and property was universal at this time. The country was terrorised and laid waste by brigandage. Bands were organised under the most redoubtable chiefs, whose skill and boldness in the prosecution of their evil business were quite on a par with the most famous feats of great bandits in other lands. Foremost among them were such men as Pickard, who long devastated the Low Countries, and not less noted was Schinderhannes, otherwise John Buckler the younger. He had followed the craft of his father, a flayer of dead animals, and hence his sobriquet, *Schinderhannes* or "Hans the skinner." His operations covered a wide area, extending from both banks of the upper Rhine to the lower Meuse; from Mayence on the one side as far as Dunkirk on the other; and again to the eastward beyond the Weser to the Elbe. He "worked" this country from 1793 to 1801, and when at last justice overtook him and he was committed to the prison of Mayence, sixty-seven associates, who had followed him with unflagging devotion, were arrested and brought to trial with him.

The growth of brigandage was stimulated by the prevailing distress of the territories so constantly ravaged by war. Peaceable inhabitants were harried and harassed by the excesses of the troops. Contributions in money and in kind were repeatedly levied upon them; they lost their cattle and their crops by military requisitions, and were heavily taxed in money. Where the farmers and other employers were nearly ruined, large numbers of labourers were thrown out of work and were driven into evil practices. Many took to

thieving, and stole everything they came across,—horses from their stables and cattle from the fields. They cut off and robbed stragglers from the armies on the march, and pillaged the baggage wagons that went astray. As guardians of the law became more active in pursuit, offenders were driven to combine forces and form associations for greater strength and more concerted action. Receivers of the stolen goods were established with secure hiding places and lines of safe retreat. Leaders were also appointed to direct operations, to ascertain the most likely victims and plan attacks without incurring suspicion or subsequent detection. In this way, outrages multiplied and developed on a large scale far beyond mere highway robbery.

Great prudence and circumspection were employed in the formation of a band. The members were chosen with an eye to fitness for the work; every effort was made to preserve their incognito; they were forbidden to assemble in any considerable number; not more than two or three men were suffered to live in the same village. Each man's address or change of address was known only to the receivers of the district, through whom orders were circulated from the supreme chief of the entire association, the individual members of which lived singly, dispersed through the villages and small towns of an extensive territory. The brigands themselves were strictly enjoined not to attract attention; to keep disguises close at hand, to change their abode frequently, and to be prepared to assume quickly a different character. The aristocratic German baron or the respectable Dutch merchant drinking the waters at Aix-la-Chapelle or Spa one week was transformed the next into the leader of a band of miscreants lurking in a wood, waiting to embark upon a bloodthirsty attack and wholesale massacre.

No important movement was undertaken unless it had been recommended as feasible by one of the numerous indicators or spies spread over the country. These were mostly Jews and, strange to say, they were not members of the band. They were ever on the alert, and by insinuating themselves into people's homes, learned who were well-off and where money and valuables were treasured. They gained all necessary information as to the possible opposition that would be offered by the residents, and when all was prepared, the informer contracted to help the brigand chief to

make the coup on a promise of receiving part, and a large part, of the booty. The rôle played by these spies was the more detestable because of the certainty that the robbery would be accompanied with brutal violence and much cruelty. If the treasure was well concealed or obstinately withheld by the owners, the most barbarous tortures were inflicted on them, such as those practised by the “chauffeurs” of central France about this same time, who “warmed” or toasted the feet of their victims before a blazing fire until they confessed where their goods lay hidden. These informers were generally receivers also, ready to take over and dispose of the plunder.

As soon as a stroke had been decided upon, word was passed around to gather the band together. A letter was addressed to each member, in which he was summoned to meet the others at a particular place and discuss “a matter of business.” Sometimes the chief went in person and called upon every member. When assembled, the project was considered from every point of view; the difficulties and dangers were formally examined; and a decision was taken by vote as to whether it was practicable or unsafe. If accepted in spite of serious obstacles, several sub-chiefs were appointed to deal with the different parts of the plan, such as the line of approach, the actual execution and the means of retreat. As a rule, the spring or autumn season was preferred for an attempt, because of the long nights. Winter was tabooed on account of the bad travelling over dark and nearly impracticable roads, and the summer nights were too light. Moonlight nights were carefully avoided, and also any time when snow lay upon the ground. When the matter eventually came into court, it was found that the week-end was the time almost invariably chosen for the operations of the band.

To avoid the alarm that might be caused by the united march of thirty or forty robbers in company, they were ordered to repair to the rendezvous, only two or three travelling together. Those who could afford it rode or drove in vehicles, intended for use afterward in removing part of the stolen goods. Great pains were taken to prevent the men from going astray in the dark when passing through the dense forests. Guides went ahead and marked the path by nailing scraps of white paper on tree or post; at cross-roads the direction was shown by a chalked line, or a great branch was broken off from a tree and laid on the ground with the leafage pointing out the road. Signals were also passed on from one to another by imitating the

hoot of an owl; whistling was not permitted because it was a low class practice certain to attract observation. A halt was called at the rendezvous near the point of attack, where the robbers rested; pistols were examined, a pass word was chosen and a number of candles and torches were distributed to be lighted when the march was resumed, as it was, in perfect silence; and all had their faces blackened to escape recognition. Any one whom they met was seized, tied, gagged and muzzled, and left to lie by the roadside, so that he might give no alarm.

The chief or captain now took the lead, followed by a party carrying the *belier* or battering ram, a solid beam ten or twelve feet long, and one foot thick, which was sometimes a signpost and sometimes a wooden cross from a churchyard. On entering a village, some one who knew the road was sent to barricade the church door and prevent access to the belfry from which the tocsin might be sounded. The night watchmen were captured and put out of the way. Next, the doomed house was surrounded and a sharp fire opened to keep every one in-doors and give the idea that the assailants were in great numbers. If the French had passed recently through the country, loud shouts and oaths were uttered in that language to convey a false impression. After this, the principal door was beaten in, and the captain entered boldly at the head of his men, reserving the right to shoot down instantly any who hesitated or hung back. The whole house was then illuminated from roof-tree to cellar, and the place was thoroughly ransacked. All the inmates were bound and gagged, and rolled up in blankets with bedding and mattresses piled on top of them, until called upon to surrender their valuables or give information as to where they were concealed. This, as has been said, was generally extorted after horrible tortures had been inflicted.

When the pillage ended, the party hurried away to divide the booty. Any robber wounded and unable to move off was despatched on the spot; the greatest pains were taken to leave no one behind who might, if caught, be made to confess. At the sharing of the spoil, the captain received a double or triple portion, in addition to anything precious he had annexed at the first search. At the same time, if an ordinary robber withheld any valuables, his share was reduced one-half on detection. If the informer who had started the whole affair did not contrive to be present at the distribution, he was likely

to get little or nothing. The robbers had a profound contempt for the creatures who followed the despised trade of spy.

A leading character among the many who became famous as brigand chiefs, such as Finck, Black Peter, Seibert and Zughetto, was the more notorious Schinderhannes, the youngest, boldest and most active robber of them all, who moved with great rapidity over a wide country and spread terror everywhere. He did not attempt to conceal himself, but showed openly at fairs and gatherings, risking capture recklessly; yet if ill-luck befell, no prison could hold him. He was an adept in the use of tools to aid escape, and unrivalled in his skill in breaking chains, forcing locks and cutting through solid walls.

This notorious criminal was born in the village of Muklen on the right bank of the Rhine. At an early age he was taught to steal sheep which he sold to a butcher. Later he became servant to the hangman of Barenbach, but being taken in the act of robbery, he was thrown into the gaol at Kirn and flogged. He subsequently escaped, however, and joined the band of Red Finck, which committed many highway robberies, chiefly upon Jews. He was again captured and locked up in the prison of Sarrebruck, from which he easily freed himself. After these beginnings, Schinderhannes embarked in the business on a larger scale, and having recruited several desperate companions, committed numberless crimes. He was a generous brigand who succoured the poor while he made war upon the rich, and he was credited with a strong desire to abandon his evil ways if pardoned and permitted to join a regiment in the field; but this was against the law.

He was finally arrested by the counsellor Fuchs, grand-bailiff of the electorate of Treves, who caught him on the high road near Wolfenhausen as he stole out, alone, from a field of corn. He was dressed as a sportsman, carried a gun and a long whip, but could not produce a passport and was forthwith arrested. After passing from place to place, closely guarded and watched, he was lodged at length in the prison of Mayence, where he was in due course put upon his trial, was eventually convicted and suffered the extreme penalty.

The earlier operations of this formidable ruffian were limited to highway robbery, but Schinderhannes soon adopted the practice of extortion by

letter, demanding large sums for immunity from attack, and he issued safe conducts to all who paid blackmail. He dominated the whole country. Travellers did not dare to take the road. The news of the forcible entry and pillage of houses and farms spread like wildfire. For the most part, the robberies were effected upon rich Jews and others who possessed great stores of cash and valuables, and the plunder was enormous. The brigands lived royally and with ostentatious extravagance, appearing at all village fêtes and giving rein to the wildest self-indulgence.

When captured at length, this successful miscreant was subjected to a lengthy trial of eighteen months, the records of which filled five volumes. In the course of the trial it was proved that he had been guilty of fifty-three serious crimes, with or without the assistance of his sixty-seven associates, who were arraigned at the same time, and were headed by his father, the first John Buckler. Among these associates were many women. The sentences after conviction were various. Twenty-one were to be guillotined, including Schinderhannes, who asked with some apprehension whether he would be broken on the wheel, but was told to his great relief that this penalty had disappeared from the code. The capital convicts were to be taken to the scaffold clothed in red shirts, presumably to increase the ignominy. For the rest, various terms of imprisonment were imposed, ranging from six to twenty-four years in chains. Schinderhannes, having heard his own fate unmoved, expressed his gratitude to his judges for having spared the lives of his father and wife. He was quite at ease, telling the bystanders to stare as much as they pleased, for he would be on view for only two more days. The chaplain gave him the sacrament, and he accepted the consolation of the Church with very proper feeling. The convicts were taken to the place of execution in five carts, Schinderhannes beguiling the way with a full account of his misdeeds. He mounted the scaffold with a brisk step and closely examined the guillotine, asking whether it worked as easily and promptly as had been asserted. In his farewell speech, he admitted the justice of his sentence, but protested that ten of his companions were dying innocent men.

The sharp vindication of the law in the case of these brigands had a marked result in restoring tranquillity and effectually checked the operations of organised bands on a large scale. But the records of the times show many

isolated instances of atrocious murders perpetrated on defenceless travellers. A peculiarly horrible case was the doing to death of the beautiful girl, Dorothea Blankenfeld, at the post-house of Maitingen near Augsburg by her travelling companions, who had accompanied her for many stages, ever thirsting for her blood, but constantly foiled for want of opportunity until the last night before arriving at their destination.

The victim was a native of Friedland, who started from Danzig in November, 1809, on her way to Vienna, where she was to join her intended husband, a war commissary in the French service. She had reached Dresden, but halted there until her friends could find a suitable escort for the rest of the journey. She was young, barely twenty-four years old, remarkably good looking, of gentle disposition and spotless character. The opportunity for which she awaited presented itself when two French military postilions arrived in Dresden and sought passports for Vienna. It was easy to add the Fräulein Blankenfeld's name in the route paper, and she left Dresden with her escort, who had already doomed her to destruction.

The two postilions were really man and wife, for one was a woman in disguise. They gave their names as Antoine and Schulz, but they were really the two Antoninis. The man was a native of southern Italy, who as a boy had been captured by Barbary pirates and released by a French warship. He had been a drummer in a Corsican battalion, a *laquais de place*, a sutler and lastly a French army postilion. His criminal propensities were developed early; he had been frequently imprisoned, twice in Berlin and once in Mayence with his wife,—for he had married a woman named Marschall of Berlin,—and he had been constantly denounced as a thief and incendiary. At Erfurt he had broken prison and effected the escape of his fellow-prisoners. Theresa Antonini had been a wild, obstinate and vicious girl, who after marriage became a partner also in her husband's evil deeds and shared his imprisonment. The pair were on their way south to Antonini's native place in Messina, very short of money, and they took with them Carl Marschall, the woman's brother, a boy barely fifteen years of age.

Dorothea Blankenfeld was a tempting bait to their cupidity. She was fashionably dressed, her trunk was full of linen and fine clothes, and she

really carried about two thousand thalers sewed in her stays, a fact then unknown to her would-be murderers.

A scheme was soon broached by Antonini to his wife to make away with the girl, and young Carl Marschall was prevailed upon to join in the plot. They waited only for a favourable opportunity to effect their purpose, devising many plans to murder her and conceal their crime. The whole journey was occupied with abortive attempts. They selected their quarters for the night with this idea, but some accident interposed to save the threatened victim, who was altogether unconscious of her impending fate.

At Hof a plan was devised of stifling her with smoke in her bed, but the results seemed uncertain, and it was not tried. At Berneck, between Hof and Bayreuth, they lodged in a lonely inn at the foot of a mountain covered with wood, and here the corpse might be buried during the night. But Theresa Antonini had discarded her postilion's disguise, and as two women had arrived, the departure of only one the next morning must surely arouse suspicion. The following night the notion of choking the girl with the fumes of smoke was revived, but was dismissed for the same reason, the doubtful result. Death must be dealt in some other way if it was to be risked at all. So they drugged her, took her keys from under her pillow, and opened and examined her trunks, finding more than enough to seal her doom.

They arrived next at Nürnberg, a likely place, where many streams of water flowing through the city might help to get rid of the body. But a sentry happened to have his post just in front of the inn, and this afforded protection to the threatened girl. At this time Carl Marschall proposed to mix pounded glass in her soup, but the scheme was rejected by Antonini, who declared that he had often swallowed broken glass for sport without ill effects. At Roth, a suitable weapon was found in a loft, a mattock with three iron prongs,—and a pool of water for the concealment of the body was discovered in a neighbouring field, so the deed was to be perpetrated here, after administering another sleeping draught. The mischance that a number of carriers put up that night at the inn again shielded the Fräulein. Insurmountable objections arose also at Weissenberg and Donauwörth, and as they had now reached the last stage but one, it seemed as if the murder might never be committed.

The last station was Maitingen near Augsburg, where the girl was to leave the party, and here fresh incitement was given to guilty greed by her incautious admission that she carried a quantity of valuables on her person. Somehow she must be disposed of that night. The boy Carl was to be the principal agent in the crime; it was thought that his youth would save him from capital punishment, an inevitable sentence for the others if convicted. The lad showed no reluctance to the act, and only hesitated lest he should not be strong enough to complete it, but his sister said that Antonini would help as soon as the first blow was struck, and she further tempted him with the promise of a substantial gift.

Carl had discovered in the post-house a heavy roller which he hid in Antonini's bed-room. Then he dug a hole in the yard, intended for the disposal of the body. Antonini bought some candles, and on the pretence of using a foot bath, much warm water was prepared to cleanse the blood stains. At supper Dorothea drank some brandy and water mixed with laudanum, and was taken off to bed half stupefied. About midnight the murderers viewed their intended victim and found her asleep, but in a position unfavourable for attack, as her face was turned to the wall. Now a change of plan was proposed,—to pour molten lead into her ears and eyes,—but on heating the fragments of a spoon over the candle, it was seen that a drop which fell on the sheet merely scorched it, which indicated that the metal cooled too quickly to destroy life.

Another visit was paid to the victim at four o'clock, and now Carl was ordered to strike the first blow, which fell with murderous effect; but the poor girl was able to raise herself in bed and to plead piteously for her life. A fierce struggle ensued; repeated blows were rained upon her and she sank upon the floor in the agony of death, while Antonini tore at the money she still carried on her person. As the wretched woman still breathed and groaned audibly, Antonini savagely trampled and jumped on her body until life was quite extinct. When afterward examined, the body was found to be grievously bruised and swollen, the collar bone was broken, and there were nine wounds made by a blunt instrument on the brow and other parts of the head.

The house was disturbed at first by the piercing shrieks of the victim, and the postmaster listened at her door but heard nothing more. It was noticed the following morning that although the party was to have started at five o'clock, they were not ready to leave until nine. The attention of the postmaster, who was looking out of the window, was attracted by a curiously shaped bundle which the men dragged out of the house and flung into the carriage, something like the carcass of a dog, or it might be of a human being. Then the party entered the carriage and drove away, but it was observed that there was only one woman in the carriage instead of the two who had arrived on the previous evening. The rooms upstairs were now visited and the terrible catastrophe was forthwith discovered. Walls, floor and bed were drenched with blood and it was plain that an atrocious murder had been committed. Information was at once given to the authorities, and the carriage was promptly pursued. It was overtaken at the gates of Augsburg, and the culprits were seized and lodged in gaol. The suspicious looking bundle, wrapped up in a long blue cloak, had been tied up behind the carriage, and when examined it was found to contain the wounded and much battered corpse of a young woman.

In the course of the protracted criminal proceedings which followed, the boy Carl Marschall was the first to confess his guilt. The Antoninis were obstinately reticent, but at last, after nineteen long examinations, Theresa, when confronted with her brother, also acknowledged her share in the deed. Antonini was persistent in his denial and sought continually to deceive the judge by a variety of lying statements, but even he yielded at last and made a disjointed but still self-incriminating confession. Husband and wife were both convicted and sentenced by the court at Nürnberg to death by the sword. Their boy accomplice, Carl Marschall, in consideration of his youth, was condemned to ten years' imprisonment at hard labour. Antonini escaped the punishment he so well deserved by dying in prison; but his wife was not so fortunate and suffered the penalty of death upon the scaffold, hardened and unrepentant to the last.

Perhaps no more brutal murder than this committed by the Antoninis has ever been recorded, though at that time, when the activities of the brigand and highway robber were not entirely suppressed, doubtless many atrocities

were perpetrated, the true stories of which have remained forever in obscurity.

CHAPTER V

CLEVER IMPOSTORS AND SWINDLERS

James Thalreuter or the “False Prince”—A notorious swindler—His early life and education—Adopted by the Stromwalters—Pledges their credit and robs their safe—Forges letter from a grand-duke—Squanders money thus obtained in wild dissipation—Makes full confession of his frauds—Sentenced to eight years’ imprisonment—“The Golden Princess,” Henrietta Wilke—Her luxurious mode of living and generosity to the poor—Curiosity as to her origin—Loans borrowed on false pretences—She is arrested—Startling revelations brought to light at her trial—Sentenced to twelve years’ penal servitude—“Prince Lahovary” or George Manolescu—Arrested in Paris at the age of nineteen charged with thirty-seven thefts—His criminal career—Campaign in America under the assumed title of “Prince Lahovary”—Imprisoned for personating the Russian general Kuropatkin—Leonhard Bollert, nicknamed the “attorney general”—A notorious criminal-adventurer who served many terms in different prisons.

The criminal records of Germany contain some rather remarkable instances of swindling and imposture. One of the most curious was that of James Thalreuter, commonly called the “False Prince.” He was the illegitimate son of Lieutenant-Colonel von Rescher and Barbara Thalreuter, the daughter of an exciseman. He was born at Landshut in 1809 and was acknowledged by his father. His mother died the same year and he was taken charge of by Baron von Stromwalter, an intimate friend of his father. The boy James was accepted in the house as a son of the family on equal terms with the Stromwalter children, and the baroness grew extravagantly fond of him. He was a clever, lively lad, full of mischievous ways, and very early he exhibited a fertile and promising genius for lying. The baroness exercised

absolute sway in the house, for the family fortune and property was entirely hers. The baron was a mere cypher, a weak and foolish old man, who had no other means than his pension from a civil post.

The lad had been sent to school and was supposed to have gained a good education, but, as a matter of fact, he had learned very little. He wrote poorly and spelled abominably, but he had made good progress at arithmetic, and before he was sixteen possessed a surprising knowledge of financial and commercial affairs. A strongly marked trait was his power of inventing the most varied, ingenious and complicated lies, perfect in their smallest details and worked up with masterly skill. This seemingly inexhaustible talent was aided by a singularly comprehensive and accurate memory. Whenever he returned home from school, he quickly established an extraordinary influence over his fond foster-mother; he felt neither affection nor respect for her, but only esteemed her as the person able to minister to his selfish desires. The baroness, on her part, did everything she could to please him, lavished money upon him freely, and kept nothing secret from him, not even the safe containing her jewels and valuables to which he had always free access. It was testified afterward that he did what he liked with the baroness, sometimes by fair, but more often by foul means. As for the poor old baron, he was treated with supreme contempt, was often addressed in insulting terms before others, and once Thalreuter actually struck him.

The young villain made the most of his situation and took advantage of the old lady's excessive fondness to pledge her credit and run heavily into debt. He plundered her right and left, carried away many valuable things from the house, and from time to time stole large sums from her bureau, the keys of which he could always obtain. The baroness caught him at last and proceeded to reprimand her foster-son severely, but he easily persuaded her to forgive him, and she went no further than to take better care of her keys. The success which he had so far achieved now inspired him with an ingenious plan for defrauding his foster-parents on a large scale.

In the early part of the year 1825 he began to let fall mysterious hints that it was altogether a mistake to suppose that he had been born in a humble station; that, on the contrary, he was really the son of a royal personage, the

Duke of B., who, having lost one son by poison, had secretly entrusted this second son to Colonel von Reseller,—a special favourite,—who was to pass for his father and bring him up, preserving the most inviolable secrecy. Incredible as it may appear, the Stromwalters were gulled by this manifestly fraudulent story. They had known the young Thalreuter from his youth, had seen and possessed the certificate of his birth, and were fully aware of all the circumstances attending it. Yet they were easily imposed upon and dazzled by the grandeur of this tremendous fiction, backed up by the production of letters from the grand-duke, which in themselves were plain evidence of the fraud. Possibly Thalreuter had inherited his indifferent calligraphy from his illustrious parent, for the twenty letters purporting to come from his royal highness were illegible scrawls, poor in composition and wretched in style; but this very circumstance supplied the impostor with an excuse for retaining them and reading them aloud. They were couched in terms of deep gratitude for the foster-parents' care, and a large return in cash and honour was promised as a reward for their services. The grand-duke did not limit himself to empty promises; he sent through Thalreuter a costly present of six strings of fine pearls of great value, very acceptable to the Stromwalters, who, thanks to the extravagance of their foster-son, the pretended prince, were much pinched for money. The pearls were pledged for a fictitious value, Thalreuter declaring that his grand-ducal father would be greatly offended if he heard they had been submitted to formal examination. The impostor studiously suppressed the fact that he had bought the pearls at two shillings per string at a toy shop with money which he had stolen. He had obtained a pair of sham earrings at the same shop. Any story was good enough to fool the simpleton Stromwalters; he exhibited the miniature one day of an officer in uniform, blazing with orders, as that of the grand-duke, and on another day showed them sketches of the estates that were to be bestowed upon the worthy couple. Again, he pretended that his highness had called in state in a carriage and four to pay a ceremonious visit when they were absent; and another time claimed that the royal chamberlain had invited the baron to share a bottle with him at the Swan Inn, but was called away by urgent business before the baron arrived.

This shameless deception profited Thalreuter greatly. As a prince in disguise, he was treated with much indulgence and liberally supplied with the means of extravagance. He now invented a fresh lie, that of a proposed

match between the son, Lieutenant von Stromwalter, and the heiress of a rich and noble family, the Von Wallers, and the whole intrigue was carried forward even as far as betrothal without bringing the parties together, secrecy being essential to the very last, as Thalreuter explained to the old people. But he produced letters—of his own manufacture—from the grand-duke and various people of rank at court, all of them congratulating the Stromwalters on the approaching most desirable marriage. The ultimate aim of the fraud was at last shown when Thalreuter forged a letter calling upon the baroness to pay a sum of 10,000 florins into the military fund as a guarantee that her son was able to support a wife. The generous grand-duke had offered to advance a large part of this money, but at least 2,700 florins must come from the Stromwalters, and they actually handed the cash to Thalreuter, who rapidly squandered it in dissipation of the most reckless kind.

Were it not that all the facts in this marvellous imposture are vouched for by the legal proceedings afterward instituted, it would be difficult to credit the amazing credulity, amounting to imbecility, displayed by the Stromwalters. Thalreuter played his game with extraordinary boldness, and continually traded on the name of the son in support of his preposterous fictions. He invented the story of a seditious plot, in which the lieutenant was embroiled and for which he was arrested, only to extract a sum of one thousand florins for obtaining his release from prison.

The next fraud was a trumped-up tale that the lieutenant was in serious pecuniary difficulties and that, unless cleared, the marriage must be broken off; the result was a further advance by the baroness, who sold off a quantity of her furniture to obtain cash. Then it appeared that the lieutenant was involved in a dishonourable intrigue and could only be extricated by paying blackmail; he must make presents to his fiancée and the jeweller's bill must be settled; a house for the young couple must be furnished, and hence the abstraction of many articles from the home of the old Stromwalters, all of which were pawned by Thalreuter.

Strange to say, relations were never opened up with the Von Wallers; stranger still, no direct communications were opened with the son. And it would seem perfectly incredible that his parents did not write to him on the

subject of his coming marriage, of his arrest, or of his embarrassments and necessary expenditure. They did write, as a matter of fact, but Thalreuter intercepted all the letters and continued his thefts and embezzlements unchecked and undiscovered. He made a clean sweep of everything; emptied the house, dissipated the property, obtained the baroness's signature to bills and drafts by false pretences, and ruined her utterly.

The large sums thus shamelessly obtained by Thalreuter were thrown absolutely away. He entertained his acquaintances, mostly of the lowest classes,—peasants and domestic servants,—in the most sumptuous manner at different inns and taverns. Not only were the most costly wines poured out like water at the table, but they were cast into adjacent ponds and dashed against the carriage wheels; the most delicate viands were thrown out of the window for boys to scramble for; splendid fireworks were set off to amuse the guests, among whom he distributed all kinds of expensive presents with the greatest profusion. One witness even stated that on one occasion he moistened the wheels of the carriage he had hired with eau de Cologne. A toyman, Stang by name, who was the constant companion of Thalreuter and partaker of his extravagant pleasures, sold him, in one year, goods to the amount of 6,700 florins, among which was eau de Cologne worth 50 florins. Stang, on first witnessing the boy's extravagance, thought it his duty to report it to Baroness von Stromwalter, but was told that the expenditure of her James would not appear surprising whenever the secret of his birth and rank should be revealed; that at present she could only say that he was the son of very great parents and would have more property than he could possibly spend. The poor toyman was, of course, overjoyed at the thought of having secured the friendship and custom of a prince in disguise, and no longer felt any hesitation in accepting Thalreuter's presents and joining his parties, and from that time forward they became almost daily companions.

Thalreuter's behaviour did not escape the notice of the authorities, but when they applied to his foster-parents, they were put off by the same mysterious hints of his noble birth. But fate at last fell heavily upon the young impostor. When called upon to pay a long-standing account for coach hire, Thalreuter produced a cheque purporting to be drawn by a certain Dr. Schroll. The signature was repudiated as a forgery, and the young man was

arrested. The baroness still stood by him and was ready to answer for it until the scales fell from her eyes at the swindler's astonishing confessions. Thalreuter now recounted at length the repeated deceits and frauds he had practised upon his foster-parents, the extent of which could hardly be estimated, but there was little doubt that he had extorted by his dishonest processes a sum between 6,000 and 8,000 florins. He implicated the unfortunate Stang in these nefarious actions, and other well-do-do and respectable persons. Many of the charges brought proved to be utterly false, and it appeared that this consummate young rogue had acted chiefly alone. It was clearly made out that he had had no assistance in effecting the ruin of the too credulous Stromwalters, and had relied upon his own wit and the extreme weakness and simplicity of the old people.

Thalreuter, in consideration of his youth, was sentenced to only eight years' imprisonment at hard labour and a corporal punishment of twenty-five lashes on admission to prison. He only survived to complete two years of his sentence and died in 1828 at the bridewell in Munich.

Not many years after the coming and going of the false prince, Thalreuter, at Munich, another fictitious aristocrat flashed across the horizon of Berlin society, springing suddenly into notoriety and attracting universal attention. She was generally known as the "Golden Princess," but no one knew certainly whom she was or whence she came. She appeared about 1835, when she adopted a sumptuous style of living which dazzled every one and made her the universal topic of conversation. She occupied a luxuriously furnished villa in the Thiergarten, kept a liveried man servant, a coachman, a cook, a maid and also a lady companion, and habitually drove about Berlin in a beautifully equipped carriage. She frequented the most expensive shops, where she made large purchases, to the intense satisfaction of the tradesmen, who considered the "Golden Princess" their best customer, particularly as she was quite above haggling and bargaining. She was generous to a fault; the poor besieged her door, and her deeds of charity were many. She often travelled, and her journeys to London and Brussels were much discussed; she visited German baths and would post to Carlsbad with four horses. From all these places she brought back splendid presents which she lavished upon her acquaintances, although they were not always cordially accepted, for her social position during the earlier part of her

career by no means corresponded with her general magnificence. She did not frequent fashionable circles, nor did she receive much company at home.

A woman of this kind could not escape gossiping criticism. Many reports were current of her quality and antecedents. One story was that she was betrothed to a Brazilian, Count Villamor, who was supposed to have fallen in love with her abroad and was now providing the means for her to live in Berlin and to travel, so that she might fit herself for the high position of his wife. Others said that she was engaged to marry a Hamburg senator. German counts, and even princes, were also suggested as the future husbands of this interesting girl. The consensus of opinion, however, was in favour of the Brazilian, and her very ample means gave some colour to this assumption. She was an attractive woman, although not strikingly beautiful; she had good features and fascinating manners, and it was natural that this wealthy foreign count should fall in love with her. To call her an adventuress was unjustifiable.

This Henrietta Wilke, for such was her modest name, was no stranger in reality, nor was she of distinguished parentage. She was born of humble people who died when she was a child, and she had been befriended by some wealthy folk who gave her an education above her station, so that when, at their death, she was obliged to go into domestic service, she was treated more as a friend than a servant. She began as a nurse-maid and then became companion to an elderly maiden lady of Charlottenburg named Niemann, who played a large part in her subsequent history.

Henrietta Wilke had borne a good character as a respectable, unpretending girl, and there was no reason whatever to suspect her of frauds and malpractices for the purpose of acquiring wealth. The police could urge nothing against her, even if the sources of her wealth were obscure. She did not thrust herself into the society of well-to-do people to cheat and impose upon them. On the contrary, she consorted with a lower class and behaved with great propriety; her reputation was good; she paid her way honourably, was extremely charitable and never seemed ashamed of her poor relations. Still, there were those who smiled sarcastically and hinted that some strange truths would yet be disclosed about this enigmatic personage.

Among those who trusted her implicitly was the proprietor of a large furniture establishment in Berlin, Schroder by name, from whom she had made large purchases, always paying for them in cash. One day he made so bold as to ask her if she would lend him a few thousand thalers to increase his business, as she seemed to have a large capital at her command. She replied that she had not attained her majority—she was twenty-three years old, but the age of majority in Germany was twenty-four years. She would otherwise gladly give him the sum herself, she said, but in the meantime she promised to try to procure it from a friend of hers who had the control of her own fortune. The following day she informed Schroder that her old friend Fräulein Niemann, of Charlottenburg, was quite prepared to lend him 5,000 thalers at four per cent., on the security of his shop. The money, however, was invested in debentures, and it could not be released until the repayment of 500 thalers which had been borrowed on them. If Schroder would advance that sum, the whole business might be settled at once.

Schroder, after making inquiries and hearing nothing but satisfactory reports about Fräulein Niemann, went to Charlottenburg and, in the presence of Henrietta Wilke, gave her the 500 thalers to secure the 5,000 thalers which were to be shortly handed over. But on the following day Fräulein Wilke came to him again and said that the debentures could only be released by the payment of 1,000 thalers; to compensate him she offered to raise the loan to 8,000 thalers. Schroder, after some hesitation, agreed to pay the further 500 thalers; but he first sought further information as to Fräulein Niemann's solvency, taking her promise in writing to lend him on June 28th, 1836, a capital of 8,000 thalers and to repay him his loan of 1,000 thalers.

Instead of the money, however, Henrietta Wilke came to him again and announced that Fräulein Niemann meant to make his fortune. She would lend him 20,000 thalers instead of 8,000 thalers, but to release so large an amount of debentures she required a further sum of 500 thalers. Schroder at first demurred, but, after paying the two ladies another visit, he relented. He paid the third 500 thalers and for this was to receive on February 10th the whole sum of twenty thousand thalers. The 10th of February passed, but the money was not forthcoming. Instead, a message came to say that 8,000 thalers at least should be paid on the following Monday. Fräulein Wilke

appeared on the Monday without the money, indeed, but with the news that as her friend's banker had not made the promised payment, she would borrow the sum from another friend. Schroder believed her, and his confidence was such that he gave her 100 thalers more, which she still required to draw out the necessary debentures. He received a receipt from Fräulein Niemann, and February 13th was fixed as the day of payment. But on the day when this agreement was made, Schroder heard that other persons had received from Fräulein Wilke some of the bank-notes he had given to her or Fräulein Niemann for the release of the debentures. Indeed, he learned that Fräulein Wilke had bought two horses with one of his 300 thaler notes.

He rushed to Charlottenburg and found Henrietta and her companion at Fräulein Niemann's. A violent scene took place, but a reconciliation followed, and Schroder allowed himself to be persuaded to wait until February 27th. When on that day the money was again not forthcoming, he very naturally grew uneasy and applied to the police. Herr Gerlach, at that time the head of the force, found no cause for prosecuting Henrietta Wilke or the blameless Fräulein Niemann, and although the celebrated police magistrate Duncker did not agree, no steps were taken to arrest them. Schroder now decided to sue Fräulein Niemann. A compromise, however, was reached. He then limited his demands to the repayment of the 1,600 thalers and to the loan of a small capital of 8,000 thalers, both of which were conceded. To disarm his suspicion, Fräulein Wilke required of Fräulein Niemann that she should at least show him the money he was to receive. The old lady accordingly took out of her cabinet a sealed packet with the superscription "10,000 thalers in Pomeranian debentures." Schroder asked that it should be given over to him at once, but Fräulein Wilke, always the spokeswoman for Fräulein Niemann, explained that this was impossible on account of family circumstances, and that he could not have the debentures until March 30th. The day came but not the money; Fräulein Wilke and her companion Fräulein Alfrede called upon him and continued to allege complicated family affairs as the cause of the delay. To reassure him, however, and to disarm suspicion, she handed over to him, in Fräulein Niemann's name, the sealed packet with the 10,000 thalers in debentures, but with the injunction not to open it until April 5th, otherwise, no further payments would be made; then to convert the debentures into

cash, keep 1,600 thalers for himself, take 8,000 thalers as a loan, and return the rest to Fräulein Niemann. All parties now seemed satisfied.

On the date fixed, Schroder went to a notary's office under police instruction and broke the seals, when, in the place of the 10,000 thalers in debentures, they found nothing in the envelope but several sheets of blank paper. A fraud had evidently been committed which pointed to other irregularities. It would be tedious to describe in detail the ingenious deceptions practised for years past by Henrietta Wilke on Fräulein Niemann, whose god-daughter she was, and upon whom she had continually imposed by pretending that she was the protégé of great personages, more especially the princess Raziwill, who had secured the good offices of the king himself, William III, on her behalf. The Fräulein Niemann was deluded into making large advances, ostensibly to help the princess in her necessities and ultimately the king, but which really were impounded feloniously by Wilke. The king was also supposed to be mixed up in the backing of Schroder's furniture business, and the packet containing the sham debentures was represented to have been really prepared by royal hands. This farrago of nonsense failed to satisfy Schroder, who now gave information to the police and the "Golden Princess" had reached the end of her career. She was taken into custody and subjected to judicial examination. When before the judge, all her powers of intrigue seemed to abandon her. She made a full confession and admitted everything. What was the motive which led so young a girl to commit such gigantic frauds, was asked. The criminal herself gives the simplest explanation of this in her own statement:

"In first practising my frauds on Niemann, I was actuated by a distaste for service as a means of support. It proved so easy to procure money from her that I continued doing so. At first I thought that she was very rich and would not be much damaged if I drew upon her superfluity. When, however, she was obliged to raise money on her house, I saw that she had nothing more, but then it was too late for me to turn back." When asked if she had never considered the danger of detection, she replied with complete unconcern that she had entertained no such fears. She had spent everything she had received from Fraulein Niemann and others to gratify her desire to live like a fine lady, and had retained nothing but the few articles found in

her possession at the time of her arrest. In this simple statement the whole explanation of her way of life was contained. All the witnesses who had known her previously testified to her being a quiet, good-tempered person and that she was well conducted from a moral point of view was certain. Her relatives confirmed all this, but stated that they had always considered the education given her to be above her condition, and had thought it encouraged her in her frivolity and her desire to play the lady of quality. All this tallies with the whole story of her life which was based upon the desire for luxury and show.

Opportunity creates thieves and also begets beings of her sort, addicted to speculative transactions. They begin in a small way and good luck spurs them on to greater enterprises. Like her imagination, her talent for intrigue grew apace. From the humble position of a nurse-maid, she aspired to raise herself to that of a lady companion. She only pretended to act as the favoured agent of a king, after having posed as the pet of a princess and the betrothed of several counts, her early desire to be a school mistress having been cast aside as unworthy of her soaring ambition.

While in prison, she composed a letter to the king, supposed to be written by Fräulein Niemann, in which this lady is made to implore his pardon for her protégé, and begs him to open the prison doors. To this she added some lines addressed to Fräulein Alfrede, Wilke's former companion, directing her to induce Fräulein Niemann to copy it in her own hand; and it was then to be delivered by the companion to a trustworthy person who would see that it was given to the king. The contents of this epistle were divulged by another prisoner. It produced no results, of course, but bears witness to Henrietta Wilke's courage and adroitness in continuing to weave her intrigues within the prison walls, and shows how long she must have held the old lady a captive in a net of lies.

The first verdict was pronounced on May 21, 1836. According to Prussian law, the fraud committed could only be atoned for by the reimbursement of double the sum misappropriated, and if the criminal were without means, a corresponding term of penal servitude would be inflicted. This duplicated fine was computed by the judge at 42,450 thalers, and he desired that on account of the self-evident impecuniosity of the girl Wilke, and of the

allegation brought forward of aggravated circumstances connected with her malpractices, a sentence of twelve years' penal servitude be pronounced.

Confined at first in Spandau and afterward in Brandenburg, the prisoner's conduct seems to have been uniformly good. She occupied herself with embroideries, which were said to be very skilfully executed. A petition for her pardon was sent in some years ago, but was rejected, as there was no reason for letting out so dangerous a prisoner before her term had expired. Even when the period for release arrived, she was not allowed her freedom until the administrator of the institution had satisfied himself that she had really been improved by the punishment endured, was capable of earning her livelihood honestly, and that her liberation would not endanger the public safety.

A case of the pretentious impostor of recent date, imprisoned in various German prisons, is that of George Manolescu, whose memoirs have appeared in the form of an autobiography. So varied were the experiences of this thorough-paced scoundrel, so cleverly did he carry out his gigantic depredations and his numerous frauds and thefts great and small, almost always without any violence, that his story has all the elements of romance. Manolescu was highly gifted by nature. Endowed with a handsome person, he appeared to have an affectionate disposition, spoke several languages with ease and fluency, and his singular charm of manner made him at home in the most fastidious society. Exhibiting an utter disregard of the commonest principles of right and wrong, he devoted his talents and his marvellous ingenuity to criminal malpractices.

George Manolescu was born on May 20th, 1871, in the town of Ploesci in Roumania. His father was a captain of cavalry, who, owing to his implacable and haughty character, was constantly being shifted from one garrison to another; his mother, a great beauty, died when he was two years old, and the care of his early childhood was confided to his grandmother, whom he caused endless trouble. Later on he was transferred from school to school, for his passionate love of perpetual change and his undisciplined nature prevented him from settling down to work anywhere. This longing for travels and adventures was, indeed, deep seated and unconquerable, so that at last his father sought to give it a natural vent by sending him to an

academy for naval cadets. At first his conduct was good, but soon his intolerance of control asserted itself and led him to insubordination. On his return to the academy after a vacation, he misconducted himself and was punished with close confinement in a small cell under the roof. He managed, however, to break open the door, climb out on the roof and let himself down into the street by means of the nearest telegraph post. He started at once for the harbour of Galatz, and with only one franc, 50 centimes for his whole fortune, stowed himself away on a steamer bound for Constantinople. The captain had him put on shore at that port. Half dead with fatigue and hunger, he obtained a portion of *pilaf* from the first vendor of that delicacy whom he met in the streets of the Turkish capital, and after satisfying his appetite, in lieu of payment he flung the empty dish at the man's head and took to his heels. He ran up to Pera and entered the public garden, where an entertainment was in progress at a theatre of varieties. Here he met a Turkish officer who noticed him and with whom he had some conversation. Seeing the corner of a pocket book protruding from that worthy's half-open coat, the boy with lightning speed possessed himself of it unobserved, and also picked the officer's pocket of a cigarette case encrusted with diamonds. He then escaped with his booty. The pocket book contained 20 pounds sterling; with this sum he set up a sort of bazaar by filling a large basket with various articles for sale, and, assisted by a young Italian he casually met, cried his wares all over the town. This first venture was not successful, as he made no profit and the assistant ran away with the whole stock in trade, including the basket.

Thus living from hand to mouth, he decided to turn his back on Constantinople, where he felt the eyes of the police were upon him. Being penniless, he applied to the Roumanian legation to send him home, which they consented to do. On landing at Galatz, as he was entirely without money, he went into the nearest café, annexed the first overcoat he saw, and pawned it for a few francs. This was not enough money to pay his journey to Bucharest where his family now lived, so he sought other means to replenish his exchequer. Loving, as he did, everything pertaining to the sea, he visited the various foreign ships lying in the harbour and inspected all parts, always stealing as he went any valuables he could find in the cabins of the captain and chief engineer. Presently Galatz became too hot for him,

and he found it expedient to proceed to Bucharest, where he made but a short stay.

Paris, the dream of every youthful *vaurien*, strongly attracted him. In the meantime he started on his travels once more, and again reached Constantinople, from whence he travelled on to Athens, defraying his expenses by clever thefts. One fine day, however, he found himself in the Grecian capital without funds and once more applied to the Roumanian legation to be repatriated. This request being refused, he drew his revolver, put it to his breast, pulled the trigger and fell down senseless. He was removed to a hospital, and although the ball could not be extracted, he did not die, as the surgeon expected. While he lay there, he attracted much sympathy and received several gracious visits from Queen Olga of Denmark, who was at that time in Athens. Her kindness so touched him the first time she came that he burst into tears. She caused him to be removed to the best room in the hospital, defrayed his expenses, and when he recovered ordered him to appear at the Greek court. Subsequently she provided the means for his journey home where, as before, he remained but a short time.

In July, 1888, his love of adventure again drew him away and eventually he managed to reach Paris, where he established himself in the Latin Quarter. His family agreed to make him a small monthly allowance, provided he should adopt some reputable means of livelihood. But the attempt was half-hearted, and as he soon found himself straitened in his means, he eked them out by thefts committed at the Bon Marché, Louvre and other great department stores. His tricks and fraudulent devices were ingenious and varied and may be passed over. He soon aimed at higher game and began stealing unset precious stones from jewellers' shops, by which he realised plunder to the value of about 5,000 francs monthly. He hired a beautiful villa in the rue François I, lived in luxury, kept race horses and was well received by members of fashionable society, in whose exclusive homes he was made welcome as the supposed son of a rich father, and where he gambled on an enormous scale, often losing large sums. One fine day, however, fate overtook him and he was arrested for thirty-seven thefts to the aggregate value of 540,000 francs. He was thus dashed from the height of prosperity into an abyss of misfortune, and in 1890, when still barely nineteen years of age, he was sentenced to four years' imprisonment. After

his release, he was again sent home to Bucharest, where as usual he remained only a short time.

He now visited various countries, including Japan and the United States. In Chicago, where many bankers are of German extraction, he was invited everywhere, partly because his German was so perfect and also because he adopted the title of Duke of Otranti and so made an impression by his imaginary high rank. Rich marriages were proposed to him, but the parents of a beautiful girl whom he desired to make his wife discredited the proofs he offered of his wealth and exalted rank. He continued his thefts and was twice imprisoned during this period of his career. But as we are chiefly concerned with his German experiences, we shall take up his life again at the time of his marriage to a German countess of an ancient Catholic family whom he met travelling in Switzerland. He managed to procure the consent of the girl's mother, but the rest of the family were averse to the match. The young people were genuinely in love, and this marvellous adventurer never ceased to love his wife and was a tender, though not very faithful husband while they remained together. There were so many difficulties to be overcome and so much to be concealed that the marriage seemed hardly possible. But Manolescu procured his papers from Roumania and the couple were married by the bishop of Geneva, the Roumanian vice-consul being present, though the bridegroom, to add to other complications, belonged to the Greek Church. He travelled a great deal with his wife, and in 1899 visited some of her aristocratic relations at their fine country schloss, where he was warmly received. Later on the young couple settled in a lovely villa on the Lake of Constance, where their only child, a girl, was born.

Of course Manolescu was soon short of money, and he decided to start for Cairo to try to procure for himself a position there as hotel manager. The parting between husband and wife, although they supposed it would only be temporary, was most pathetic. They never lived together again. He never reached his destination, for when out of reach of his wife's good influence, his thieving proclivities again overmastered him, and at Lucerne, one of his stopping places, he entered the rooms of a married couple staying at his hotel and stole most of the contents of the lady's jewel case which he found in the first trunk he opened. In the husband's trunk he also found valuable securities which he appropriated, and with this rich booty he escaped to Zurich. At the Hotel Stephanie there, he robbed the bed-room of an

American gentleman, making off with bank-notes and French securities to the amount of 70,000 francs. Shortly after this coup he was arrested at Frankfurt and taken to a police station. A brief description given in his own words of some of his experiences there may be of interest.

“At the prison I was given in charge of the inspector. This man, wishing at once to assert his authority, ordered me in a brutal tone to strip where I stood, on a stone floor in a cold corridor where there was a terrible draught from the open windows. I submitted, knowing this measure to be usual at most prisons, though it does not take place elsewhere in a corridor, but in rooms specially arranged for this purpose; also prisoners are generally allowed to keep on their under-linen and shoes. I, however, had to divest myself of everything except my shoes. My garments were carefully searched one by one. During this time the inspector stood in front of me with an evil smile on his face, swaying himself from side to side. I begged him civilly to allow me to keep on my shirt, whereupon he replied that I was well protected from cold by my shoes. Beside myself with rage, I took them and flung them at his head. He threw himself upon me and tried to strike me with his bunch of keys, but I seized his wrist and twisted it, forcing him to drop them. Two warders now appeared at his call, and he ordered me to put on my clothes. To these irons were to be added, but I resisted, and a fight took place in which I came off the victor. The attempt to put me into irons was given up, and I was moved up into a small but airy cell, where I was securely locked up. Later, however, the chief inspector came to see me; he spoke to me kindly and begged me to behave quietly and he would see that I was not maltreated in any way.”

Manolescu's attempt at escape, his simulation of madness, and the interviews with his wife, who came to Frankfurt that she might see him, need not be detailed at length. It is enough to say that he was extradited to Switzerland, tried and sentenced to only six months' hard labour. Having regard to the strictness of the Swiss laws, this was a mild sentence, but Manolescu was not considered by the authorities to be in his right mind.

In September of 1900, after his release, he crossed once more to America, where he carried out a large robbery successfully, and returning to Paris, again lived on the very crest of the wave, frequenting the same fashionable

circles and attributing his long absence from France to family affairs. He now assumed the title of Prince Lahovary, and had a neat prince's coronet printed on his visiting cards. He posed as a bachelor, looked about for a wife, and proposed to a young American widow whom he met at Boulogne, where she was staying with her father and brother. She evinced some inclination to accept him and some of her relatives favoured the "prince's" suit. At the end of three weeks' courtship they parted, agreeing to meet later on in Berlin. Lahovary, as we must now call him, returned temporarily to Paris, where he literally wallowed in luxury. The large sums he spent he managed to provide for the time being by play, for he was a most inveterate gambler, although not usually lucky, as he calculated that he had lost altogether 1,800,000 francs at cards during his career. In November he arrived, as agreed, in Berlin, accompanied by a secretary and valet, and made his entry into the proud German capital as "Prince Lahovary," a great personage by whom all Europe was presently to be dazzled and who was to be the subject of endless talk. He established himself with his suite at the Kaiserhof, still falsely pretending to be unmarried, and continued his courtship of the young widow. But his resources soon melted, and he was forced to undertake a fresh robbery on a large scale, which led to his undoing. On the evening of this theft he left Berlin for Dresden, where he sold some of the jewelry he had stolen to a court jeweller for 12,000 marks, and then returned to Berlin to take a temporary leave of his American friends, explaining to them that important affairs called him to Genoa. The father of the young widow proposed that as he and his son and daughter were shortly to sail for America from that port, they should all meet there, and they arranged a rendezvous for January 10, 1901. Now occurred a dramatic little incident in the life of this strange man worth recording.

On January 1, 1901, he left Berlin and went to the place where his wife lived with her child. He wanted to see them once more before proceeding to Genoa to sail from thence to the new world, although he had fully determined to marry the other woman, if possible, and settle down to a properly regulated life in America. He reached the town on January 2nd, at 9 o'clock in the morning, hired a carriage and drove to a shop to buy toys for his child and presents for his wife. He then drove to the villa where his wife lived and stopped at the gate, which he rang five or six times. No one answered or came to open the gate for him. His wife lived on the ground

floor and from the window she could see any one who came without being seen. When she recognised her husband, she would not open the door, having promised her aunt never to resume relations with him. He was not to be gainsaid, however, and continued to pull the bell unceasingly. At last the outer door was unlocked and his wife came out as far as the garden gate, but this she did not open. With a trembling voice she asked him what he desired of her. He could hardly speak from emotion, and held out to her his presents, which she refused, saying she did not know with whose money he had bought them. He implored her to let him in to see their child, but she firmly declined. Then he fell into a passion and threatened to return with a representative of the law to help him claim his paternal rights. To prevent a scandal, she promised to show him the child from the window. At last he agreed to this compromise; she returned to the house and presently appeared at the window with the child in her arms. The little child looked at her father with uncomprehending eyes; he stared at his daughter for several minutes, then turned, hurriedly drove away and never beheld his wife or child again.

On reaching Genoa shortly afterward, he was arrested, as the police authorities in Berlin had discovered his theft, and he was sent back there and detained in the well-known Moabit prison. He was placed in a cell where he remained for nearly a year, until May 30, 1901. The examining magistrate was a humane and just man and the lawyer whom Manolescu retained for his own defence was a celebrated barrister. He had no hesitation in confessing his crimes. As doubts of his sanity existed, the medical reports from the Swiss prison, expressing uncertainty as to his mental state, were examined by the doctor of Moabit. Although the identity of the medical officer was suppressed, Manolescu guessed it by intuition and simulated madness so cleverly that he was sent to the infirmary in connection with Moabit, where he was kept under observation for six weeks. He was then taken back to the prison in December, 1901, armed with a certificate drawn up by specialists, stating him to be completely deranged, though this was doubted by the crown solicitor-general. At last, on May 28, 1902, he was brought before the criminal court, where he had some difficulty in maintaining his pretence of madness. The solicitor-general pressed for a conviction as an impostor, but a verdict of insanity was pronounced; he was acquitted as irresponsible, and transferred to the lunatic asylum at Herzburg.

Fourteen months later he escaped. He attacked and pinioned his warder, took forcible possession of his keys, locked him into his own cell, and then quietly left the institution by climbing over the garden wall. With the help of a lady, a member of the Berlin aristocracy, who was a friend of his, he was able to cross the Prussian frontier and to enter Austrian territory. As the papers, however, were full of his exploits, he was arrested at Innsbruck some time later and taken to Vienna, where he still feigned madness. The Austrian doctors supported the views of their Prussian colleagues, and he was acquitted also by the Viennese court of justice. Following this acquittal, Manolescu was sent to Bucharest, where he went determined to reform and to earn his bread honestly. He could find no employment until a publisher suggested he should write his memoirs in the form of an autobiography, from which this summary of his career has been taken. By this occupation he supported himself for a time. As he could find no other means of making his livelihood, he decided to emigrate to America, where he declared every industrious man could find work. He ends his autobiography with these words: "I do not bear my countrymen any grudge. I only wish that the unfortunate prejudices of the egoistic Roumanian form of civilisation which prevented them from holding out a hand to a repentant sinner may soon be removed. Thus ends the autobiography of George Manolescu, alias Prince Lahovary."

We fear his career after leaving Bucharest was not all it should have been, as the following paragraph appeared in January, 1906, in the *Daily Express*.

"George Manolescu, the celebrated swindler, has lately escaped from the prison of Sumenstein in Germany by feigning madness and pretending to be General Kuropatkin."

Another impostor, Leonhard Bollert, has stated that he was born in 1821. His father served as sergeant-major in the fifth *chevau-legers* regiment, and soon after the birth of the boy left the army, married the boy's mother and settled with his family in his own birthplace, a small town in lower Franconia, where he gained his livelihood as a provision merchant. The boy, who was greatly gifted, was apprenticed to a shoemaker at Würzburg, where he learned the trade thoroughly. After serving six years in the same regiment as his father, he went to foreign parts, incidentally embarking

upon a life of criminal adventure which lasted nearly forty years. While in the service of one of his employers, he was sentenced, for embezzlement, to a term in prison, which he served in Würzburg, a town which seems to have been at that period a high school for criminals. He then successively progressed, with longer or shorter intervals between the terms, through the prisons of Plassenburg, Kaisheim, Lichtenau, Diez in Nassau, the house of correction in Mainz and the Hessian penal institution, Marienschloss. By his aptitude and his thorough knowledge of shoemaking, he everywhere earned for himself recognition and good results. How he employed his time when at large could not be definitely established. At one time he served a Hungarian count, with whom he made long journeys. It must have been then that he acquired his refined manners and his aristocratic bearing. Why he left his employer at the end of six months is not clear. Probably some of his master's coin found its way into his own purse. Bollert used to relate to a small and select circle of friends the more startling incidents of his career with great pride,—such as his appearance at Wiesbaden as an officer and bogus baron. He also served in the papal army for a short time until it was defeated and dissolved. He was not indifferent to the fair sex and, as a handsome man, claimed to have had many successes.

During his last period of liberty in 1870, Bollert followed the profession of burglary and swindling on a large scale. The scene of his activity extended from Munich to the Rhine. He was clever at disguises and used a variety of costumes, wearing false beards of different hues; he possessed the complete uniform of a Bavarian railway guard, in which he once got as far as Bingen without a ticket. He plied his nefarious trade in Frankfurt, Würzburg, Heidelberg, Darmstadt, Nürnberg and Augsburg. At hotels he managed by means of false keys to enter the rooms of people who were absent, and often carried away all the articles of value he could lay hands on. In Frankfurt he was once arrested, but succeeded in breaking out of the prison. In Würzburg he was again caught and here the Court of the Assizes sentenced him to thirteen years' penal servitude.

No one would have taken Bollert for a dangerous and bold burglar. In spite of his fifty-one years, he presented a handsome appearance, had a great charm of manner and looked well even in a convict's dress. His expression was gentle, his address was civil and conciliating, but not in the least

cringing; his bearing toward the officials was never too submissive, but always polite. Ladies, whose feet he measured in his capacity of chief shoemaker, were never tired of describing the elegant manner in which he bowed, and they took a great interest in the history of this attractive convict. He was entrusted with the purchase of all the leather required by the board of management of the prison, and not only acquitted himself of this task to their entire satisfaction, but also cut out the most perfect shoes the officials' wives had ever worn. He was a Catholic and soon became an acolyte, serving the mass with a fervour never before manifested by a convict in prison. In his intercourse with the other prisoners he was always reserved, and he was and remained the "gentleman"—they always spoke of him as "Herr" Bollert. He never descended to frauds or low tricks, he never betrayed any one; but openly expressed his contempt for the behaviour of many of his companions in misfortune, without their daring to resent it. If he was offered a glass of wine or beer in the house of one of the officials, he never mentioned the circumstance. How was it that a man capable of thus altering his conduct, one may say his whole character, for a series of years, fell back into the old vicious course of action, upon being freed from restraint?

Bollert completed his thirteen years in prison, grew somewhat paler and older, but preserved his erect, graceful carriage. His end was never definitely known; no information reached the prison after his last release. Before his departure, the chaplain presented him with an old great-coat which he had repaired and remade, and he wore it with such a grand air that an acquaintance of the chief superintendent who had accompanied Bollert to the railway station, asked, "Was not that the attorney-general?"

CHAPTER VI

TYPICAL MURDERERS

Andrew Bichel, the German “Jack the ripper,” murders many women for their clothes—John Paul Forster murders a corn-chandler in Nürnberg and his maid-servant—Mysterious circumstances cleared up by clever inferences—Circumstantial evidence conclusive—Sentenced to perpetual imprisonment in chains—Rauschmaier, the murderer of a poor charwoman, detected by his brass finger ring—Sentenced to death and decapitated—The murder of August von Kotzebue, the German playwright, by Karl Sand, to avenge the poet’s ridicule of liberal ideas—Wide sympathy expressed for the murderer and strange scene at the scaffold.

A chapter may be devoted to some of the especially remarkable murders recorded in German criminal annals, which go to prove that the natives of northern regions, while outwardly cold-blooded and phlegmatic, will yield readily to the passions of greed, lust and thirst for revenge. The case of Riembauer, the abominably licentious priest, who murdered the victims he seduced, and who long bore the highest reputation for his piety and persuasive eloquence, rivals any crime of its class in any country. Germany has also had her “Jack the ripper,” in Andrew Bichel, who destroyed poor peasant women for the pettiest plunder. Murders have been as mysterious and difficult of detection as that of Baumler and his maid-servant at Nürnberg, and conversely, as marvellously discovered as by the telltale brass ring inadvertently dropped by the murderer Rauschmaier when dismembering his victim’s corpse. The murder of the poet Von Kotzebue by the student Karl Sand was a crime of exaggerated sentimentalism which attracted more sympathy than it deserved. Quite within our own times the killing of an infant boy at Xanten unchained racial animosities and excited extraordinary interest.

Let us consider first the case of Andrew Bichel, a Bavarian who lived at Regendorf at the beginning of the nineteenth century. He was to all outward seeming well-behaved and reputable, a married man with several children and generally esteemed for his piety. But secretly he was a petty thief who robbed his neighbours' gardens and stole hay from his master's loft. His nature was inordinately covetous and he was an abject coward, whose crimes were aimed always at the helpless who could make no defence. No suspicion was aroused against Bichel for years. Girls went to Regendorf and were never heard of again. One, Barbara Reisinger, disappeared in 1807 and another, Catherine Seidel, the year after. In both cases no report was made to the police until a long time had elapsed, and a first clue to the disappearance of the Seidel girl was obtained by her sister, who found a tailor making up a waistcoat from a piece of dimity which she recognised as having formed part of a petticoat worn by Catherine when she was last seen. The waistcoat was for a certain Andrew Bichel, who lived in the town and who at that time followed the profession of fortune-teller.

Catherine Seidel had been attracted by his promises to show her her fortune in a glass. She was to come to him in her best clothes, the best she had, and with three changes, for this was part of the performance. She went as directed and was never heard of again. Bichel, when asked, declared she had eloped with a man whom she met at his house. Now that suspicion was aroused against him, his house in Regendorf was searched and a chest full of women's clothes was found in his room. Among them were many garments identified as belonging to the missing Catherine Seidel. One of her handkerchiefs, moreover, was taken out of his pocket when he was apprehended. Still there was no direct proof of murder. The disappearance of Seidel was undoubted, so also was that of Reisinger, and the presumption of foul play was strong. Some crime had been committed, but whether abduction, manslaughter, or murder was still a hidden mystery. Repeated searchings of Bichel's house were fruitless; no dead bodies were found, no stains of blood, no traces of violence.

The dog belonging to a police sergeant first ran the crime to ground. He pointed so constantly to a wood shed in the yard and when called off so persistently returned to the same spot, that the officer determined to explore the shed thoroughly. In one corner lay a great heap of straw and litter, and

on digging deep below this they turned up a quantity of human bones. A foot deeper more remains were found and near at hand, underneath a pile of logs by a chalk pit, a human head was unearthed. Not far off was a second body, which, like the first, had been cut into two pieces. One was believed to be the corpse of Barbara Reisinger; the other was actually identified, through a pair of pinchbeck earrings, as that of Catherine Seidel.

Bichel made full confession of these two particular crimes. The Reisinger girl he had killed when she came seeking a situation as maid-servant. He was tempted by her clothes. To murder her he had recourse to his trade of fortune-telling, saying he would show her in a magic mirror her future fate, and producing a board and a small magnifying glass, he placed them on a table in front of her. She must not touch these sacred objects; her eyes must be bandaged and her hands tied behind her back. No sooner had she consented than he stabbed her in the neck, and after completing the hideous crime, appropriated her paltry possessions.

A complicated and for a time mysterious murder committed at Nürnberg in 1820 may be inserted here, as it throws some light upon the prison system of those days. A rich corn-chandler named Baumler was violently put to death in his own house in the Königstrasse late one evening, and with him his maid-servant, Anna Schütz, who lived with him alone. It was noticed that his shop remained closed one morning in September much later than five o'clock, his usual hour for beginning business. With the sanction of the police, some of his neighbours entered the house through the first floor windows by means of a ladder. They came upon a scene of wild disorder; drawers and chests had been broken open and ransacked with all the appearances of a robbery. Descending to the ground floor, the corpse of the maid-servant was discovered in a corner close to the street door, and soon the body of Baumler was found lying dead in the parlour by the stove.

There was little doubt that the master had been killed before the maid. She had been last seen alive the night before by the baker near-by, whose shop she had visited to purchase a couple of halfpenny rolls, and in answer to a question she had said there were still some customers drinking in Baumler's shop. Corn-chandlers had the right of retailing brandy and the place was used as a tavern. The murderer was almost certainly one of those drinking

in the shop, and the last to leave. The maid must have been attacked as soon as she returned, for the newly purchased rolls were picked up on the floor where she had evidently dropped them in her fright. She had apparently been driven into the corner of the shop and struck down. Baumler must have been killed first, for he would certainly have come to the maid's rescue when she gave a first cry of alarm. His body was found near the overturned stool on which he sat of an evening smoking his pipe, which lay under him with several small coins fallen out of his pocket when rifled by the murderer. The drawers and receptacles of the shop had been thoroughly ransacked and a large amount of specie had been removed, although a repeater watch and other valuables were overlooked.

The murderer had evidently acted with much circumspection. The entrance to the shop during working hours was by a glass door which was unhinged at night and a solid street door substituted, usually about eleven o'clock. The change had been made three-quarters of an hour earlier than usual, and the place had been closed, no doubt to prevent premature discovery of the bloody drama. All was dark and quiet by half past ten, although the miscreant was still inside, seeking his plunder, washing off the bloodstains and changing his clothes. He had taken possession of several of Baumler's garments, and this imprudence, so frequently shown by murderers, contributed to his detection.

Suspicion soon fell upon a stranger who had visited the shop at an early hour in the evening and had remained there alone after nine o'clock, when the other guests had left. All agreed in their description of him as a man of about thirty, dark, black haired and with a black beard, who wore a dark great-coat and a high beaver hat; he described himself as a hop merchant and sat with a glass of red clove brandy before him, his eyes fixed on the ground, saying that he was waiting for a friend. He was easily identified as a certain Paul Forster lately discharged from prison, whose father was a needy day labourer with vicious daughters. The son Paul lived with a woman named Preiss, in whose house he was arrested, together with the woman, and a substantial sum in cash was found on the premises. Next day Forster was recognised by the waiter at an inn as the man who had entrusted an overcoat of dark gray cloth to his keeping. The coat when produced was

seen to be soaked in blood. Forster himself was wearing another, a blue overcoat, which soon proved to have belonged to Baumler.

On reaching Nürnberg, both prisoners were confronted with the bodies of the two murdered persons. Forster viewed them with great unconcern, but the woman Preiss was visibly shocked. Forster's movements on the night of the crime were traced, and he was shown to have visited his father's house just after the murder, also it was proved that his sister had given him an axe some time before to take into the town to be ground, and this was found in his house lying behind the stove wrapped in a wet rag, and visibly stained with blood.

The circumstantial evidence against Forster was conclusive. The blood-stained great-coat, the possession of Baumler's property and clothes, and his presence at the scene of the crime were significant facts. The accused felt that all this surely tended to convict him, but he thought out a line of defence in the quiet of his prison cell. He sought to throw the blame upon others. He invented two persons, relatives of the murdered Baumler, who, he said, invited him, Forster, to go with them to Nürnberg where they promised him work, and from them he got, as a gift, the incriminating clothes. This fictitious story could not be sustained. The two relations did not exist and they had had no dealing, as pretended, with Forster. The whole defence was a failure, but not the less did the accused persist in his denials of guilt and fight strenuously with the examining judge. He was questioned on thirteen separate occasions and replied to thirteen hundred questions, after being confronted with innumerable victims. No confession could be wrung from him, and without it no sentence of capital punishment was admissible in the Bavarian courts. He held out obstinately to the last, under a well assumed cloak of calmness, gentleness and piety, as if submitting passively to a fate he did not deserve. He must have seen toward the end of his trial that the truth could not be overcome by his fables and cunning evasions, but he remained unmoved and, as his reward, escaped with his life.

The sentence passed upon him was perpetual imprisonment in chains and it was endured in the fortress of Lichtenau in Hesse-Cassel. His behaviour in gaol was in keeping with his dogged, unemotional character. He bore his

heavy punishment in impenetrable silence for years. His unbending obstinacy of demeanour was partly due to his callous, apathetic temperament, his unyielding power of physical endurance and his exalted personal pride. He liked to think that by stolid endurance he was proving his heroism. He boasted of his unbroken steadfastness of purpose, "Believe me," he told a fellow prisoner, "I shall never confess; I shall resist all persuasion to do so until my last dying breath. I never gave way all my life in anything I undertook. I hug my chains." He did so, literally, treating them as a badge of honour, a tribute to his constancy, and set himself in his leisure hours to polish them till they shone like silver. He delighted in the manifest admiration of his fellows, and at one time conversed with them freely, giving picturesque descriptions of his adventurous career and enlarging with evident pleasure on the details of his principal crime. He was often sullen and insubordinate and would do no work; no punishment would compel him or break his spirit; when they flogged him, he offered his back to the lash with the utmost indifference, taking the strokes without moving a muscle or uttering a sound, calmly protesting that they might do what they liked with his body, his spirit was unconquerable.

Forster's countenance was vulgar and heavy, his face was long, with an unusual development of chin in contrast with a narrow forehead; this gave a harsh revolting animal expression to his fixed and unvarying features, in which the large prominent eyes alone showed signs of baleful activity.

In one of the remote quarters of the town of Augsburg, a charwoman of the name of Anna Holzmann lived in a shoemaker's house. She was rather more than fifty years of age and, on account of her poverty, was in the habit of receiving relief from charitable institutions. It was thought by some, however, that she was not really in poor circumstances. She had good clothes and other possessions, for which she was envied. She evidently had more beds and furniture than she required for her own use, for she was able to take in two men as lodgers, who paid her rent and occupied a room next to her own. It was generally rumoured, moreover, that Mother Holzmann, although receiving alms, had put by quite a considerable sum and had a pot full of money saved.

On Good Friday, 1821, which fell on April 20th, Mother Holzmänn was seen for the last time. From that day she disappeared and left no trace. Her two lodgers, after awaiting her return for several days in vain, vacated their quarters. One, called George Rauschmaier, was the first to go. His companion, who bore the name of Josef Steiner, waited rather longer, and then he, too, took his departure. Believing the absent woman Holzmänn would presently return, they had notified the fact of her disappearance only to the proprietor of her house who lived in the next street. This man took over all the keys which his tenant had left behind, but, seeing nothing particularly remarkable in the circumstance of the woman's disappearance, he forbore to report it to the police until May 17th. The police immediately notified a magistrate, who caused Anna Holzmänn's nearest relatives, her brother and sister-in-law, to be questioned. The brother shared the prevailing impression that she had probably committed suicide. It was the general belief that she was a usurer who lent out money at high interest, and it was thought she had probably been defrauded of a large sum, and that when she found she could not pay her rent, she had no doubt drowned herself.

The seals which had been placed upon her property were now broken and an inventory made of her possessions. The brother and sister-in-law testified that the best articles were missing, and the pot of money which she was supposed to keep by her was not unearthed, nor any other hidden treasures. In all this there was nothing to arouse any suspicion of foul play, except a dreadful odour pervading the room, which greatly incommoded the persons engaged in drawing up the inventory. It was argued that a closer examination of the premises ought to be made, but for lack of any suspicious evidence pointing to a crime having been committed, the further search was postponed. Nothing occurred until early in the new year, when it so happened that one day in January a laundress and her son wanted to dry linen in the attic of the house which Holzmänn had occupied. In this attic, as was indeed the case throughout the wretched tenement, brooms and dustpans had never played a great part, and dust, old straw and other rubbish covered the floor and all the corners. Having kicked away some of the refuse with their feet, the two workers came upon something solid, which on closer inspection they discovered to be the thigh, leg and foot of a human body. Mother and son at once became convinced that these were the

remains of the missing woman, and they hastened to acquaint the legal authorities with the facts of their ghastly discovery. A deputation from the courts of justice immediately proceeded to the spot and found, among the straw and refuse in the corner of the garret, a naked left thigh with the leg and part of a foot attached. About six paces further on, inserted between the chimney and the roof, was a human trunk without head, arms or legs. On closer search, an old petticoat with a bodice and a red neckerchief were disclosed, the whole thickly coated with blood. These garments were immediately identified by the persons living in the tenement as having been worn by the woman Holzmann.

The search was now pressed forward still more energetically, and under the floor, concealed by one of the boards and in close proximity to the chimney, a right arm was found. The rotten boards in the small room Holzmann's lodgers had occupied were now further loosened and broken up, and a large bundle was uncovered. When the blood-drenched petticoat, which formed its outer covering, was unwrapped, there came to light a compressed right thigh with the leg and part of the foot, and separately enclosed in an old linen shirt, a left arm bent together at the elbow joint. All these limbs, as well as the trunk, were shrivelled like smoked meat and much distorted from long pressure. The process of decomposition had not set in, owing to the draught of air or from some other unknown causes. Now, with the idea of restoring them to their natural shape, the limbs were soaked in water for some days, then enveloped in cloths damped with spirits and stretched out as much as possible to prepare them for the autopsy, at which it was easily proved that all these members must have belonged to the same woman's body. The deceased, moreover, must have had small bones and have been well shaped. The arms and thighs had been adroitly extracted from their sockets, and neither on the trunk nor the limbs was there a trace of any injury capable of having caused death. If therefore a wound had been inflicted, fatal to life, it must have struck that portion of the body which was missing, and in spite of all research could not be brought to light, namely, the head of the victim. But even without the head, the dismembered limbs were identified as having belonged to the vanished Anna Holzmann. This there was abundant evidence to show.

A sure clue was presently found with regard to the head. Near the house inhabited by the deceased, a canal passed, receiving its water from the Lech; there were several of these water courses and they flowed through Augsburg with strong currents. The overseer of a factory, situated on the bank of this canal, had found, as far back as the Whitsuntide of the previous year, a human skull in the water, which might have come from a charnel house. He had examined it, had showed it to his brother, and then had thrown it back into the water to avoid any troublesome investigations. The skull was small, entirely stripped of flesh and only two or three teeth remained in the jaw. This head corresponded with that of Anna Holzmann as described by her relations. Obviously, if she had been murdered and dismembered, the easiest way of disposing of the head was to fling it into the canal at night time. As the water from the canal flowed back into the Lech, it would be swiftly carried away.

Another possibly important clue had been obtained when the corpse was laid out for the postmortem. The doctor, in trying to straighten out the left arm, had seen a brass finger ring drop to the floor from the inner bend of the elbow. This ring had not belonged to Mother Holzmann. No doubt it was the property of the murderer and, in the excitement of carrying on the dismembering process, it must have slipped off his finger unknown to him. The arm of the dead woman had caught and detained it. Here was conclusive evidence at first hand. But to whom did the ring belong? No one could say. Suspicion at once fell on the former lodgers of Anna Holzmann. They were the last persons who admitted having seen her and they had remained in the house without giving notice of her disappearance. Besides, who but they could have accomplished the dismemberment of the corpse, for which time and freedom from interruption were essential? Again, it was in the room occupied by them that a portion of the body had been disinterred. Rauschmaier had plainly prevaricated; he had stated on oath before the court of justice that his landlady had gone away on Good Friday with another woman, leaving him the keys of the lodging; yet this statement was, according to the clear evidence adduced, a distinct lie. It also developed that on the Saturday after Good Friday, Rauschmaier had, with the help of his sweetheart, carried off a part of Holzmann's property and sold or pawned the articles. This was deemed sufficient ground for his arrest.

Rauschmaier had not left Augsburg and his lodging was well known. When apprehended, he behaved with a mixture of calm indifference and seemingly absolute ingenuousness. He denied all knowledge of any crime committed on the woman Holzmann and again declared that she had gone away on Good Friday with another woman whom he did not know, leaving her keys in his charge. When taken to the cemetery and shown the corpse with its dismembered limbs pieced together, he exhibited no emotion and declared that he did not recognise the body. After being detained till the end of January, he begged to be brought before a magistrate and requested to be set at liberty. On the following day, however, he admitted that he had allowed himself to be tempted to take possession of some of his landlady's belongings during her absence. Yes, he was the thief. He also confessed that his sweetheart had removed the stolen goods with his knowledge and consent. With this frank avowal, all hope of further elucidation seemed at an end. There was nothing against him but that he had been the last to see the murdered woman; that he had omitted to report her disappearance; that he had excellent opportunities for murdering and dismembering her and that he was clearly a thief. But there were no witnesses to prove him worse.

The judge felt convinced of Rauschmaier's guilt. Another circumstance told against him. Among his effects there was a paper of a kind well known to the police. It was printed at Cologne, was ornamented at the top with pictures of saints and purported to be a charter of absolution from all sins and crimes however heinous, and it was claimed that it had been written by "Jesus Christ and sent down to earth by the angel Michael." These worthless documents were often palmed off on the superstitious in those days.

The examining judge now proceeded with circumspection. Instead of making more searching investigations into the murder, he dropped it entirely and, pretending to be occupied only with the theft, questioned the culprit solely in regard to this. The woman Holzmann's clothes were spread out before Rauschmaier, and he was inveigled into recognising all of them. But various little trinkets had been included, which had been found in his room and about the ownership of which some doubt existed. Among them were two earrings, two gold hoops and the brass ring already mentioned, which the corpse had tightly pressed in her left arm. The judge now seemed

on the point of closing the examination, as though he took it as a matter of course that Rauschmaier, who had admitted so much, would not hesitate to confess that he had also stolen these trifling pieces of jewelry as well. "No," the accused exclaimed, suddenly protesting against the supposed injustice, "these are mine, my own property." The judge strongly urged him to make no mis-statements but to stick to the truth. Nevertheless Rauschmaier continued to assert with great violence that the earrings, the hoops and the brass ring really belonged to him. He declared that he had always been in the habit of wearing the ring, and, as the judge still shook his head, Rauschmaier drew the ring on to show that it fitted the little finger of his right hand. It did so, but very loosely, and it could be twisted about from one side to the other. This betrayed him. He was further interrogated, and the judge laid much stress upon the suspicious circumstance, whereupon Rauschmaier broke down utterly and made full confession of his guilt.

He had been an idler from his childhood and, after serving in the Franco-Russian war, he deserted and was often an inmate of the house of correction at Augsburg. When free, he had supported himself in various ways in that city till he became a lodger in the house of the ill-fated woman Holzmann, whom he had resolved to kill on finding that she had so many valuable things and was supposed to possess much money. He was long undecided as to the method of doing the deed, but at last chose strangling as the easiest form of death and because it could be carried out without noise or leaving traces of blood; and he had heard doctors say that a strangled and suffocated corpse yielded little blood when dismembered. His opportunity came on the morning of Good Friday, when all the people in the house were at church and the lodger, Steiner, had gone out. Silence reigned in the tenement; he was alone in the upper story with the woman Holzmann. He stepped into her room and, without a word of warning, seized his victim around the throat with both hands and pressed his thumbs against her wind-pipe for the space of four or five minutes until he had murdered her outright. Then, when certain of the fact, he threw the corpse down and hastened to ransack her chest, which he found practically empty. Instead of a great treasure, he came upon only eight kreutzers and two pennies, and nothing more was brought to light after further minute search. He had strangled her for a few coppers.

Concealment was now imperative. After a quarter of an hour the corpse was cold, and he dragged it out through the door into the garret adjoining. He then proceeded to the ghastly work of dismemberment, and acquitted himself of the horrible task with the greatest adroitness, thanks to the knowledge he had acquired when campaigning, from watching the Russian surgeons at the same work. His labours occupied only a quarter of an hour. His plan for disposing of the limbs has already been described. Rauschmaier was condemned to be beheaded, but the additional sentence that he should previously stand in the pillory was remitted.

Besides Rauschmaier, his sweetheart and the other lodger, Josef Steiner, had been involved as suspects in the cross-examination. The woman's guilt consisted only in her having assisted in selling the stolen goods, and she came off with a trifling punishment. Steiner's connection with the principal crime was looked upon in a different light and was more complicated. This man caused much perplexity to the judge. In point of education and intelligence he was far inferior to his late room-mate. He could not be sworn because, although thirty-four years of age, he could not be brought to understand the nature and meaning of an oath. The judge declared that Steiner was on the borderland of insanity and on the lowest level of intelligence. When interrogated, he at first denied any knowledge of the crime, but later he practically became a witness for the prosecution and his evidence helped materially to secure conviction. Steiner himself was acquitted.

At Mannheim, on March 23, 1819, August von Kotzebue, the eminent German playwright, author of the famous play *The Stranger*, was stabbed to death by a hitherto unknown student named Karl Ludwig Sand. It was a murder of sentiment, not passion, and inflicted with cold-blooded calmness, to vindicate the liberal tendencies of the age exhibited by the so-called "Burschenschaft" movement, which Kotzebue had unsparingly ridiculed and satirised by his writings. Immense sympathy for the criminal was evoked in Germany; the heinous deed was approved by even the right-thinking, phlegmatic Germans, and tender-hearted women wept in pity for the assassin. His last resting place was decked with flowers, and he was esteemed a martyr to the cause of romanticism, while no one regretted the great dramatic poet.

As a youth, Sand suffered much from depression of spirits and pronounced melancholia. He was a patriot even to fanaticism, and showed it in his fierce hatred of the Napoleon who had enslaved his country. He could not bring himself to attend a review of French troops by Napoleon, lest he should attack him and so risk his own life. After the return from Elba, he entered the Bavarian service and narrowly escaped being present at the battle of Waterloo. At the end of the war he matriculated at the university of Erlangen and became affiliated with the "universal German students' association," the Burschenschaft, to which he vowed the most enthusiastic devotion. "It became," says a biographer, "his one and all, his state, his church, his beloved."

This guild did not develop very rapidly. But its leading members selected a meeting place situated on a hill in the vicinity of Erlangen. Here, after smoothing the ground and piling up stones to serve as seats, the students held a consecration feast at which punch and beer were freely indulged in. Hot discussions, followed by reconciliation, interrupted the proceedings. Dancing was indulged in around a fire, under the rays of the moon which shone through the pine trees, until the tired and probably somewhat intoxicated students, including Sand, lay down in different parts of the ground to sleep off their excitement. From Erlangen Sand moved to Jena, where he was a much less prominent student, and his life was uneventful, but when he left after eighteen months' residence there, it was for Mannheim with daggers in his breast and a matured purpose of slaying Kotzebue. He had satisfied himself, after much inward conflict, that by killing the satirist he would be rendering a supreme service to the Fatherland. He was now possessed with a passion for notoriety. At Erlangen he had championed a good cause; at Jena his activity had perforce ceased, and the desire to do some remarkable deed had grown upon him. Constantly hungering for an opportunity to make himself celebrated, he resolved at least he would become a martyr if he could not be a hero.

No obvious reason existed for his attack upon Kotzebue. The poet had many foibles and failings, it is true, but he had done nothing to deserve to be struck down by the dagger of a fanatic in the cause of virtue, liberty and the Fatherland. He had indeed ridiculed the outburst of German national feeling which was now being developed, and thereby gave great offence to

the youthful enthusiasts. He was employed as a correspondent by the Russian government, to report upon German conditions, literary, artistic and intellectual. Men of ability were often chosen in a like capacity by the Russian and other governments, and their calling was regarded as a perfectly honourable one. Kotzebue, however, wrote of Germany in a malevolent spirit. His vanity had been wounded by the public burning of his "History of the Germans," and this, no doubt, inspired the bitter sarcasm with which he attacked the German character, though his strictures were taken much too seriously by the Germans of that day.

Before Sand left Jena for Mannheim, he had a long dagger fashioned out of a French cutlass of which he made the model himself. This was the dagger which actually penetrated Kotzebue's breast. Sand called it his "little sword." On arrival, he engaged a guide to take him to the house where Kotzebue lived. The poet was not at home. Sand gave his name as Heinrichs from Mitau to the maid, and she appointed a time between five and six o'clock in the afternoon for him to call again. Soon after five o'clock he stood once more in front of Kotzebue's door. The servant, who admitted him at once, went up-stairs to announce him and then called to him to follow, and after some further preliminaries ushered him into the family sitting room. Kotzebue presently entered from a door on the left. Turning toward him, Sand bowed, of course facing the door by which Kotzebue had come into the room, and said that he wished to call upon him on his way through Mannheim. "You are from Mitau?" Kotzebue inquired as he stepped forward. Whereupon Sand drew out his dagger, until then concealed in his left sleeve, and exclaiming, "Traitor to the Fatherland!" stabbed him repeatedly in the left side. As Sand turned to escape, he paused to notice a little child who had run into the room during the progress of the murderous attack. It was Alexander von Kotzebue, the four-year-old son of the victim, who apparently had watched the proceedings from the open door. The boy shrieked and the murderer, who had been stupidly staring at him, was recalled to what was happening. But for this incident Sand would probably have escaped. A man-servant and Kotzebue's daughter now rushed in and raised the wounded man, who still retained sufficient strength to walk into the adjoining room with their assistance. Then he sank down near the door and died in his daughter's arms.

The house was in an uproar and for a moment Sand found himself alone. He fled downstairs but was interrupted; loud cries of “Catch the murderer, hold him fast!” pursued him, and being held at bay, he stabbed himself in the breast with his dagger. When the patrol appeared, he was carried on a stretcher to the hospital. For some hours after his arrival there he appeared to be sinking, but toward evening he revived sufficiently to be subjected to some form of examination. When questioned as to whether he had murdered Kotzebue, he raised his head, opened his eyes to their fullest extent and nodded emphatically. Then he asked for paper and wrote what follows:—“August von Kotzebue is the corrupter of our youth, the defamer of our nation and a Russian spy.” On being told that he was to be removed from the hospital to the prison, he shed tears, but soon controlled himself, ashamed, as he said, of showing such unmanly emotion. In gaol he was treated considerately and allowed a room to himself, being always strictly watched and allowed no communication with the outside world.

On May 5, 1820, the Supreme Court of the Grand-Duchy of Baden passed sentence on him in these terms: “That the accused Karl Ludwig Sand is convicted, on his own confession, of the wilful murder of the Russian counsellor of state, Von Kotzebue; therefore, as a just punishment to himself and as a deterrent example to others, he is to be executed with a sword,” etc., etc.

May 20th, the Saturday before Whitsuntide, was the day fixed for the execution. The place selected was a meadow just outside the Heidelberg gate. The scaffold erected there was from five to six feet high. In spite of precautions, the news of the approaching event spread far and wide so that crowds poured into Mannheim. The students’ association had agreed to mourn in silence at home. Most of the students, therefore, came to the fatal spot only when the bloody spectacle was over. Measures were taken to avoid disturbances by strengthening the prison guard, surrounding the scaffold with a force of infantry, using a detachment of cavalry to escort the procession from the prison, and providing a detachment of artillery under arms to call upon if necessary. Those of the educated inhabitants of Mannheim who felt sympathy for Sand did not show themselves outside their houses. Nevertheless, the streets were thronged, but in spite of this everything passed off quietly. When the scaffold was completed, the

executioner appeared with his assistants. Widemann, the executioner, wore a beaver overcoat under which he concealed his sword, but the assistants were dressed in black. They are reported to have eaten their breakfasts and smoked their pipes on the scaffold. In the covered courtyard of the prison Sand was lifted into a low open chaise, which was bought for the purpose, as no vehicle could be borrowed or hired in Mannheim for such an occasion. Looking around, he silently bowed his head to the prisoners whose weeping faces appeared behind their grated windows. It is said that during the course of the trial they were careful when being led past his window to hold up their chains so that the rattle might not annoy him. When the door of the yard was opened and the assembled crowd perceived the condemned man, loud sobs were heard in every direction. Upon perceiving this Sand begged the governor of the prison to call upon him by name should he manifest any sign of weakness. The place of execution was hardly eight hundred feet from the prison. The procession moved slowly. Two warders with crape bands round their hats walked on either side of the chaise. Another carriage followed, in which were town officials. The bells were not tolled. Only individual voices saying, "Farewell, Sand," interrupted the pervading silence.

Rain had recently fallen, and the air was cold. Sand was too weak to remain sitting upright. He sat half leaning back, supported by the governor's arm. His face was drawn with suffering, his forehead open and unclouded. His features were interesting without being handsome; every trace of youth had left them. He wore a dark green overcoat, white linen trousers and laced boots, and his head was uncovered. Hardly was the execution over than all present surged up to the scaffold. The fresh blood was wiped up with cloths; the block was thrown to the ground and broken up; the pieces were divided among the crowd, and those who could not obtain possession of one of these, cut splinters of wood from the scaffolding. According to other accounts, a landed proprietor of the neighbourhood bought the block, or beheading chair, from the executioner and erected it on his estate. Single hairs are said to have been bidden for, but the headsman protested against the accusation of having sold anything at all. The body and head were promptly deposited in a coffin which was immediately nailed down. After it had been taken back to the prison under military escort and its contents examined by the governor so that he might assure himself of the identity of

the corpse, it was removed to the Lutheran cemetery where Kotzebue's remains were also interred.

CHAPTER VII

THE STORY OF A VAGRANT

The biography of a German tramp—Miserable and neglected childhood—Becomes a professional beggar and thief—Committed to an industrial school—Joins a fraternity of beggars and becomes very expert—Meets with varied luck on the road—Arrested and punished—Gives some account of German prisons—Perpetrates a robbery on a large scale at Mannheim—Is caught with part of the stolen property in his possession and sentenced to penal servitude.

Germany has suffered grievously in recent years from the growth of vagrancy. The highroads are infested with tramps, and the prisons are perpetually full. Every good citizen is keenly desirous of reducing these scourges of society, but the progress of reform is slow. It is a difficult problem, but the first step toward solving it is to acquire a more accurate knowledge of the true spirit and character of these wrong-doers. One of the most unregenerate and irreclaimable has revealed the whole story of his life and transgressions, and some quotations from the account may throw light on the difficulties of the problem confronting the prison reformer.

“My name is Joseph Kürper and I was born at H. in the Palatinate on June 14, 1849. I was an illegitimate child and I spent my early years with my mother. When I was four years old, she went to service and I, thrown on my own resources, was forced to beg for broken victuals from door to door. Sometimes I was driven away with hard words or the dogs were set on me. I cannot remember ever having owned a pair of shoes, and as a child I had no bed to sleep in. I suffered all kinds of hardships. When the time came for me to go to school, my troubles increased. As I was dressed in evil smelling rags and tatters, I was kept apart, treated like a leper and an outcast, and if I played truant I was cruelly beaten. Nevertheless, I managed to evade

instruction almost entirely and did not learn much more than the alphabet. My life was that of a poor waif forsaken by God and man.

“At first I bore no ill-will to the well-to-do, and I had no quarrel with those who had treated me so harshly. Gradually, however, I realised my grievance against society and began to wage war on it by acts of pilfering, the first of which I committed in the house of a small farmer where my mother was in service. Tormented by hunger, I got in through a window and stole a loaf of bread and a few kreutzers. This was my first theft and it had bad results for me, for, when taxed with it, I confessed and was cruelly flogged by the farmer. Out of revenge I killed one of his fowls every day. Presently my mother again gave birth to an illegitimate child, a girl, and when the little thing was just able to toddle, she sent us out to beg in company, preferring this mode of support to that of working herself. We were beaten if we returned empty-handed to our hovel, so I became an expert thief in order to avoid the stick. My mother applauded me and my success was my ruin.

“At last, in the continued practice of stealing, I committed a theft that brought me for the first time within reach of the law. In the spring of 1860, when in my eleventh year, I laid hands on a watch in an empty house in the village of Kottweiler. I broke it up into its different component parts, which I sold separately to the children of our own village for pieces of bread. Though the watch was missed, I was not suspected and, growing bolder still, I soon after audaciously possessed myself of another watch hanging in a bake-house. This time I was caught red-handed, severely flogged, and then taken before the magistrate at Kusel. He put me through a cross-examination and I confessed everything. On my return home the village authorities vented their rage against me by beating me black and blue, and my little sister having let out the secret that I was also the thief of the watch at Kottweiler, I was again arrested and taken back by a police official to the magistrate at Kusel, who, on account of my youth, only sentenced me to two years’ detention at the industrial school at Speier. I was allowed to go home with my mother before being sent there, and when the police came to convey me, I ran away and managed to get over the Prussian frontier to St. Wedel. Here I first begged and then worked for a small farmer in the neighbourhood. After a time I ran away again, taking with me the watch of this brutal man who had maltreated me. I now tried to live by carrying

luggage at the railway station of the town. Here I found several opportunities for committing daring thefts and finally absconded, after helping myself to some money from the till of the refreshment room. After again intermittently working and stealing, I tried to set up as a highway robber, but without success, and was soon arrested by a police official who had a warrant out against me, and actually handed over to the authorities of the industrial school at Speier.

“Had this institution been the best in the world, I should not have felt at my ease in it, as I was like a young wild-cat or a bird of prey shut up behind iron bars. About one hundred Catholic children were confined there, all of them vicious and corrupt. Those who were unversed in criminal ways soon learned from the others. The majority, among whom I count myself, left the school worse than they entered. The system of education was perfectly worthless; we were constantly beaten and, being badly fed, we lost no opportunity of stealing broken victuals. I must acknowledge that I learned a great deal at school in regard to my trade, that of a shoemaker. But I had not been long in the place before I contrived to escape and reach the town of Lautern. Here I was taken into the house of a worthy tradesman, to whom I told my real name and origin; but I concealed the fact that I had run away from Speier. He became fond of me, and I noticed that he now and then put my honesty to the test, which induced me to resist every temptation bravely. As he was childless and wanted to train me up as a tradesman, a happy future might have been in store for me, had not fate decreed otherwise.

“One Sunday my master proposed taking me to see my mother, and we started on our drive. I was so afraid that the authorities of the village would send me back to Speier that when we halted somewhere to dine, and my master had dropped asleep, I ran away. I wandered about homeless for a time until at Kaiserslautern I was caught and returned to Speier. There I soon became aware that nothing good awaited me, and my fears were realised, for I was deprived of my supper the first night and on going to bed was cruelly flogged with a knout until the blood streamed down my back. But, though specially watched, I again escaped to Kaiserslautern, where I was employed by an upholsterer who taught me a great deal. Once more I was discovered and sent back to Speier, where I was a second time welcomed with the knout. I now made no further efforts to escape and for

the rest of my time possessed my soul in patience. The days passed monotonously, the only variation being that sometimes I was flogged more than usual. We rose early, dressed, washed, prayed and did our school tasks, breakfasted on thin soup, in which there was never a scrap of fat, and worked in the various shops until eleven o'clock, when we dined. After that meal came gymnastic exercises and drill. Then school or working at our trades alternately occupied the time until supper at seven, and we went to bed at half past eight. Sundays were more entertaining. In the afternoon, after service, we went to walk outside the town. On these expeditions we stole what we could in the way of edibles and took our booty to bed with us to eat it during the week, though, of course, we were flogged if our thefts were discovered, which, however, did not deter us from further efforts at pilfering in the institution itself. When the two weary years were over, I had grown into a tall, likely lad. I possessed a fair amount of schooling and I believed myself to be qualified to take a place as assistant to a shoemaker, being expert at my trade. I had received no religious impressions; principles I had none. I only longed for freedom and to enjoy life.

“My dreams of golden liberty were not to be fulfilled as yet. On being dismissed from the school, I was provided with two suits of clothes and sent to Lautern, where I had to present myself to a certain Herr Meuth, the president of a reformatory society. He placed me with a shoemaker. I had hoped I should be paid wages but, when claiming them with the other journeymen, I was told I should get what I deserved, and my master proceeded to take down a dog-whip from a peg where it hung and flogged me unmercifully. On the following Sunday he informed me that I was only an apprentice and should have to serve him in that capacity two years longer and could not escape it. At the end of that time he offered to keep me and pay me regular wages, but I refused, as he had so often abused and maltreated me. He gave me my indenture, which was, at the same time, a certificate of good conduct. I packed my possessions and wandered out into the world.

“As happy as a king, I started on my journey to Mannheim. I carried a satchel on my back and my road lay through the Rhine district where the trees were in full bloom. Arriving at my destination, I found occupation with a shoemaker who, however, declared that my work was not of a very

high character and paid me only one gulden a week, with insufficient food. In everything outside of my trade I was left to my own devices and consequently, being of an undisciplined nature, I led anything but a decent life. Looking back to these days, I recognise how very much better it would be if every apprentice, at the outset of his wage-earning life, were forced to belong to a guild, so that he would be protected by a strict corporation of this sort and obliged to obey its laws. In those days I thought otherwise, but now that I am under prison rule I regret the license I was allowed then. I remained a year at Mannheim but, as my master refused to raise my wages, I departed one fine day and walked to Karlsruhe, passing through Bruchsal and Heidelberg on my way.

“In Karlsruhe I likewise had the good fortune to find occupation without undue delay. The court shoemaker, Heim, took me into his house and gave me good wages and, as I did piece work, I sometimes earned from 12 to 15 guldens a week. On Sundays I used to dress myself in fashionable clothes, on which I spent my pay, and walk out with a glass in my eye and a cigar in my mouth, hoping to be taken for something far superior to a shoemaker’s assistant. I was a good-looking lad, and on a fine Sunday in summer I walked into a beer garden, where I made the acquaintance of a pretty young lady who was sitting at a table with a party of respectable people. I represented myself as the son of a rich man from Munich and said that my name was Junker, that I held a position in Karlsruhe as a confectioner and lodged in the house of the shoemaker Heim. The girl and her family believed my statements, and I was received with kindness as a visitor at their house. Of course, courtship in the guise of a rich man costs money, and I was soon obliged to pawn my watch. A Sunday came round on which I was unable to call on my sweetheart; I had to sit on my stool and draw my cobbler’s thread through shoeleather. My lady-love came to inquire for me, and saw me in my working garb. She turned and left the house, but I followed her and tried to excuse myself, whereupon she took out her purse and, pressing it into my hands, said, ‘Keep it and amend your ways. I do not quarrel with you for being a cobbler, but I am grieved that you should have deceived me.’ I returned to my room terribly ashamed and wrathful. I determined not to remain a moment longer in the town, so I paid my debts with the contents of my purse and took my departure. It was lucky for the

respectable and decent girl that she discovered my swindling practices before it was too late.”

After this the tramp wandered to and fro, from Baden to Offenburg, leading a precarious existence, working as a shoemaker when he could find employment and living royally when he had the funds, but begging for food and half-starved when out of luck. At last he reached Darmstadt where he joined an organisation of professional vagrants. Their headquarters were at a low tavern where false passports and “legitimation” papers were manufactured to help in confusing the police as to the true antecedents of this semi-criminal fraternity. He continues: “The day after my arrival at the inn, my new colleagues joined me at breakfast and a plan of campaign was fixed upon. I was to take off my shirt and leave it at the inn, wind a cloth around my neck and button up my coat to meet it; thus attired, I was to start out, accompanied by one of the vagrants dubbed in familiar parlance ‘the Baron.’ He was to point out to me the most likely houses for our purpose. I was to enter the first of these and beg for a shirt, and having obtained it, repeat the process at other houses. Thus by evening we should have collected from twenty to thirty shirts, which we were then to sell. By pursuing this line of business we should have money in abundance and live at our ease. This is a fair picture of the mode of existence of large numbers of journeymen lads in Germany, the children of respectable parents who go to perdition, body and soul. My first attempt turned out most successfully as the Baron had foretold, and I became very expert in my new calling. We worked as follows: The Baron pointed out a house where I might hope to obtain something in the way of a gift and indicated a place where he would wait for me to rejoin him. When the servant answered the door, I gave him the envelope containing my false ‘legitimation,’ and a begging letter describing my miserable condition, and asked him to take it to his mistress. He soon returned with my papers and a thaler, explaining that this was the best the lady could do for me. Flushed with victory, I ran to find the Baron, who slipped my papers into another envelope. He always carried a supply of envelopes to replace those that had to be torn open. We next went to the house of the Bavarian envoy, where I received a gulden and a good shirt. We continued our successful round until the evening, when we returned to the inn with our rich booty. Here every article was inspected, sorted, valued, and later, when the other habitués came in, the parlour was turned into an

auction room. Among the buyers was a policeman and, as he had first choice, he selected the best of my shirts, some of which were quite new, for himself. Other purchasers followed, and at the end of the evening we had disposed of all our goods. Our ready money amounted to a good round sum and was divided into three portions. I had made more in this one day than I had ever been able to earn in a week.

“Our plans for the following day came to nought. I was arrested about four o’clock in the morning by four police officials who penetrated into my room, pinioned me when I offered resistance, and took me off to the police ward No. 2 on the charge of theft. Here I was interrogated as to what I had done with the articles I had stolen on the previous day. I denied indignantly that I had stolen anything at all, but I was next conducted across the market place to a jeweller’s shop and identified by the owner as the rascal whom he suspected. I was quite puzzled at the unwarranted accusation against me, although I remembered having been in the shop on the previous day. From the police ward I was carried to the prison and locked up in a cell, where I remained for three whole days, until interrogated, and, as the jeweller persisted in his accusation, I was detained for eight days longer. Finally the jeweller, Scarth by name, appeared, full of apologies, and admitted that the knife he had believed to have been stolen had been found. The end of this incident was that Scarth compensated me handsomely for my long and unjust imprisonment. The next morning I packed my satchel and started for Frankfurt. I walked from Darmstadt to Frankfurt, and only remember that on my way I stopped at a farmhouse where, as I found no one about, I annexed a ham. Toward evening I reached the end of my journey and betook myself at once to a well-known ‘inn father’—for so we called our landlords—in the Judengasse. It is needless to state that a real vagrant has a perfect knowledge of all the disreputable haunts and low public houses of the whole German Empire. Next day I went direct to Baron Rothschild’s house, as he was the Bavarian consul, where I rang the bell, and, on being admitted to his presence, was told to produce my papers. I received two thalers and a free pass to the next place for which I said I was bound. This was all entered on my ‘legitimation,’ which was also impressed with an official seal, so that it became absolutely useless to me. As I now thoroughly understood the manufacture of these false documents, however, I made myself another one the same evening, entering myself as the

sculptor Burkel from Messau and under this name and designation I spent ten months at Frankfurt without doing a stroke of work. I made out a plan of the town and pursued my trade of begging from wealthy families in the principal streets, with great success. It is true that I was arrested several times, and put under lock and key for a few days now and then. Though warned to leave the place or to find work, I did neither, but ran the chance of being caught and identified.

“There are many well managed inns all over Germany, where respectable working men whose trade keeps them moving about can be comfortably lodged, and I will give a brief description of one of these hostelries called ‘The Homestead,’ situated on one of the banks of the Main, where I spent a night during my stay at Frankfurt, drawn there by curiosity. With my satchel packed and the air of being a newly arrived traveller, I sat down at a table and called for a glass of beer and a dram of spirits. The landlord inquired if I knew where I was, and said that though any decent traveller might remain at the ‘Homestead’ for three days if his means were sufficient, it was no place for drunkards and brawlers; that brandy was not sold and beer only in limited quantities. He then, having asked who and what I was, and being told that I was a sculptor out of work, said that I might stay three days if I liked. I was eager to know in what way this inn differed from those I had hitherto frequented, and resolved to remain until the next day in any case. About 8 o’clock in the evening the ‘father’ came in again and announced that supper was ready. Most of the artisans, of whom some forty were present, ordered some sort of meal. I asked for soup, potatoes and a sausage. I was not a little surprised when the landlord objected to our beginning to eat until he had said grace. Cards and dice were not allowed, nor cursing, singing or whistling. The only authorised games were dominoes, draughts and chess, and they might not be played for money. At 8 o’clock the bed tickets had been distributed; they cost 18, 12 or 6 kreutzers according to the sort of accommodation required. Each man had a separate bed, which is not usually the case in the low class inns. I took a 12 kreutzer ticket. My expenses were so far small, as only three glasses of beer were allowed per head. I noted down all these details most carefully, for I had never before been in a house of this description, having hitherto always avoided any place where there might be any allusion to God. At ten the father of the inn appeared and offered up a short prayer. Then we retired for

the night. The beds were clean and so were all the rooms, and everything was very cheap. At half past seven in the morning we had to be up.

“My experiences in this inn made a deep impression upon me but I confess I did not enjoy being there; I preferred the haunts where I met loose characters, and I enjoyed ribald songs and dissolute companions. Consequently I left the Homestead as soon as I could and betook myself to the Sign of the Stadt Ludwigsburg, where ne’er-do-weels congregate. Here I was initiated by a friend into the art of inveigling countrymen, small farmers and the like, to play cards. Our first attempt was made on a man who had just sold his produce in the town and been paid for it. We plied him with liquor and let him win for a while; then we relieved him of his ready money.

“Soon after this I was arrested as a disorderly tramp and sentenced to a short imprisonment with an injunction to find work on pain of being expelled from the town. The yearly fair was being held at Frankfurt, and I obtained employment on my release with the proprietor of a menagerie. My business was to attract people to his show, but I soon left him, as the public refused to pay for the sight of the sorry and starved wild beasts he exhibited. Next I hired myself out to the manager of a puppet show where I developed a great aptitude in the art of manipulating the puppets. When the fair was over, I had got together quite a considerable sum of money and I resolved to leave Frankfurt and go on to Stuttgart.

“Stuttgart is a happy hunting ground for those of my sort. It contains many ‘pietists,’—a sect made up of good and charitable souls who give freely. I remained there four weeks and did a wonderful business. I now figured in my papers as a compositor and on the strength of these documents even appeared before the Bavarian consul. I had collected a fine store of clothes and a lot of money when one day, toward the end of the fourth week of my stay, I was arrested in the Königstrasse by a man in civilian dress who told me to follow him. There was something in his looks which so impressed me that I dared not resist. I was condemned by the police actuary to fourteen days’ imprisonment and then to be banished from the town. I was taken to the Stuttgart prison where the governor received me with harsh words; he

was a Swabian and the Swabians are ruder than any other Germans; in other respects I had nothing to complain of.

“Several of my colleagues were sitting or lying about in a large room where we were detained, and at first they did not notice me. At last an old boy, who had evidently been through many vicissitudes, addressed me, and after some conversation, promised to wake me next morning to communicate something of importance. At three o’clock he poked me gently in the side and then led me to a corner of the room; there he told me that he was interested in me and wished to contribute to my success in the future, and that though he knew I was a member of the guilds, still I did not understand what most appealed to the public. At the present time, the war being just over, soldiers played first fiddle. He possessed an iron cross and a genuine ‘legitimation’ as the owner of it. This would suit me excellently, as it came from a Bavarian. He was old and had no more use for it and would sell it to me for three thalers. I was overjoyed at this offer which promised me large receipts, and I gladly paid the old man the three thalers.

“On my release I resolved to try my luck at Baden-Baden. I began by purchasing a newly published illustrated description of the French war, which I studied carefully, and tried to form an idea of those regions where I intended to lay the scene of my deeds of heroism. I bought a list of the visitors at this fashionable resort and selected my victims. I decided to present myself in person to German families of position, but to foreigners of distinction I would appeal in writing. At the end of two days I had purchased all the outfit I required from a dealer of old clothes, and on the third day I started out fully equipped. I had strapped my left arm to my naked body; the empty sleeve was pinned to my coat; on my breast I proudly wore the iron cross; in the pocket of my blouse I carried my ‘legitimation,’ and I had given my small moustache a martial twist. I began with a German baron, into whose presence I was admitted and who looked at me approvingly. ‘Ah,’ he exclaimed, when he had read my papers, ‘one of our “Blue Devils;” you Bavarians must have given the French gentlemen a rare dressing.’ ‘We showed them,’ I replied, ‘that a Frenchman cannot wage war with Germans, Herr Baron.’ I then told him, in answer to his further inquiries, what regiment I had served in, etc., and that I had lost my arm at the storming of the Fort Ivry. He said he would gladly assist a brave

soldier who had bled for his country, and gave me two gold pieces. This gift filled me with joy and confidence.

“At a country house where the family of a Prussian count were spending the summer, I was likewise admitted. The ladies were drinking their coffee on the veranda. ‘Look, mamma,’ exclaimed the daughter, ‘there comes a “knight of the iron cross,” like Papa. And the poor man has suffered the loss of an arm in battle.’ The young lady seemed to me rather over-enthusiastic, but that was all the better for my purpose, and I satisfied her curiosity with accounts of my prowess and deeds of daring and described how, when my heroism had resulted in my arm being shattered by a cannon ball during the storming of the village of Bazeilles, it had afterwards been sawed off in the hospital. I also told her in answer to her eager questions as to whether I was in want, that I had an aged mother to support and wished to buy a hand-organ. She gave me all the money in her cash box, and when I returned to my lodging I found a large parcel of clothes which she had directed a servant to leave for me. All my other visits were more or less profitable, and the foreign visitors whom I addressed by letter, two Russian princes, the Duchess of Hamilton and the Princess of Monaco, each sent me a handsome present in cash. Owing to the insufficiency of the police, I was able to carry on my frauds unmolested until I had almost exhausted the fashionable world at Baden-Baden. One morning whilst I was absent a police official called at my lodgings. Hearing of this on my return, I hastily packed my spoils and took train for Karlsruhe.

“The account of my criminal career would be incomplete without some mention of prisons. They play a larger part in the life of the budding convict than many people realise, and contribute materially to his development. While the state turns its chief attention to the larger gaols, the smaller prisons are often sadly neglected. If these were better administered, fewer large houses of correction would be required. Here the vagrants tarry, shaping their plans; here one thief learns from another various artifices and tricks; here young offenders are won over to the criminal life. The principal evils of these small prisons undoubtedly are the promiscuous congregating together of all offenders and the absence of occupation. It is not surprising, therefore, that the time is passed in idle talk, and that the man who can relate the largest number of rascally tricks he has played should be the hero

of the company. Many an inexperienced lad listens to these anecdotes and acquires a taste for the life of a sharper. When to all this is added a brutal superintendent, open to bribery, then the prison becomes a real training school for criminals.

“Once in a prison at Baumholder I was locked up in company with a robber and murderer who had broken out of a Prussian gaol, and, on the road by which he was escaping, had killed a poor labourer for the sake of stealing his clothes and his small store of money. One evening this sinister individual sat brooding, his eyes glowing weirdly. Suddenly he said, ‘Hark you; when the warder comes round to-morrow he must be pulled in here; you shall hold him and I will cut his throat.’ I declined to be an accomplice in murder, and then he threatened me and looked at me so strangely that cold shivers ran down my back and I trembled like an aspen leaf. He saw my terror evidently and relented, for he offered me his brandy bottle and agreed to drop his murderous intentions if I would join with him in an attempt to escape that very night. This I was quite willing to do, but our essay came to nothing. We moved the stove and dug a hole in the floor beneath, but we presently came upon a beam with which we were not able to cope, and we were obliged to fill up the aperture with rags and bread and to move the stove back over it to escape detection.”

An account of a robbery perpetrated by Kürper on a larger scale, and its sequel, may be told in conclusion of this criminal’s career.

“On July 4th, in the year 1873, I was crossing the market place at Mannheim, when I met an old comrade of mine from the industrial school at Speier. We greeted each other warmly and exchanged our experiences, which ran in a similar groove only in that he had been more unfortunate than myself, having already served two rather long terms in prison. We decided to enter into a temporary partnership, and this was the beginning of the end. He had a theft in view promising rich spoils, for which he required an accomplice, and that part he wished me to perform. Nothing loth, I agreed, and we arranged a plan of campaign. He related to me that a well-to-do man he knew of lived on the first floor of a house which was surrounded by a high wall, and in an unfrequented street, and kept his possessions in a heavy leather trunk. He went out every evening from nine

until twelve o'clock, so that during his absence the coast was clear. We were to convey the trunk to the castle garden, carry it over the bridge which crosses the Rhine, and at Ludwigshafen break it open, bury it and take its contents to K., where my ally knew how to dispose of them.

"I liked the idea of the job, and we agreed to go to work that same evening. Accordingly just before ten o'clock we started. On reaching the street in question my heart began to beat furiously and I felt a presentiment that ruin was at hand, but it was too late to turn back. My colleague assured himself that the owner of the trunk was away, according to his usual custom, and engaged in playing cards. The street was quiet, and we scaled the wall around the house and entered the room where the heavy box stood. We dragged it out and succeeded in carrying it to the castle garden over the bridge already alluded to, bearing our burden slowly and securely in this region where the police is well represented. We passed through Ludwigshafen and reached a field where there is a fish-pond.

"Here we opened the trunk, which we found packed full to bursting, emptied it and buried it so successfully that the police were afterward four weeks in finding it, in spite of accurate indications. That same night we marched, laden with our spoils, to Rheingönheim, from whence we travelled to K., where in a few hours, thanks to my companion's admirable business talents, we disposed of all we had to sell at remunerative prices. Drunk with victory, we could not rest satisfied and determined to attempt another *coup de main*. By broad daylight we proceeded to enter the room of a tradesman and rifle it of all its contents. We sold everything we had stolen except one waistcoat. This was the cause of our undoing. My comrade carried the garment in question, being half drunk, to a commissionaire in the open market-place. The police were already on our traces. Two members of the force came round the corner and immediately took us both in charge. We were now imprisoned, previous to being tried, and when subjected to a severe cross-examination, of course took refuge in subterfuge and lies. As we were parted, however, and separately interrogated, we soon made contradictory statements. My companion then decided to make a partial confession, but endeavoured at the same time to incriminate me as the ringleader in the affair. When I realised his infamy, I, on my part, did not hesitate to keep back the truth in regard to him. On December 24, 1873,

we were taken, securely hand-cuffed, to the Court of the Assizes in Zweibrücken, where we were condemned to three years' penal servitude. We entered a petition against this sentence, but it was thrown out. On February 5, 1874, the dark door of the gaol of Kaiserslautern closed upon me with a clanking sound."



CHAPTER VIII

SOME REMARKABLE PRISONERS

Extracts from the experiences of a Bavarian prison chaplain—Life history of a notorious criminal, Joseph Schenk—Early crimes—Kaiserslautern, “The Crescent Moon” prison—Schenk becomes known as the “Prison King”—Punishment has no effect on him—Frequent escapes—Passes through the prisons of Würzburg, Munich, Bayreuth—Würger, the usurer—Plies his trade when committed to gaol—Anecdotes of his rapacity—The tax collector who becomes his prey—Anna Pfeiffer, a rare example of a female hypocrite—Two recent crimes—The boy murdered in Xanten—A Jewish butcher accused—Trial causes an immense sensation—Gigantic sum stolen from Rothschild’s bank by chief cashier—Eventually arrested in Egypt—The causes of the cashier’s crime.

Some other interesting types of German criminals are described by a Bavarian prison chaplain, the Rev. Otto Fleischmann, who spent a quarter of a century in earnest labours among the inmates of a great penal institution. Some of his descriptions and experiences will be of interest and give us at the same time the life histories of notorious criminals. Let us begin with one Joseph Schenk, a curious example of the old-time convict, one of a class now rarely to be met with in the modern prison.

Joseph Schenk was born in Berlin in 1798. His mother was a canteen woman in a Prussian regiment. His father, whose name he never learned, was no doubt a soldier and a man of coarse, brutal disposition, many of whose worst traits had been clearly transmitted to his son. Joseph Schenk, from his earliest days, exhibited a cruel nature; his temper was ungovernable, his delinquencies incessant; he was given to acts of brutal violence, and to the last he was of an inhuman character. He passed much of

his old age in the prison hospital, where his greatest treat as a patient was permission to attend at a post mortem and be present at the dissection of a corpse. It was horrible to see him gloating over the hideous details as he watched the autopsy.

Schenk's mother, when she left the regiment, went to her native place, Oberlustadt, where her son served his apprenticeship to a weaver and was then drawn by conscription into a regiment of Bavarian light horse. He never talked much of those days (we are still quoting from the chaplain), but it is certain that when the restraints of strict discipline were loosened and he was discharged, he rapidly fell into evil courses and developed into an accomplished miscreant. He went home to Oberlustadt and became the terror of the neighbourhood as the author of repeated dastardly crimes. In 1824 Schenk was put upon his trial to answer for the commission of three heinous offences perpetrated in rapid succession. A large concourse of people attended the trial at the Assizes. He was charged with rape, street robbery and murder, and his sentence was death, but was commuted by the soft-hearted king, Maximilian I, into lifelong imprisonment in chains.

At that time the great central prison of Kaiserslautern, the so called "Crescent Moon," was still in process of construction, and the reprieved convict was lodged in the gaol of Zweibrücken. There he quickly developed into a prison notoriety; he became a terror to his officers from his bold and cunning tricks, and the admiration of his fellow-convicts. He was known as the "prison king," whom no walls, however high or thick, could hold, and who was endowed with such strength that he could carry with ease a leg chain and bullet weighing 28 pounds. He soon acquired the deepest insight into prison ways and was unceasingly insubordinate and the constant contriver of disturbance. He scoffed at all authority, sought perpetually to attain freedom and was for ever setting all rules and regulations at defiance. When the Kaiserslautern prison was finished he was transferred there to ensure his safe custody, but was still the same reckless, irreconcilable creature. In chapel services, which male and female prisoners attended in common, he attracted the attention of the women and started many intrigues by passing letters and presents to them. When the spirit moved him, he would burst out into loud roars of laughter or mock the officiating clergyman in the middle of the service. He was continually engaged in

tampering with officers and guards, bribing them to carry on a clandestine traffic with “outside” and persuading them to supply him with food and prohibited articles. He was a power among his fellow-prisoners, who yielded ready obedience to his caprices and carried out his orders punctiliously. When searched, contraband articles were frequently found in his possession; weapons for assault and tools to be of assistance in his many projected escapes. Punishment, blows and close confinement in a dark cell, he endured with a stoical resignation which earned him the glory of martyrdom. With the higher authorities he comported himself cunningly, adapting himself to their individual peculiarities; he could in turn be cringingly civil, or audaciously impudent, and more than one letter of complaint against them he concocted and contrived to have secretly forwarded to Munich.

After making several attempts to escape on his own account, he formed a conspiracy with a number of daring convicts, the object of which was to obtain freedom by armed force. The plot was carried out on October 18, 1827, but proved disastrously unsuccessful. The conspirators, who were unable to effect the murder of some of the warders as contemplated, were completely overpowered. A special court met in the following year to sit in judgment on the would-be perpetrators of this foul attempt, and on June 9, 1828, Schenk, as well as two of his associates, was condemned to death for the second time, the execution to be carried out in the market place at Kaiserslautern. King Ludwig, the reigning monarch, was no more in favour of capital punishment than his predecessor, and Schenk’s sentence was again commuted to life-long imprisonment in chains.

His peregrinations now began, for he was transferred from one prison of Bavaria to another, until he had made acquaintance with nearly all. In each his conduct was so outrageous that the managing board always declined to keep him beyond a certain time, deeming him a constant menace to good order. He invariably obtained so great an influence in whatever prison he was held that the officials were in despair. On January 22, 1829, Schenk left Kaiserslautern, laden with chains and escorted by three of the most trustworthy police officials, and arrived at the prison in Würzburg on February 1st; he remained there until September 30, 1833. Here every thought was centred on means of escaping. He tried violence, and all kinds

of clever schemes and devices, and in spite of being flogged and receiving other punishments, he persevered in his daring ventures until the authorities of the Würzburg prison declared that the prison was not sufficiently secure to retain him in durance. He was now transferred to Munich, where an interesting group of the most dangerous malefactors of Bavaria had been collected and were placed under the supervision of a strict and competent prison administrator. In Munich Schenk underwent a series of the most severe punishments that could be inflicted. The governor stated it as his opinion that Schenk was the most dangerous criminal of his kind and of his century. He added that never during the six and thirty years of his official life had he met with such a combination of astute cunning, incomparable audacity and hypocritical deceit.

Schenk remained at Munich until the year 1842, when the minister Abel succeeded in establishing the plan he had conceived of placing the Bavarian prisons on a denominational basis. This might have answered fairly well had the convicts not been allowed to alter their religion while in prison. As it was, whoever had had enough of one institution and desired a change, simply declared himself converted to another belief, and was then transferred to the fresh gaol where its professors were collected. The convicts could change their creed as often as they liked, but Schenk repudiated such weakness of character, and pretended to set great store by his Protestantism. He could not, however, remain at Munich because it was a Catholic prison, and at the beginning of the year 1842 he was removed to St. George at Bayreuth. In this institution he reached the pinnacle of his evil fame and influence. The administrator charged with its management in the years 1848-1849 must have been a young and diffident man, for Schenk intimidated him to such an extent that the prisoner became the actual master of the gaol. Seldom or never, perhaps, has a convict occupied such a position in a prison as Schenk did during his palmy days at Bayreuth. To curry favour with him he was often invited to drink coffee with the governor in the office and while they drank it the governor discussed with him prison problems and the proper treatment of prisoners. It must have been a strange sight to witness the convict in his chains on a sofa and the director doing the honours. Of course a peremptory stop was put to such a scandal. The timid governor was superseded by a more severe disciplinarian and Schenk was grievously annoyed. He stirred up a fierce opposition to the

new man, whom he represented as a ruthless despot, and filled his fellow-convicts with apprehension as to the future that lay before them. They determined, therefore, to greet this functionary with a striking proof of their bad humour and distrust. Accordingly, when the new administrator entered the building on February 9, 1850, a general insurrection broke out among the prisoners, which was only quelled with great difficulty by armed force. Schenk's reign was now over. The new governor soon knew that he had been the ringleader and took measures to subdue his troublesome charge. Instead of coffee, he received hard blows, and in place of the sofa he was provided with a wooden couch.

Yet Schenk contrived secretly that a letter full of complaints of the new director, whom he described as a bloodhound hungry for the life of a peaceful, inoffensive man, meaning himself, should reach the authorities at Munich. The director accused was not slow to explain the true facts; the lying denouncer met with his deserts and was soundly flogged. He was still untamed, however, and fought on stubbornly until his iron constitution began to give way. As his health declined and he felt that death was approaching, he became for a time singularly amenable. At last, in 1860, he was finally transferred to Plassenburg prison, which he entered for the first time. His old audacious and rebellious spirit reasserted itself, and he succeeded in breaking out of prison with several companions. They were all promptly recaptured by the peasants in the first village they reached, and laid by the heels like wild beasts escaped from their cages. When once more in durance, Schenk devoted himself to the writing of petitions for milder treatment, and he was granted a few small privileges, such as the lightening of his chains. In 1863 he was taken back to Kaiserslautern after an absence of thirty-four years. Although feeble and broken in health, he still enjoyed a great influence over the other prisoners, and, when he chose, could still incite them to mutiny and rebellion. In January, 1864, a violent outbreak occurred at Kaiserslautern in which he did not figure personally but which he had no doubt brought about.

It was at this period of his career that Herr Fleischmann became acquainted with him and writes: "Schenk's every thought was now centred in obtaining a pardon. I often heard him exclaim, 'I would gladly die, if I could but enjoy freedom for a single day.'" His passionate appeals were nearly

bearing fruit when the inhabitants of Oberlustadt protested, and, still remembering his parting threats on leaving the town, hastily sent in a petition against the liberation of so dangerous a man. With his hopes thus dashed to the ground forever, a last spark of energy revived and he made a final attempt to escape from the hospital, which miscarried, and in the end his release was only compassed by death. For forty-seven years he had maintained a ceaseless conflict with law and authority.

Herr Fleischmann gives a graphic presentment of this remarkable criminal, whom he first met in the hospital toward the end of his life. "My interlocutor was an old man in the seventies. I shall never forget his appearance, for I never beheld a more hideous or repulsive countenance. He was of medium height, strongly built, and dragged one leg slightly, like all those who have worn chains and balls for years. His head was covered with thin gray hair always carefully brushed. One side of his face was completely distorted from the effects of a stroke of paralysis. Half the mouth and one wrinkled cheek hung down flabbily; one bloodshot eye stared dimly from its socket, but the other, on the contrary, was light gray and quite alive, with a look of extreme cunning. He was a man of great natural intelligence, unusually gifted, and he had improved himself by much reading; he expressed himself well, possessed a keen knowledge of human nature and often succeeded in deceiving the prison officials by his masterly power of dissimulation."

We have to thank our reverend author for one or two more types of German prisoners. He speaks of one, Würger by name, who was of Jewish extraction, but a Christian according to the testimony of his baptismal certificate, although there was little to prove his real religion in the records of his life. As to the outer man, he was short of stature and very broad-shouldered; he had an enormous head with bushy, prominent eyebrows and teeth large and pointed like the fangs of a wild beast. His eyes were gray and cold but acute in their expression. The first time the chaplain visited him in his cell he was sitting on the edge of a big chest filled with papers and literally in hysterics. No other word could adequately describe the passionate outburst of rage and despair to which he was giving vent. When asked the cause of his distress, he asserted with renewed wails that he was a ruined man. The facts came out gradually. His wife had sent the huge chest

to him, because not even the most astute man of business in her vicinity to whom she had applied could disentangle the mass of promissory notes and dubious deeds which it contained. She had also written that no one admitted indebtedness to him, and indeed, several of his debtors had already run off. She said he must put the papers in order himself and send the chest to some agent with instructions to act for him. The box was full of documents, and represented the ruin and wretchedness of the impecunious victims of his remorseless usury.

The chaplain had little sympathy with his whining regrets and strongly urged him to commit the contents of the box to the flames, but this advice Würger received with horror. It would bring his family to penury, he declared; he had done no one any harm but had rather been a public benefactor, honest and straightforward in all his dealings, and he had been ill-rewarded for his efforts to benefit his fellow creatures. The tears streamed from the eyes of this friend of humanity as he uttered this lying statement.

Two anecdotes told by the writer will give some idea of the character of this rapacious creature. His wife, who belonged to a good family, had once instituted divorce proceedings against him. Her lawyer insisted before the court that Würger was essentially a bad, vicious person, but that his client had been quite unaware of his evil tendencies before her marriage. Würger's lawyer then took up the parable and exclaimed,—“What, the plaintiff pretends ignorance of what sort of man my client is! Why, it is notorious that in the whole of Pfalz there is no worse fellow than Würger. And you worshipful judges,” he added, “you certainly cannot assume that Würger's wife was the only person who did not know anything about it.” The wife's petition was dismissed and Würger, on hearing the result of the proceedings, rubbed his hands, smirked with glee and clapped his lawyer on the back, saying, “That was a lucky hit of yours, calling me the worst fellow in Pfalz; you deserve great credit for the conduct of my case.”

When Würger was in prison awaiting trial, a fraudulent tax-collector, whom an auditor had caught embezzling public money, occupied the same cell as the usurer. The collector was a man of fair character but afflicted with a consuming thirst and fit for nothing until he had swallowed many pints of

beer. He brought into prison with him a certain sum in cash, a silver watch and chain and a gold ring. Here was Würger's opportunity. He saw his companion's funds gradually diminish by his terrible thirst, and when they were exhausted, proposed to buy his fellow-prisoner's silver chain, and offered a ludicrously low price for it. Bargaining and haggling went on for some time but without result, although the usurer strove hard and backed up his offer by constantly calculating how many pints of beer the suggested price would buy. Every time Würger mentioned the word "beer" the other would sigh deeply until the temptation conquered him, and finally the chain passed into Würger's hands. The price of the chain was consumed in drink and the silver watch was the next to go. The last struggle was for the gold wedding ring. The poor collector was quite determined not to part with it; he inwardly took a solemn oath to conquer himself and not to sacrifice this last precious treasure. Würger did not utter a word for some days nor seem to notice the tortures of his mate. Finally, however, he appeared softened by the moans and groans of his companion who grew more and more thirsty, and offered to help him, but only at the cost of the ring. The tax-collector fell on his knees and begged the tyrant to lend him the money only and let him but pawn the ring; but Würger drove him to distraction by ordering a pint of beer which he slowly consumed before the drunkard. Again and again he tempted and played upon the appetite of the unfortunate man until at last the collector, half mad, tore the ring from his finger and threw it at the feet of the usurer, who smilingly slipped it into his pocket.

In prison Würger's behaviour was cringing and artful. At the exercises in chapel he would sit with his head bowed, evidently cogitating over his impending lawsuits and thinking of his gold. His fellow-prisoners treated him with contempt, and revelled in the knowledge that this rich fiend, who had cheated many a poor man out of his last farthing, was now one of themselves; and on Sunday especially they would cast up his misdeeds against him and hold him up to ridicule. Toward the end of his term he went to the chaplain and bought a Bible. This reckless extravagance seemed odd, but it became known that the chaplain bought his Bibles at a reduced rate, and the usurer had calculated that he could sell at a profit.

"A clergyman's task," says Herr Fleischmann, "is far more difficult in a prison for women than in one for men. In the latter he has to deal with

coarseness, brutality and moral degradation, but in the former he meets with many despicable traits: unlimited cunning, spitefulness, love of revenge, deceit and artifice. The man often reveals himself as he is, while the woman, on the contrary, having lost caste, desires to conceal her abject condition and, with rare exceptions, assumes some part foreign to her real nature which she plays cleverly throughout. I was often obliged in spite of myself to compare the man's gaol to a menagerie, the woman's to a theatre or stage.

"I was twenty-six years of age when I started on my official career of activity in K. On making my first rounds through the cells on the female side, I found one woman sitting with her head on the table weeping bitterly. She gave no sign that she had noticed my entrance, but when I wished her 'Good morning,' she slowly lifted her head and transfixed me with an uncomprehending gaze from soft, tear-dimmed brown eyes. She was apparently about fifty years of age and retained traces of great beauty.

"'I am your new pastor' I said. What is your name?' Then she passed her hand across her forehead as if to dispel an evil dream and, rising from her seat with a great show of good feeling, begged me to excuse her seeming rudeness, but in truth she had been absorbed in the contemplation of her past life. She claimed to be unfeignedly grateful for my visit and as she spoke she seized my hand and would have kissed it had I not drawn it away. I asked her name. 'Ursula Pfeiffer, reverend sir,' she replied. 'Very well,' I said, 'I will look into your record and the next time I come we will discuss your past.' But she continued, 'Let me confess at once; I am the greatest sinner in the whole prison, but thank heaven, I have at last found peace within these walls.'

"On the prison registers this woman's record ran thus: 'Anna Ursula Pfeiffer, born at Zirndorf, near Nürnberg, in 1813, sentenced for repeated thefts to four years' penal servitude. Was, from 1838 to 1863, punished forty-one times for leading a vicious life, vagrancy and theft.' During my next few visits, her behaviour was characterised by reserve, which led me to think she had realised that she must not lay on her colours too thick. After the lapse of some weeks, she told me her history simply, without flourishes,

and I recognised from her manner of relating that I had before me a woman of uncommon mental gifts.

“Her parents had been poor people, earning an honest livelihood, who brought up their children respectably. They thought a great deal of their Ursula, who always took a high place in school. Her intelligence and her beauty, however, were to prove her curse. She went into domestic service with a rich Jewish family, where the son of the house seduced her and, when the consequences of the intrigue could no longer be concealed, she was dismissed ignominiously. She moved to Nürnberg, where she took to disreputable ways, and she always had plenty of money until her beauty began to wane. Then she gradually sank lower and lower in the social scale, and finally became addicted to thieving, which landed her continually in prison.

“I observed my penitent closely, but saw no reason to doubt or mistrust her. I now and then made use of a text on Sunday to inveigh against hypocrisy, but she continued to play the part of the crushed and contrite Magdalen and asked permission to take down my sermon on her slate. To this I could not, of course, object. I would sometimes look at the slate and compare it with my manuscript and seldom found a word wrong. What might not this woman have become had she been born in a higher sphere? When her term of solitary confinement had expired, she requested that it might be extended over her full time, and remained for two years longer in her cell. By and by she became a prison nurse, and not only tended the sick with kindness and devotion but also with uncommon skill. Her conduct was exemplary to the last, and when she finally departed, it was with many protestations of gratitude and the most heartfelt assurances of reform.

“Yet a few months later, Ursula Pfeiffer’s papers were asked for by some other penal institution. She had soon fallen back into evil ways, and was sentenced to a fresh imprisonment. I was convinced that my first impression of her as a hypocrite and a dissembler was absolutely correct.”

The Reverend Otto Fleischmann’s experience will be borne out by hundreds of other God-fearing, philanthropic ministers who have devoted themselves to the care and possible regeneration of criminals.

Two sensational crimes committed in our own day, and which made a great stir in Germany, were much commented on in the journals of the time. One was the murder of a boy of five years old at Xanten in Prussian Rhineland. The trial took place at the provincial court of justice at Kleve, and the hall used was part of the ancient castle of the dukes of Kleve, around which the legend of the “Knights of the Swan” (Lohengrin) still lingers. The case excited widespread interest. The man accused was a Jew and the fiercest passions caused by religious hatred were engendered. Excesses were committed in the town; the case became a subject of heated dispute in the popular assemblies, and more than once occupied the attention of the Prussian Chamber of Deputies.

On June 29, 1891, soon after six o’clock, a servant maid, Dora Moll, found the body of a boy, Johann Hegemann, with his throat cut, in a barn where fruit was stored, belonging to a town councilman named Kupper. The boy was the son of the carpenter and coffin-maker of the place. At noon on the same day the child, a fine and healthy boy, had been seen playing near the barn. The wound was a clean one and there seemed to be no doubt that a murder had been committed, but there appeared to be no motive for it. Soon, however, suspicion fell upon Adolf Buschoff, a butcher and also the superintendent of the Jewish congregation. Several persons testified to the boy having been attracted by Buschoff’s wife and daughter to the butcher’s shop, situated close by the Kupper barn, on the eve of the crime. Other causes for suspicion were suggested, with the immediate result that Buschoff’s property was laid waste by his enraged fellow-citizens and “Murderer’s house” was written on his abode. Many shops belonging to Jews were also sacked; indignation was intensified by a report that the boy had been done to death by a knife such as is used by Jewish butchers, and that murder had been committed because the Jews require Christian blood for their Passover feast. The excitement of the Christian population grew to such a pitch that the Jewish community of Xanten begged, in their own defence, that a special detective might be employed to follow up the crime. The result of this inquiry was the arrest of Buschoff, with his wife and daughter, and their committal to the prison at Kleve, from which they were at last released on December 23rd.

Anti-Semitism, however, constantly rankled and inflamed public opinion; the case was re-opened, and Buschoff, who had settled at Cologne, was again arrested on the plea that further suspicion had arisen. His wife and daughter escaped, although a warrant had been issued against them as being also privy to the crime. Hitherto Buschoff had been looked upon as a popular and harmless citizen, but now feeling ran high against him and it was generally believed that the charge of deliberate murder would be fully proved.

The court was crowded to suffocation; many ladies looked down upon the crowd in the place set apart for them. A hum was heard like that in a theatre before the curtain rises, followed by a painful silence when the prisoner entered and took his place behind the barrier. Buschoff was a man of fifty, strongly built and of medium height. He sat with downcast eyes, his hands trembling; his colour was so ruddy that, but for the signs of inward agitation expressed in his face, it would not have been easy to suppose that he had spent a long time in prison awaiting trial. The case lasted ten days and many witnesses were called, but no evidence was adduced incriminating Buschoff, who, when interrogated, steadfastly denied his guilt. A professor of Semitic lore and an expert in interpreting the Talmud, was asked if murders in the cause of ritual were anywhere justified in the Talmud. This he denied, and other witnesses testified that Buschoff belonged to the order of priests commonly called Levites, who are not allowed to approach a corpse except those of their parents or brethren. On the sixth day, a bag belonging to Buschoff, apparently blood-stained, was examined, but it could not be proved to be human blood. On the seventh day, the chief interest was centred in the evidence of the provincial judge, Brixius, who had examined Buschoff at the time of his first arrest. The result was, upon the whole, favourable to the accused, as Brixius considered many of the statements which had been made by witnesses the result of heated fancy and unbridled imagination dictated by hatred of the Jews. On the last day of the trial, Frau Buschoff, who had not as yet been called, had to appear. The accused wept bitterly at the sight of his wife. She corroborated the testimony which had been given by her husband and daughter.

The jury was then asked to decide whether “the accused Adolf Buschoff were guilty of having deliberately murdered Johann Hegemann in Xanten

on the 29th June, 1891.” A speech for the defence then followed, which lasted two hours, and in the afternoon a second counsel spoke for the prisoner, setting forth the innocence of the accused and appealing to the jury to acquit him. Then followed the judge’s summing up, which was absolutely fair and impartial. He called attention to the fact that the population of Germany was divided between friends and foes of the Jews. “Before the court of justice, however,” he said, “all men are equal. A judge’s task is not to inquire to what religion an accused belongs; he must have no partisan feeling.” The jury was absent for only half an hour, and returned with the verdict of “not guilty,” which was received with storms of applause. So ended a trial which produced an immense sensation, not only in the Rhine provinces but to the furthest confines of Germany, and was followed with strained and feverish attention.

Another great crime is of about the same date, but of a very different character,—the theft and misappropriation of gigantic sums by the chief cashier, Rudolf Jaeger, of the Rothschild banking-house at Frankfurt-on-the-Main. The story will be best understood by an extract from the indictment on which he was eventually charged. It stated that on Good Friday, April 15, 1892, the chief cashier of the banking-house of M. A. Rothschild and Sons disappeared, but was not missed until April 20th by reason of intervening holidays, both Christian and Jewish. The suspicion of his flight was confirmed by two letters from him posted at Darmstadt. One was to a Frau Hoch, who sent it to the Rothschild house; the other was addressed to Baron Rothschild’s private secretary, Herr Kirch. In both letters Jaeger stated that he had been guilty of embezzlement and that he meant to take his own life. In the letter to Kirch he carried the comedy to the extent of sealing his letter with black, using a black-edged envelope and placing a memorial cross under his signature. He confessed that he had lost 1,700,000 marks by unlucky speculations on the bourse with money entrusted to him in the course of business by others, including the bank. The money was gone, he declared briefly, and he meant to expiate his deed by death, hoping for mercy from God alone.

Rudolf Jaeger first entered the Rothschild house as assistant to his father, then chief cashier, and on his father’s death he succeeded to the position. His salary was 4,500 marks; besides this, he received other payments for

keeping the private accounts of the Barons Wilhelm and Mayer Karl Rothschild, as well as the New Year's bonus, and such other extras, so that his circumstances were easy. He married in 1877. His first wrongdoing was when he embarked upon an egg-trading business in partnership with one Heusel, who subsequently entered the dock by his side. Heusel was always in financial straits, insatiable in his demands for money, and although Jaeger had advanced the sum of 102,000 marks, he clamoured incessantly for more, and to satisfy him Jaeger made his first fatal dip into the Rothschild safe, which was in his keeping. For a long time he managed his depredations most skilfully, and his methods of throwing dust into the eyes of the clerks under him by manipulating the books of the bank were extremely clever. Even when a revision of the books took place, after he had gone so far as to falsify them, his dishonesty was not suspected. However, he only narrowly escaped. He felt he was on the verge of being discovered and began his preparations for flight, in company with Josephine Klez, with whom he had been intimate for some time.

The fugitives went first to Hamburg and thence to Marseilles, where they embarked for Egypt. Having arrived there, they considered themselves safe and went about freely and openly, frequenting different hotels. Jaeger bought many valuable jewels for Klez in Alexandria and Cairo. The police in pursuit were soon upon their track and on May 10th both were arrested by the German consul, with the assistance of the Egyptian authorities, at Ramleh in the Hotel Miramare, and their goods were seized. Both carried revolvers. Jaeger attempted to draw his, but was prevented. At first, both endeavoured to deny their identity, but in the end they gave their real names. Jaeger maintained, when brought before the consul, that he had lost the greater part of the embezzled sum on the bourses, but the examination of his luggage proved this to be false, and a sum of 489,779 marks was found among his effects. Part of it consisted in thousand mark notes, which Klez had sewn into a pin-cushion. She had two purses, a black and a red one; in the first was English, French and Egyptian money, and the second contained German bank bills and marks in gold. On a second search, one hundred notes of a thousand marks each were extracted from a pillow. Among the papers seized, the most important was Jaeger's note book, for pasted under its cover was a slip of paper with abbreviated figures not very difficult to decipher, and with a complete account of the embezzled sum and

of the persons in whose hands the money had been deposited; so, thanks to the discovery of this memorandum, the greater portion of the sums left in Frankfurt was discovered.

When Jaeger and Klez arrived in Germany, they were committed to the Frankfurt prison, where a number of their accomplices were already lodged. Jaeger, when arraigned, pleaded guilty on every count. The woman Klez admitted her complicity in the flight, but denied that she was concerned in the frauds or had accepted anything but jewelry from Jaeger. The trial was brief and judgment was soon given. Jaeger was condemned to ten years' imprisonment and, over and above this, to five years' deprivation of his civic rights, "because he was so lost to all sense of decency as to leave his family and elope with a shameless woman." Klez was sentenced to three years' imprisonment, Heusel to six years, and others concerned to short terms.

CHAPTER IX

SILVIO PELLICO AT SPIELBERG

Spielberg for many centuries Imperial State prison—Its situation—Originally the castle of the ruling lords of Moravia—Silvio Pellico imprisoned there—Also Franz von der Trenck—Pellico's relations with the Carbonari—His imprisonment in the Santa Margherita and the Piombi—Sentence of death commuted to fifteen years in Spielberg—Administration of this prison—His fellow sufferers—The gaoler, Schiller—Prison diet—Strict discipline enforced—Pellico is released at the end of ten years.

Spielberg, in Austria, served for several centuries as an imperial state prison to which many notable political and other offenders were committed. It stands on the top of an isolated hill, the Spielberg, 185 feet above the city of Brünn, the capital of Moravia and headquarters of the governor of the two provinces of Moravia and Silesia. The castle was originally the fortified residence of the ruling lords of Moravia and a formidable stronghold. It was the place of durance for that other baron Von der Trenck, Franz, the Colonel of Pandours or Austrian irregular cavalry, whose terrible excesses disgraced the Seven Years' War. His unscrupulous and daring conduct gained him life-long incarceration in Spielberg which he ended by suicide. The fortress was besieged and captured by the French just before the famous battle of Austerlitz, which was fought in the neighbourhood. Its fortifications were never fully restored, but a portion of the enclosure was rebuilt and the place was again used as a place of durance, where some three hundred prisoners were constantly lodged. These were criminals largely, with a sprinkling of persons of higher and more respectable station who had become obnoxious to the Austrian government.

The lengthy sentence of imprisonment which Silvio Pellico endured at Spielberg was the penalty imposed upon him as an Italian subject who dared to conspire against the Austrian domination. The rich provinces of northern Italy had been apportioned to the emperor of Austria in the scramble for territory at the fall of Napoleon. The Italians fiercely resented the intolerable yoke of the arbitrary foreigners, and strove hard to shake it off, but in vain, for nearly fifty years. Secret societies pledged to resistance multiplied and flourished, defying all efforts to extinguish them. The most actively dangerous was that of the Carbonari, born at Naples of the hatred of the Bourbon rule and which aimed at securing general freedom for one united Italy. Its influence spread rapidly throughout the country and in the north helped forward the abortive uprisings, which were sharply repressed by the Austrian troops. Plots were constantly rife in Lombardy against the oppressive rule in force and centred in Carbonarism which the government unceasingly pursued. Silvio Pellico was drawn almost innocently into association with the society and suffered severely for it.

Silvio Pellico was born in 1788 and spent a great part of his youth at Pinerolo, a place of captivity of the mysterious “Man with the Iron Mask.” His health was delicate; he was a student consumed with literary aspirations and intense political fervour, and he presently moved to Milan, where he began to write for the stage. A famous actress inspired him with the idea of his play, *Francesca da Rimini*, which eventually achieved such a brilliant success. Pellico was welcomed at Milan by the best literary society and made the acquaintance of many distinguished writers, native-born and foreign—Monti, Foscolo and Manzoni, Madame de Stael, Schlegel and Lords Byron and Brougham among them. The author of “Childe Harold” paid him the compliment of translating “Francesca” into English verse.

About this time Silvio Pellico accepted the post of tutor to the sons of Count Porro, a prominent leader of the agitation against Austria, and whose dream it was to give an independent crown to Lombardy. Count Porro approached the Emperor Joseph pleading the rights of his country, and but narrowly escaped arrest. He saw that overt resistance was impossible, but never ceased to conspire and encourage the desire for freedom in his fellow-countrymen. He opened schools for the purpose and founded a newspaper, the *Conciliatore*, to which many talented writers contributed,

including Pellico. It was a brilliant, though brief, epoch of literary splendour, and the new journal was supported by the most notable thinkers and eloquent publicists, whose productions were constantly mutilated by the censorship. In the end, the *Conciliatore* was suppressed.

Silvio Pellico, soon after his entry into Count Porro's household, was invited to affiliate himself with the Carbonari but hesitated to join, having no accurate knowledge of the aims and intentions of the society. He was moved, however, to inquire further and very incautiously wrote through the post to a friend, asking what obligations he would have to assume and the form of oath he must take,—all of which he was willing to accept if his conscience would permit him. There was no inviolability for private correspondence under Austrian rule, and Silvio Pellico's letter was intercepted and passed into the hands of Count Bubna, the governor of Milan, who was already well informed of the conspiracy brewing. He was, however, a humane official and did not wish to proceed to extreme measures, but quietly warned the most active leaders to disappear, telling them that "a trip to the country" might benefit them just then. Many took the hint and left the city, among them Count Porro, who escaped on the very day that the police meant to make a descent on his house. Confalonieri, one of the chiefs, was not so fortunate. He declined to run away until the *sbirri* were at his door and then climbed up to the top of the house, hoping to gain the roof, but the lock of a garret window had been changed and he was taken by the officers.

Silvio Pellico, having no suspicion of danger, was easily captured in his house and was carried at once to the prison of Santa Margherita in Milan, where he lay side by side with ordinary criminals, and also made the acquaintance of the "false" Dauphin commonly called the Duke of Normandy, the pretended heir of Louis XVI. It may be remembered that a fiction long survived of the escape of the little dauphin from the Temple prison, to which he had been sent by the French revolutionaries, and that an idiot boy had been substituted to send to the guillotine. The real dauphin—so runs the story—was spirited out of France and safely across the Atlantic to the United States and afterward to Brazil, where he passed through many dire adventures until the restoration in France. A serious illness at that time prevented him from vindicating his right to the throne, and thenceforth he

became a wanderer in Europe, vainly endeavouring to win recognition and support from the various courts. The assassination of this inconvenient claimant had been more than once attempted, and his persistence ended in his arrest by the Austrian governor at the instance of the French government, and resulted in his being held a close prisoner in Milan.

The warders of the Santa Margherita assured Silvio Pellico that they were certain his fellow prisoner was the real king of France, and they hoped that some day when he came to his own he would reward them handsomely for their devoted attention to him when in gaol. Pellico was not imposed upon by this pretender, but he noticed a strong family likeness to the Bourbons and very reasonably supposed that herein was the secret of the preposterous claim.

This curious encounter no doubt served to occupy Pellico's thoughts during his long trial which was conducted by methods abhorrent to all ideas of justice. No indictments were made public and no depositions of witnesses, who were always invisible. Conviction was a foregone conclusion, and the sentence was death, on the ground that Pellico had been concerned in a conspiracy against the state, that he had been guilty of correspondence with a Carbonaro and that he had written articles in favour of Carbonarism. His fate was communicated to him at Venice, to which he had been removed and where he occupied a portion of the Piombi, or prison under the "leads" of the ducal palace.

After a wearisome delay, the sentence was read to the prisoners, Pellico and his intimate friend and companion Maroncelli, in court, and afterward formally communicated to them on a scaffold which had been raised in the Piazzetta of San Marco. An immense crowd had collected, full of compassionate sympathy, and to overawe them a strong body of troops had been paraded with bayonets fixed, and artillery was posted with port fires alight. An usher came out upon an elevated gallery of the palace above and read the order aloud until he reached the words "condemned to death," when the crowd, unable to restrain overwrought feeling, burst into a loud murmur of condolence, which was followed by deep silence when the words of commutation were read. Maroncelli was sentenced to twenty

years' imprisonment and Silvio Pellico to fifteen, both to be confined under the rules of *carcere duro* in the fortress of Spielberg.

The conditions of *carcere duro* may be described as extremely irksome and rigorous. The subject was closely chained by the legs; he had to sleep on a bare board—the *lit de soldat* or “plank bed”—and to subsist on a most limited diet, little more than bread and water, with a modicum of poor soup every other day. More merciless and brutal treatment was that of *carcere durissimo*, when the chaining consisted of a body belt or iron waist-band affixed to the wall by a chain so short that it allowed no movement beyond the length of the plank bed. Part of the rations was a most unpalatable and filthy food, consisting of flour fried in lard and put by in pots for six months, then ladled out and dissolved in boiling water.

An Austrian commissary of police came from Vienna to escort the patriot prisoners to Spielberg, and he brought with him news that afforded some small consolation. He had had an audience with the Emperor Joseph, who had been graciously pleased to grant a remission of sentence by making every twelve hours instead of twenty-four count as one day; in other words, diminishing the term by just half. No official endorsement of this proposal was signified and there was no certainty that it was true, and indeed, after the lapse of the first half of the sentence, release was not immediately accorded. Silvio's seven and a half years was expanded into ten, and the imprisonment might have been dragged on for the full fifteen years but for the warm pleadings of the Sardinian ambassador at the court of Vienna.

The long journey to Brünn was taken in two carriages and in much discomfort, for each coach was crowded with the escort and their charges, and each prisoner was fettered with a transversal chain attached to the right wrist and left ankle. The one compensation was the kindly sympathy that greeted the prisoners everywhere along the road, in every town, village and isolated hut. The people came forth with friendly expressions, and as the news of their approach preceded them, great crowds collected to cheer them on their way. At one place, Udine, where beds had to be prepared, the hotel servants gave place to personal friends who came in, disguised, to shake them by the hand. The demonstrations were continued far across the

frontier, and even Austrian subjects were anxious to commiserate the sad fate of men whose only crime was an ardent desire to free their country.

Silvio Pellico at Spielberg

After the painting by Marckl

The gifted Italian patriot, arrested as a Carbonarist in 1820, was imprisoned for ten years, first at Milan and Venice and then in the fortress of Spielberg in Austria, where he was subjected to gross indignities and cruel neglect. He wrote of his experiences in his book “My Prisons,” which struck a severe blow to Austrian tyranny.



Silvio Pellico records feelingly the emotion displayed by one charming girl in a Styrian village, who long stood watching the carriages and waving her

handkerchief to the fast disappearing occupants on their way to protracted captivity. In many places aged people came up to ask if the prisoners' parents were still alive, and offered up fervent prayers that they might meet them again. The same sentiment of pity and commiseration was freely displayed in the fortress throughout the imprisonment; the gaolers—harsh, ill-tempered old soldiers—were softened towards them; their fellow prisoners—ordinary criminals—when encountered by chance in the courts and passages, saluted them and treated them with deep respect. One whispered to Pellico, “You are not such as we are and yet your lot is far worse than ours.” Another said that although he was a convict his crime was one of passion, his heart was not bad, and he was affected to tears when Silvio Pellico took him by the hand. Visitors who came in from outside were always anxious to notice “the Italians” and give them a kindly word.

Pellico, when received by the superintendent of Spielberg, was treated to a lecture on conduct and warned that the slightest infraction of the rules would expose him to punishment. Then he was led into an underground corridor where he was ushered into one dark chamber, and his comrade Maroncelli into another at some distance. Pellico's health was completely broken by the long wearisome journey and the dreary prospect before him. His cell was a repulsive dungeon; a great chain hung from the wall just above his plank bed, but it was not destined for him, as his gaoler told him, unless he became violently insubordinate; for the present leg irons would only be worn.

This gaoler was an aged man, of gigantic height, with a hard weather-beaten face and a forbidding look of brutal severity. He inspired Pellico with loathing as he paced the narrow cell rattling his heavy keys and scowling fiercely. Yet the man was not to be judged by appearances, for he concealed beneath a rough exterior a tender, sympathetic heart. Pellico, misjudging him entirely, bitterly resented his overbearing manner and showed a refractory spirit, addressing his warder insolently and ordering him about rudely. The old man—a veteran soldier who had served with distinction in many campaigns, behaved with extraordinary patience and good temper and shamed Pellico into more considerate behaviour. “I am no more than a corporal,” he protested, “and I am not very proud of my position as gaoler, which I will allow is far worse than being shot at by the enemy.” Pellico

readily acknowledged that the man Schiller, as he was called, meant well. "Not at all," growled Schiller, "expect nothing from me. It is my duty to be rough and harsh with you. I took an oath on my first appointment to show no indulgence and least of all to state prisoners. It is the emperor's order and I must obey." Pellico regretted his first impatience and gently said: "I can see plainly that is not easy for you to enforce severe discipline but I respect you for it and shall bear no malice." Schiller thanked him and added: "Accept your lot bravely and pity rather than blame me. In the matter of duty I am of iron, and whatever I may feel for the unfortunate people who are under my control, I cannot and must not show it." He never departed from this attitude, and though outwardly cross-grained and rough-spoken, Pellico knew he could count upon humane treatment.

Schiller was greatly concerned at the prisoner's ailing condition. He had grown rapidly worse, was tormented with a terrible cough and was evidently in a state of high fever. Medical advice was urgently needed, but the prison doctor called only three times a week and he had visited the gaol the day before; not even the arrival of these new prisoners, nor an urgent summons to prescribe for serious sickness, would cause him to change his routine. Pellico had no mattress and it could only be supplied on medical requisition. The superintendent, cringing and timid, did not dare to issue it on his own responsibility. He came to see Pellico, and felt his pulse, but declared he could not go beyond the rules. "I should risk my appointment," he pleaded, "if I exceeded my powers." Schiller, after the superintendent left, was indignant with his chief. "I think I would have taken as much as this upon myself; it is only a small matter, scarcely involving the safety of the empire," and Pellico gratefully acknowledged that he had found a real friend in the seemingly surly warder. Schiller came again that night to visit him and finding him worse, renewed his bitter complaints against the cruel neglect of the doctor. The next day the prisoner was still left without medical treatment, after a night of terrible pain and discomfort, which caused him to perspire freely. "I should like to change my shirt," he suggested, but was told that it was impossible. It was a prison shirt and only one each week was allowed. Schiller brought one of his own which proved to be several times too large. The prisoner asked for one of his own, as he had brought a trunk full of his clothes, but this too was forbidden. He was permitted to wear no part of his own clothing and was left to lie as he was,

shivering in every limb. Schiller came presently, bringing a loaf of black bread, the allowance for two days, and after handing it over burst out into fresh imprecations against the doctor. Pellico could not eat a morsel of this coarse food, nor of his dinner, which was presently brought by a prisoner and consisted of some nauseous soup, the smell of which alone was repulsive, and some vegetables dressed with a detestable sauce. He forced down a few spoonfuls of soup and again fell back upon his bare, comfortless bed, which was unprovided with a pillow; and racked with pain in every limb, he lay there half insensible, looking for little relief. At last, on the third day, the doctor came and pronounced the illness to be fever, recommending that the patient should be removed from his cell to another up-stairs. The first answer was that no room could be found, but when the matter was specially referred to the governor who ruled the two provinces of Moravia and Silesia and resided at Brünn, he insisted that the doctor's advice should be followed. Accordingly the patient was moved into a room above, lighted by a small barred window from which he could get a glimpse of the smiling valley below, the view extending over garden and lake to the wooded heights of Austerlitz beyond.

When he was somewhat better, they brought him his prison clothing and he put it on for the first time. It was hideous, of course; a harlequin dress, jacket and pantaloons of two colours, gray and dark red, arranged in inverse pattern; one arm red, the other gray, one leg gray, the other red, and the colours alternating in the same way on the waistcoat. Coarse woollen stockings, a shirt of rough sailcloth with sharp excrescences in the material that irritated and tore the skin, heavy boots of untanned leather and a white hat completed the outfit. His chains were riveted on his ankles, and the blacksmith protested as he hammered on the anvil that it was an unnecessary job. "The poor creature might well have been spared this formality. He is far too ill to live many days." It was said in German, a language with which Pellico was familiar, and he answered in the same tongue, "Please God it may be so," much to the blacksmith's dismay, who promptly apologised, expressing the kindly hope that release might come in another way than by death. Pellico assured him that he had no wish to live. Nevertheless, although dejected beyond measure, his thoughts did not turn toward suicide, for he firmly believed that he must shortly be carried off by disease of the lungs. But, greatly as he had been tried by the journey, and

despite the fever which had followed, he gradually improved in health and recovered, not only so as to complete his imprisonment but to live on to a considerable age after release.

The prisoners suffered greatly from their isolation and the deprivation of their comrades' company, but Silvio Pellico and a near neighbour discovered a means of communicating with each other and persisted in it despite all orders to the contrary. They began by singing Italian songs from cell to cell and refused to be silenced by the loud outcries of the sentries, of whom several were at hand. One in particular patrolled the corridor, listening at each door so as to locate the sound. Pellico had no sooner discovered that his neighbour was Count Antonio Orobani than the sentry hammered loudly on the door with the butt end of his musket. They persisted in singing, however, modulating their voices, until they gained the good-will of the sentry, or spoke so low as to be little interfered with. This conversation continued for a long time without interruption until one day it was overheard by the superintendent, who severely reprimanded Schiller. The old gaoler was much incensed and came to Pellico forbidding him to speak again at the window. "You must give me your solemn promise not to repeat this misconduct." Pellico stoutly replied: "I shall promise nothing of the kind; silence and solitude are so absolutely unbearable that unless I am gagged I shall continue to speak to my comrade; if he does not answer, I shall address myself to my bars or the birds or the distant hills." Kind-hearted old Schiller sternly repeated his injunctions, but failed to impress Pellico, and at last in despair Schiller threw away his keys, declaring he would sooner resign than be a party to so much cruelty. He yielded later, only imploring Pellico to speak always in the lowest key and to prevail upon Orobani to do likewise.

The greatest trial entailed by the *carcere duro* was the lack of sufficient food. Pellico was constantly tormented with hunger. Some of his comrades suffered much more, for they had lived more freely than he and felt the spare diet more keenly. It was so well known throughout the prison that the political prisoners were half-starved, that many kindly souls wished to add to their allowance. The ordinary prisoner, who acted as orderly in bringing in the daily rations, secretly smuggled in a loaf of white bread which Pellico, although much touched, absolutely refused to accept. "We get so

much more than you do," the poor fellow pleaded, "I know you are always hungry." But Pellico still refused. It was the same when Schiller, the grim gaoler, brought in parcels of food, bread and pieces of boiled meat, pressing them on his prisoner, assuring him that they cost him nothing. Pellico invariably refused everything except baskets of fruit, cherries and pears, which were irresistible, although he was sorry afterward for yielding to the weakness.

At last the prison surgeon interposed and put all the Italians upon hospital diet. This was somewhat better, but a meagre enough supply, consisting daily of three issues of thin soup, a morsel of roast mutton which could be swallowed in one mouthful, and three ounces of white bread. As Silvio Pellico's health improved this allowance proved more and more insufficient and he was always hungry. Even the barber who came up from Brünn to attend on the prisoners said it was common talk in the town that they did not get enough to eat and wanted to bring a white loaf when he arrived every Saturday.

Permission to exercise in the open air twice weekly had been conceded from the first, and was at the last allowed daily. Each prisoner was marched out singly, escorted by two gaolers armed with loaded muskets. This took place in the general yard where there were often many ordinary prisoners, all of whom saluted courteously and were often heard to remark, "This poor man is no real offender and yet he is treated much worse than we are." Now and again one would come up to Pellico and say sympathetically that he hoped he was feeling better, and beg to be allowed to shake his hand. Visitors who came to call on the officials were always deeply interested in the Italians and watched them curiously but kindly. "There is a gentleman who will not make old bones,"—Pellico heard some one say,—"death is written on his face." At this time so great was his weakness that, heavily chained as he was, he could barely crawl to the yard, where he threw himself full length on the grass to lie there in the sunshine until the exercise was over.

The officers' families lived near at hand and the members, particularly the ladies and children, never failed when they met the Italian prisoners to greet them with kindly looks and expressions. The superintendent's wife, who

was in failing health and was always carried out on a sofa, smiled and spoke hopefully to Pellico, and other ladies never failed to regret that they could do nothing to soften the prisoners' lot. It was a great grief to Pellico when circumstances led to the removal of these tender-hearted friends from Spielberg.

Schiller and his prisoner had a serious quarrel because the latter would not humble himself to petition the authorities to relieve him of his leg irons, which incommoded him grievously and prevented him from sleeping at night. The unfeeling doctor did not consider the removal of these chains essential to health and ruled that Pellico must patiently suffer the painful infliction till he grew accustomed to them. Schiller insisted that Pellico should ask the favour of the authorities, and when he was subjected to the chagrin of a refusal, he vented his disappointment upon his gaoler, who was deeply hurt and declined to enter the cell, but stood outside rattling his heavy keys. Food and water were carried in by Kemda, the prison orderly, and it now was Pellico's turn to be offended. "You must not bear malice; it increases my suffering," he cried sadly. "What am I to do to please you? Laugh, sing, dance, perhaps?" said Schiller, and he set himself to jump about with his thin, long legs in the most ridiculous fashion.

A great joy came unexpectedly to Pellico. He was returning from exercise one day when he found the door of Oroboni's cell wide open. Before his guards could stop him, he rushed in and clasped his comrade in his arms. The officials were much shocked, but had not the heart to separate them. Schiller came up and also a sentry, but neither liked to check this breach of the regulations. At last the brief interview was ended and the friends parted, never to meet again. Oroboni was really hopelessly ill and unable to bear up against the burden of his miserable existence, and after a few months he passed away.

Prison life in Spielberg was dull and monotonous. It was little less than solitary confinement broken only by short talks with Schiller or Oroboni. Silvio Pellico has recorded minutely the slow passage of each twenty-four hours. He awoke at daylight, climbed up at once to his cell windows and clung to the bars until Oroboni appeared at his window with a morning salutation. The view across the valley below was superb; the fresh voices of

the peasants were heard laughing and singing as they went out to work in the fields, free and light-hearted, in bitter contrast to the captives languishing within the prison walls. Then came the morning inspection of the cell and its occupant, when every corner was scrupulously examined, the walls tapped and tried, and every link of the chains tested, one by one, to see whether any had been tampered with or broken.

There were three of these inspections daily; one in the early morning, a second in the evening, and the third at midnight. Such scrupulous vigilance absolutely forbade all attempts at escape. The broad rule in prison management is obvious and unchanging; it is impossible for those immured to break prison if regularly watched and visited. The remarkable efforts made by Trenck, as detailed in a previous chapter, and indeed the story of all successful evasions, depended entirely upon the long continued exemption from observation and the unobstructed leisure afforded to clever and untiring hands. In the Spielberg prison, so close and constant was the surveillance exercised that no one turned his thoughts to flight.

After the first meal—a half cup of colourless soup and three fingers of dry bread—the prisoner took to his books, of which at first he had plenty, for Maroncelli had brought a small library with him. The emperor had been petitioned to permit the prisoners to purchase others. No answer came for a year or more and then in the negative, while the leave granted provisionally to read those in use was arbitrarily withdrawn. For four full years this cruel restriction was imposed. All studies hitherto followed were abruptly ended. Pellico was deprived of his Homer and his English classics, his works on Christian philosophy, Bourdaloue, Pascal and Thomas à Kempis. After a time the emperor himself supplied a few religious books, but he positively forbade the issue of any that might serve for literary improvement.

The fact was that political agitation had increased in Italy, and Austrian despots were resolved to draw the reins tighter and crush rebellion by the more savage treatment of the patriot prisoners. Many more were brought to Spielberg about this time and the discipline became more severe. The exercising yard on the open terrace was enclosed by a high wall to prevent people at a distance from watching the prisoners with telescopes, and later a narrower place was substituted which had no outlook at all. More rigorous

searches were instituted and carried out by the police, who explored even the hems and linings of clothing. Pellico's condition had become much worse. He suffered grievously from the misfortunes of his friends. Oroboni died, and Maroncelli was attacked by a tumour in the knee which caused intense suffering and in the end necessitated amputation. Added to this was acute anxiety concerning his relatives and friends. No correspondence was permitted; no news came from outside, but there were vague rumours that evil had overtaken Pellico's family.

One day, however, a message was brought him through the director of police from the emperor, who was "graciously pleased" to inform Silvio Pellico that all was well with his family. He begged piteously for more precise information,—were his parents, his brothers and sisters all alive? No answer was vouchsafed; he must be satisfied with what he had been told and be grateful for the compassionate clemency of his august sovereign. A second message, equally brief and meagre, came later, but still not one word to relieve the dreadful doubts that constantly oppressed him. No wonder that his health suffered anew and that he was seized with colics and violent internal pains. Another acute grief was due to the loss of his good friend Schiller, who became so infirm that he was transferred to lighter duty and was at last sent to the military hospital, where he gradually faded away. He never forgot his dear prisoners, "his children," as he called them and to whom he sent many affecting messages when at the point of death.

The Austrian government, although uniformly pitiless and stony-hearted, was at times uneasy, ashamed, it might be, at the consequences of its barbarous prison régime. More than once special inquiries were made by eminent doctors sent on purpose from Vienna to report on the sanitary state of Spielberg and the constant presence of scurvy among the prisoners. The evil might have been diminished, if not removed, by the use of a more generous diet, but the suggestion, if made, was never adopted. One commissioner had dared to recommend that artificial light should be provided in the cells, which were so dark after nightfall that the occupant was in danger of running his head against the walls. A whole year passed before this small favour was accorded. Another visitor, hearing that the prison doctor would have prescribed coffee for Pellico but was afraid to do so, secured him that boon. A third commissioner, a man of high rank and

much influence at court, was so deeply impressed by the miserable condition of the prisoners that he openly expressed his indignation, and his kind words in some measure consoled the victims of such cruel oppression.

At last the authorities were so much disturbed by the reports of the failing health of prisoners so constantly isolated, that they were moved to associate them in couples in the same cell. Silvio Pellico, to his intense delight, was given Maroncelli as his companion. He was so much overjoyed by the news that at first he fainted away, and after he had regained consciousness he again fainted at seeing how the ravages of imprisonment with its attendant dejection, starvation and poisonous air had told on his friend. The two continued together for the years that remained to be served; years of suffering, for both were continually ill, Maroncelli lost his leg, and both were attacked with persistent scurvy. They waited together for the long delayed day of release, which in the case of Pellico was greatly prolonged beyond the promised termination of seven and a half years. In the end he served fully ten years, but was finally released in 1830.

The order reached him quite unexpectedly one Sunday morning immediately after mass, when he had regained his cell for dinner. They were eating their first mouthfuls when the governor entered, apologised for his appearance, and led them off, Pellico and Maroncelli, for an interview with the director of police. They went with a very bad grace, for this official never came but to give trouble and they expected nothing better. The director was slow of speech and long hesitated to impart the joyful news that His Majesty the emperor had been mercifully disposed toward them and had set them both free.

CHAPTER X

BRIGANDAGE AND CRIME IN AUSTRIA-HUNGARY

Brigandage a great scourge in Eastern Europe—The Hungarian brigand a popular hero—The “poor fellows” and the “betyars” or brigands on a large scale—Their methods and appearance—Generous to the poor; fierce and revengeful to the rich—A countess who danced at a brigands’ ball—The Jews who were crucified and tortured—Famous brigand chiefs—Sobry—Some of his extraordinary feats—Mylfait and Pap—The criminal woman in Austria-Hungary—Remarkable rogues—Weininger—The black pearl from the British Crown jewels—Capital punishment—The execution of Hackler in Vienna—His brutal crime.

From time immemorial brigandage has been the principal scourge of the great tracts of wild country beyond the eastern Alps. The penal code has always bristled with laws against highway robbery and pillage. The ancient nobility, entrenched in their fortified castles or hidden safely within rocky fastnesses, were so many freebooters and road-agents who issued forth to prey upon their defenceless victims. They drew around them a strong body of vassals, peasants, herdsmen and shepherds, and organised them into great bands of brigands, constantly engaged in extorting ransoms and levying blackmail in the surrounding districts. The evil example of these lawless chieftains was followed by the “free” towns, and life and property were everywhere insecure. Reference to this state of things is to be found in a royal decree published by Mathias Corvinus in the fifteenth century, reciting that “the number of criminals has so much increased that no one is safe either on the public roads or even in his own house.” But the most stringent laws proved powerless to repress brigandage and general rapine. Whole villages were devastated by armed bands under powerful and capable leaders, who carried their depredations far and wide through the

Carpathians. We may quote from the record of a traveller of the seventeenth century, who, when making a journey from Poland into Hungary, was forced to seek the protection of an escort of brigands to defend him from the attacks of other brigands who dominated the mountain road and the whole country-side. Their chief was one Janko, who received and entertained the traveller hospitably, and he was present at a great feast to celebrate a successful attack upon a caravan of merchants whom they had despoiled. He was entirely at the mercy of these questionable friends, who proposed to break one of his legs to prevent him from resuming his journey prematurely. He escaped, happily, and after thirty-six hours' wandering reached a village, where no one could be found to guide him further, lest they should offend the brigands. The band was presently captured, and the traveller was forced to witness the tortures inflicted upon Janko, who was flayed alive by his executioners; his skin was wound round him in long strips, and he was then hung in the sun on an iron hook, where he lingered for three days. The other brigands were also flayed and broken on the wheel. It was about this time that the famous band of cannibal-brigands under Hara Pacha terrorised Hungary.

The Hungarian brigand was something of a popular hero, esteemed for his generosity and chivalry. He was ready for any dangerous and daring deed, inspired rather by a thirst for adventure than by acquisitiveness or the savage instincts of murder and pillage. Strange stories are told to their credit. One of them, who had been condemned to death and was being escorted to the gallows by a pandour, or local policeman, never forgot that he had been regaled with a good dinner and afterward allowed to escape. Three months later the pandour fell into the brigand's hands, and was treated to a banquet in return and then set free. On another occasion, a band of a dozen brigands took refuge in a glass manufactory on the borders of Lake Balaton, where they stood siege for three hours by a strong party of pandours. Then they made a temporary truce, invited their assailants to come in and drink, and after a carouse together, expelled them and renewed the fight, in which they were worsted and obliged to surrender.

There were various classes of brigands; some of them top-sawyers who flew at the highest game, others more or less inoffensive and commonly known as "poor fellows," the *Szegény Legény*, a name they had invented for

themselves. These last were mostly conscripts who could not tolerate military discipline and had deserted from the army; they had not dared to return home, but had taken refuge in forest or steppe, where they lurked in concealment, issuing forth only to steal food, seizing a sheep or a lamb from the first flock they might encounter. The “poor companion” was not exactly a brigand, only a tramp or vagabond who consorted with shepherds and, keeping up an outwardly respectable appearance, entered the villages to join in the dances and festivities. They were most formidable in parts of the country where they were numerous enough to use menace in demanding hospitality. They formed themselves into bands of twenty or thirty and broke into isolated houses, armed with bludgeons, or by using threats induced the proprietors to pay them blackmail. Once a nobleman met a “poor fellow” in the open who had escaped from gaol, and threatened to send him back there if he was caught stealing sheep. “If you will give me one every year,” said the vagabond, “I will lay my hands upon no more of your sheep.” It is not uncommon for the “poor companion” to reform, marry and settle down into an industrious and well-conducted servant. They have been known to beg for gifts in kind—bacon and bread, for the support of their fellows in the woods.

The real brigand, known by the name of *betyár*, is, so to speak, born to the business and takes to it from sheer liking. He is a constant marauder, a thief on a large scale, prepared to break into great houses, to invade the castles and residences of noble proprietors and extort considerable sums. He is described by one author in graphic terms: “His enormous hat, his black hair falling in long curls upon his square shoulders; his thick eyebrows, his large ferocious looking eyes, his face burned by the sun, his massive chest seen through his tattered shirt, all combine to give him a wild and terrifying look. He carries a whole arsenal with him—a gun, pistols, a hatchet and a loaded stick, though he very rarely commits murder. He wages war also with the gendarmerie. A horse that he covets he is not long in appropriating. As cunning as an Indian, he gets into the pasture at night and carries off, without making the slightest noise and with an incredible dexterity, the horse or the sheep that he is in want of. Should it be a pig that he has set his eyes on, he entices it to the edge of the forest by throwing down ears of maize to tempt it, and then suddenly knocks it on the head with a blow of his club.”

The betyars, armed to the teeth, ranged the country with the utmost effrontery, daring riders mounted on good horses, accustomed to the saddle from their earliest youth. They did not hesitate to attack houses even in the largest villages, ransacking the places and carrying off horses and spoil of all kinds. In 1861 a party encamped near a town where great fairs were held, and levied contributions on all who approached, stopping sixty carts in succession and appropriating a sum of 15,000 florins in all. Eight of them once surrounded a house in Transylvania, but were foiled in trying to break in the door, so attempted the windows, where they were met by the proprietor who opened fire on them. The brigands began a regular siege, which ended in a parley. It appeared that hunger was the motive of the attack, and the assailants withdrew when supplied with food and drink.

A country gentleman was driving home in the dead of night, when his horses became frightened and were pursued by wolves. Ammunition was soon expended and escape seemed hopeless when a large party of mounted men came to the rescue and drove off the ravenous brutes. The grateful traveller, mistaking them for local police, thanked them warmly for their timely help. "Man is bound to assist his fellow man," was the quiet reply, "but we want something more than thanks. We are not pandours but gentlemen of the plain in search of horses and any money we can pick up. You have not recognised us, but we know you and cannot allow you to run the risk of going home with wolves prowling round. You must be our guest for a time." They took him to a neighbouring farm, gave him supper and a bed and made him write a letter to his wife saying he was detained by highwaymen who would not part with him until she had paid over ten thousand florins as his ransom. The money was duly handed over and the gentleman released. But he was not content to submit.

Upon reaching home he raised a hue and cry against the betyars, and they were unceasingly pursued and driven from that part of the country, to which they did not dare to return for a long time. Fifteen years later, they swooped down upon the proprietor whom they thought had betrayed them, and burned his residence and his well-filled granaries to the ground. In explanation, the following letter reached him: "We betyars never forget or forgive. We owe our expulsion from this district to you, and we swore to take our revenge when we were next in your neighbourhood. That vow was

fulfilled last night! Let this be a lesson to you never again to break a solemn promise given to a betyar.”

The brigands often descended upon their victims with dramatic suddenness. Their information was always accurate and excellent. Tucker in his “Life and Society in Eastern Europe,” describes the startling appearance of a much-dreaded betyar at a historic castle in Transylvania.

“The noble count was at table with his guests, doing justice to a sumptuous supper, when the doors were thrown open and gave admission to a tall, dark, handsome, fiery-eyed man, who advanced with a profound obeisance and said, ‘I do myself the honour of paying my respects to your excellencies,’ upon which he approached the countess with martial step and clanking spurs and raised her trembling fingers to his lips. No thunderbolt from heaven, no special apparition from beyond the grave, could have terrified, stupefied, stunned the convivial assemblage more effectually than the sudden entrance of this stranger.

“His appearance was indeed striking,—in person tall and majestic, of fierce look, defiant and resolute, despite his fascinating smile. His brow was exceedingly swarthy, his eyes large and luminous, whilst his huge jet-black moustache, trimmed in true Magyar fashion, added even more ferocity to this undaunted robber of the plain. His attire was picturesque, fantastic, gaudy, unique. In his small, round black Magyar hat was stuck a long white feather. His tightly fitting vest was of crimson satin, on which there flashed and glittered two long rows of large and handsome buttons. The sleeves of his shirt were extremely wide and open, falling in ample folds and disclosing his brawny and sinewy arms.... His legs were incased in highly polished boots reaching to the knees, while a pair of glittering silver spurs adorned his heels. Encircling his waist in many folds was a crimson scarf, terminating in broad, loosely hanging ends. Within the folds were stuck three daggers, the hilts and shields elaborately studded with costly gems and pearls, and two handsomely mounted horse-pistols lay half-concealed beside them. A *kulacs* or flat wooden flask, gaily painted in floral designs, hung at his side, suspended from his shoulder by a leather strap. In his left hand he held the *pkosch*,—a stout stick headed by a small instrument of solid steel, representing on one side a hatchet and on the other a hammer.”

The count put the best face he could on the matter, asked how many betyars there were, and gave entertainment for the men and horses, some forty in all. The supper was relinquished, so that a new meal might be set before the uninvited guests, and those present were dismissed with a plain warning that no one was to go in search of aid. The forty betyars then came in to devour the feast with keen relish, after their long night's ride. Healths were drunk in copious drafts, cigars produced and the chief proceeded to serious business. He reminded his host that the maize harvest which had just been gathered had been bountiful, and a substantial sum had been paid in by the Jews for the purchase of the crops. Forty-seven thousand florins were in the safe, but this money was pledged to pay off a pressing mortgage and ought not to be disturbed, the betyar chief generously admitted; but there was a further sum nearly as large which the robbers declined to forego. To have seized the mortgage money would have led to the betrayal of the fact and an active pursuit would have been organised by the police, feeble though it was, which might have led to an encounter and blood-shed. But there was no lien upon the rest of the money, so the robbers might safely take possession of it.

There was no thought of resistance. The betyars might have been outnumbered but they were well armed, while the residents and servants in the castle had few, if any, weapons, and a conflict started would have ended only in butchery, with the burning down of the house and outbuildings, together with all they contained in corn, cattle and machinery. It was better to stand the first loss,—no more than many a Magyar magnate would waste at the gambling table in a single night.

Maurice Jokai, the Hungarian novelist, tells a story, founded on fact, of an adventure of a great lady with the brigands, in which she came to no harm through her calm self-possession and courage. She was on her way to a ball at Arad and, as she was obliged to travel through a dense forest, she halted over night at an inn which was really a den of robbers. There happened to be a great gathering of them there dancing. Undaunted, she entered the ball-room,—a long room, filled with smoke, where some fifty rough brigands were leaping about and singing at the top of their voices. They stopped the dance and stared open-mouthed at the audacious lady who dared to interrupt their revels. They were all big, fierce looking men, and armed, but the

beautiful countess cowed them and imposed respect. One, the leader of the band, approached, bowing low, and asked whom she was. He gallantly invited her to dance the *czarda* or national step, which she did as gaily and prettily as on the parquet floor of the casino at Arad.

An ample supper was brought in; pieces of beef were served in a great cauldron, from which every guest fished out his portion with a pocket-knife, and ate it with bread soaked in the gravy. Wine was served in large wooden bottles. After supper cards were produced and high play for golden ducats followed; then more dancing, and the countess tripped it with the liveliest until morning. She had danced eighteen *czardas* in all with the principal brigand. Her companions fearfully expected some tragic end to the festivities. When daylight came, the horses were put to the carriage and the guests were suffered to depart with compliments and thanks for their condescension.

The betyars were not equally affable to all. They waged perpetual warfare against Jews and priests, and all who were thought to be unduly rich and prosperous, whom they constantly captured, robbed and maltreated, inventing tortures and delighting in their agonies. The wretched prisoners were beaten unmercifully, were crucified, shod like horses, tied by the feet to a pendent branch of a tree, or buried up to their necks by the road-side. A Jew was once taken when on his way to market with honey. His captors stripped him naked, anointed his whole body with the honey, rolled him in feathers and drove him in front of them to the gates of the nearest town, where the dogs worried him and the people jeered.

Hungary produced many notable brigands, whose names are as celebrated as the German "Schinderhannes," or "Fra Diavolo," or "Jose Maria" in southern Spain. One of the most famous of these men was Sobry, who haunted the great forest of Bakony, the chief scene of action for Hungarian brigands. It was a wild district, its vast solitudes sparsely occupied by a primitive people cut off from the civilised world. The men, mostly swine-herds locally called the *kanasz*, were thick set and of short stature, the women well-formed, with red cheeks and dark eyes. Pigs roamed the forest in droves of a thousand, their herds consorting with the vagabonds and refugees who hid in the woods, and were the spies and sentinels of the

brigands, who in return respected the swine. The *kanasz*, or swine-herds who do business on their own account, are very expert in the use of their favourite weapon, a small hatchet which they carry in the waist-belt and prefer to a gun, and with which they hunt and slay the bear of Transylvania.

The great brigand Sobry was said to be the head of a noble family who had wasted his patrimony in riotous living and disappeared. By and by he returned to his ancestral castle with a fortune mysteriously acquired. Again he ruined himself, and again disappeared, to turn up later with a large sum of money, which he left to his people. Sobry's exploits filled all Hungary. As became an aristocrat he had most polished manners, and treated his victims with the utmost consideration. Once he made a descent upon a castle in the absence of its rich owner, who had left his wife alone. Sobry hastened to the lady, disclaiming all idea of doing her injury, but begged her to invite him and his companions to dinner, as the table was reputed to be the best in Hungary. Twenty-four covers were laid, and Sobry escorted his hostess to the cellars, where she pointed out the best bins of Imperial Tokay. At dinner the countess presided, with Sobry at her right hand. The brigand proposed many toasts to his hostess, kissed her hand and departed without carrying off even a single spoon.

The following incident is related: A gentleman was driving into town in a superb carriage, on the box of which sat a police pandour. A beggar with a venerable white beard came up asking alms, and was invited to get into the carriage. "I will give you a new suit of clothes from the best tailors," said the gentleman. Ready-made clothing was chosen and put into the carriage, the old beggar being left in pledge for the goods. The gentleman, who was Sobry, was then driven away, and never returned.

The affair with the archbishop was on a larger scale. His Grace enjoyed princely revenues, and kept up great state. His coffers were always filled to overflowing, and he had immense possessions in flocks and herds. One day a letter was received from Sobry, announcing an early visit and the intention to drive off His Grace's fattest cattle. The archbishop declined to be intimidated, armed his servants and prepared to give Sobry a hot reception. The fat cattle were to be sold at once to the butchers, and a summons was sent forth inviting them to come and make their bids. One butcher, a well-

to-do respectable burgher, insisted upon transacting his business with the prelate in person, and after much parley he was introduced into His Grace's study. Presently he left the room, telling the servants that he had completed the bargain, but that the archbishop was somewhat fatigued and was lying down on the sofa, having given orders that he was not to be disturbed. So long a time elapsed before His Grace rang his bell that the servants, risking his displeasure, went to him and found him tied, hand and foot, and gagged. The story he told, when released from his bonds, was that his visitor had been Sobry, disguised as a butcher, and that he had suddenly drawn a pistol and pointed it at the prelate's breast exclaiming, "Utter one cry and I fire! I have come to fetch the 60,000 florins you have in the safe, which will suit my purpose better than your finest cattle." The archbishop surrendered at discretion and after this His Grace kept the body-guard in close attendance at the palace, and never drove out without an escort of pandours.

Two other brigands of a more truculent character than Sobry were Mylfait and Pap, who never hesitated to commit murder wholesale. On one occasion, Mylfait had reason to believe that a certain miller had given information to the pandours, and having surrounded the mill with his band, he opened fire upon the house, killing every one within,—the miller, his wife and children, and all of the servants. He showed a certain grim humour at times. A Jew once lost his way in the forest and fell in with Mylfait's band, who were sitting around a fire where a sheep was being roasted. He was cordially invited to join the feast, accepted gladly, and made an excellent meal washed down with much wine. Then he rose abruptly, eager to take himself off. "Without paying for all you have eaten and drunk?" protested Mylfait. "How much money have you got about you? Hand it over. Thirty florins? No more!" he exclaimed. "Here," to an assistant, "take his gun from him and make him strip off his clothes. We will keep them until he chooses to redeem them with a further sum of thirty florins." The Jew, in despair, begged and implored for mercy, crying bitterly and shaking in every limb.

"You are feeling the cold, I am afraid," said the pitiless brigand. "You shall dance for us; that will warm you and will afford us some amusement." The wretched Jew pleaded that he did not know how to dance the *czarda*. "But you must give us some compensation. Go and stand with your back against

that tree," Mylfait insisted. "I am going to see what your gun is worth and whether it shoots true. I shall aim at your hat. Would you prefer to have your eyes bandaged?" The Jew renewed his piteous lamentations in the name of his wife and children. But Mylfait was inflexible, and slowly taking aim, fired, not at the hat, but a branch above. The ball broke it and it fell upon the Jew's head, who, thinking himself killed, staggered and dropped to the ground. "Be off, you cur;" cried the brigand-chief, "you are not fit to live, but you may go."

These notorious characters were usually adored by the female sex. Every brigand had a devoted mistress, who prided herself on the evil reputation of her lover, whatever his crimes, even when he had many murders on his conscience. A strange flirtation and courtship was carried on for years in one of the principal prisons of Vienna. It was conducted through a clandestine correspondence; many ardent letters were exchanged, and the parties were betrothed long before they had actually seen each other. The letters that passed were models of style and brimful of affection. One, which had been concealed under a stone in the exercising yard, and was impounded, ran as follows:

"VERY DEAR FRÄULEIN: I am thunderstruck by the news of your departure. I wish you every sort of happiness, but I earnestly hope you will write me saying you still love me, and will wait for my release a month and a half ahead. Please go to my father's house in the Rue de la Croix where you will be well received, for I have assured him that you alone shall be my wife, and you will find me a man of my word. I may add that I have the means of supporting you. Write me, I beg, so that my misery may be somewhat assuaged. Believe me when I swear eternal fidelity. Your own Charles.

"Do not credit any stories you hear against me—they are all lies and calumnies. The world is very wicked, let us rise superior to it. I adore you. Adieu."

Love affairs do not always prosper in gaol. They may have their origin in true affection, and are as liable to be impeded as elsewhere by quarrels, suspicion and jealousy. An amazing case of clever deception was that of a woman who posed as the Countess Kinski, who when at large carried on a number of different intrigues at the same time. She established relations on paper with several lovers,—artists, tradesmen, and well-to-do burghers, every one of whom she promised to marry. She gave them all an appointment on the same night at the opera, where each was to wear a red camellia in his buttonhole; and the stalls were filled with them. That night the real countess was present in a box with her parents, and was unable to understand the many adoring glances directed toward her by her admirers. A clever idea was at the bottom of this deception. The impostor in her letters pretended that her parents would certainly oppose her marriage, but that she was ready to fly to her lover's arms, if he would help her to bribe the servants, her own maid, the lackeys and the house porter. The response was promptly made in the shape of a number of bank-notes, and the false countess did a flourishing business until the police intervened.

The criminal woman in Austria-Hungary differs widely from the criminal male offender. The latter enters jail cowed and depressed, and his temper grows worse and worse until he gives vent to it in furious assault upon his wardens. The female, on the other hand, begins with violent hysterics and nerve crises, crying continually, refusing food, half mad with despair. But she improves day by day, will eat and drink freely and take an interest in dress and appearance, until at last she becomes gay and good-humoured. Good looks are frequently met with in this class. The shop windows are full of photographs of attractive *demi mondaines*. The story is told of a peasant from the Danube who was terribly shocked by a photograph of the famous nude group of the Graces from the statue of Rauch. "Well, well," he exclaimed, "they are indeed shameless. They can afford to be photographed and yet they are too poor to buy clothes."

Many rogues and sharpers have been found in the Viennese prisons. One was the famous Weininger, who amassed considerable sums by the sale of sham antiquities. He disposed of quantities to the best known museums and collections in Europe. Among other things, he palmed off a quantity of ancient weapons and armour upon the duke of Modena, all of which were

reproductions made at Vienna. He sold as sixteenth century work two handsome altars for 3,000 pounds, which he persuaded an English dealer he had bought in a Jesuit convent in Rome for 5,000 pounds. Weininger was assisted in his frauds by a Hungarian count who gave the necessary false certificates of antiquity.

But genuine valuables often came into the market at Vienna. One day a poor Jew, ragged and travel-stained, offered an authentic black pearl for sale in a jeweller's shop. It was beyond question worth a great sum, and the dealer very properly refused to trade until satisfied as to the holder's rightful possession. The story told seemed very questionable, and the Jew was taken into custody. He claimed that the pearl had been given to him in payment of a bill owed him by one of the guests in his boarding-house at Grosswardein. The debtor, he said, had been at one time a servant of Count Batthyani, who had given it to him on his death-bed. The pearl was at once recognised as one of the three black pearls of that size in existence,—one of the English crown jewels which had long since been stolen. There was nothing to prove how it had come into Count Batthyani's possession, but it was generally supposed that he had acquired it from a dealer, neither of them being aware of its enormous value. The British government is said to have paid 2,000 pounds to recover the lost treasure.

Capital punishment is still the rule in Austria-Hungary, as the penalty for murder in the first degree. At one time noble birth gave a prescriptive right to death by the sword for both sexes. Hanging is to-day the plan adhered to for all. The condemned, as in most countries, is humanely treated in the days immediately preceding execution. He is carefully watched and guarded against any despairing attempt at self-destruction, and he is given ample and generally appetising food. Some curious customs survive. On the third day before death the executioner brings the convict a capon for supper with a cord around its neck, and at one time the bird was beheaded before being served, and its legs and wings were tied with red thread. The ceremony is still performed in the open air and with much solemnity. As a rule the journey to the gallows is made in a cart with open sides, and the condemned, tied and bound, sits with his back to the horses so that he cannot see the scaffold. Before leaving the jail, the executioner asks his victim's pardon, and then, escorted by soldiers to protect him from the

people if he bungles in his horrible task, he takes a different road to the gallows than that followed by the criminal. When he has completed his task, he goes through the crowd, hat in hand, collecting alms to provide masses for the man who has just passed away.

Victor Tissot in his “Viene et la Vie Viennoise” gives a graphic account of an execution of recent date, which he witnessed at the Alservorstadt Prison in Vienna. It was conducted within the walls, but a large concourse had assembled in front of the gates. The place of execution was the so-called “Court of Corpses,”—a narrow triangle wedged in by high walls at the end of a short corridor leading from the condemned cell. The first to appear was the executioner dressed in a blue over-coat and a crushed hat, followed by his assistants, two of whom were beardless boys. The gallows, erected above a short flight of steps at the end of the small court, was minutely examined by the executioner, after he had selected the most suitable rope from the many he carried in a small handbag. He was provided also with cords to tie up the convict’s limbs.

Precisely as the clock struck eight, the cortège appeared, headed by the convict, by whose side walked the chaplain with the governor and the president of the High Court behind. The doomed man, Hackler by name, carried a crucifix in his hand; his face was deathly white, and great drops of perspiration beaded his forehead and trickled down his cheeks. He looked around with a stupid and apathetic malevolence at the officials, and listened with brutal indifference to the judge, as he formally handed him over to the executioner with these words: “I surrender to you the person of Raymond Hackler condemned to be hanged; do your duty.”

The convict betrayed no emotion. He repelled the hangman’s assistance, who would have helped him to undress, saying: “I’ll do it myself,” and he proceeded to remove his coat and waistcoat as coolly as though he were going to bed to sleep the sleep of the just. He then stepped into the appointed place beneath the gallows with his head bent between his shoulders. His hands were now fastened behind his back, and a cord slipped over his head fell down as far as his knees, securing his legs. The last act was to fix the halter around his neck, which he resisted spasmodically. The next instant the signal was given and he was run up into the air. As there

was no “drop,” no floor which opened to let the victim fall through out of sight, and as he wore no cap, his indecorous contortions and white protruding eyes were plainly visible, while the hangman completed the horrible operation by adding his weight to break the vertebral column. His last act was to close the dead man’s eyes.

Hackler’s crime was one of peculiar atrocity. He had murdered his mother to gain possession of a few florins which he wasted the same night in ghastly debauchery. The crime was attended with the most revolting circumstances. When his mother would have driven him forth to work, he threw a rope around her neck, gagged her, and killed her with a log of wood. The same night, having thrust the corpse under the bed, he slept on the mattress “quite as well as usual,” so he told the examining judge. His death was heartily approved by the people of Vienna as a just retribution.

Superstition long surrounded execution. The bodies of those who were executed were left to hang upon the gallows until they fell to pieces. People came in the night to cut off a shred of the clothes worn, or sought to mutilate the body by removing a little finger; this relic was treasured greatly by professional thieves, who foolishly believed that they would escape detection, or even observation, if they carried it in their pocket when plying their trade.

Under Austrian law a woman never suffers the death penalty, no matter what crime has been committed. Women are not regarded as ordinary criminals, and if convicted, are sent to a convent near Vienna.

The penal codes of Austria proper and Hungary are not identical, but comparatively few criminals sentenced to death in either country are actually brought to the scaffold. Statistics show that in Austria over seven hundred criminals were sentenced to death in the six years from 1893 to 1898, but less than three per cent. of that number were actually hanged. The death sentence is in the majority of cases, commuted to penal servitude for life or for periods ranging from ten to twenty years, and in the case of both Austria and Hungary a distinct decrease in the number of capital crimes committed has accompanied the falling off in the proportion of capital executions.

Transcriber's Note:

Inconsistent spelling and hyphenation are as in the original.

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